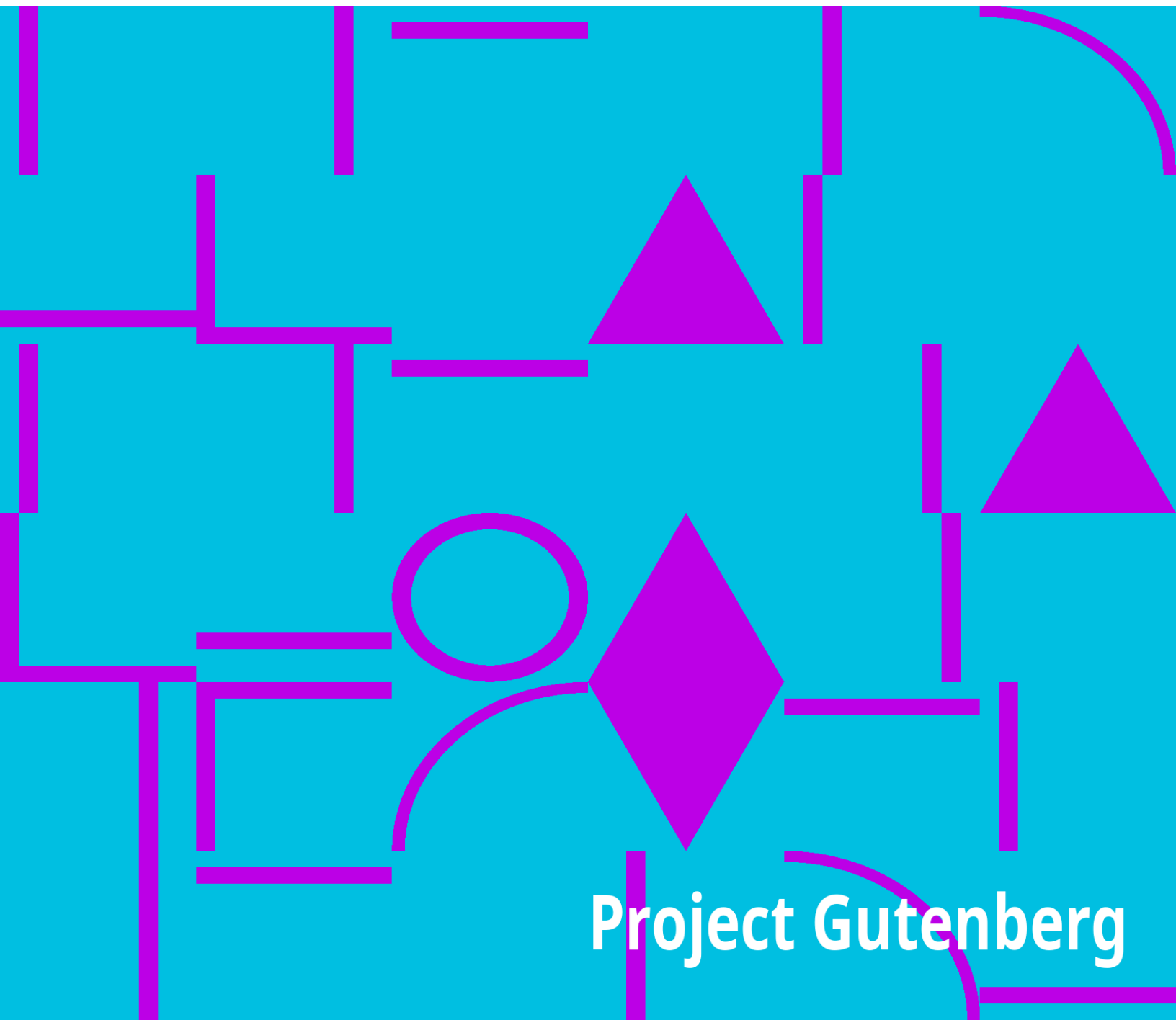


The Girl at the Halfway House

Emerson Hough

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THE HALFWAY HOUSE ***

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THE GIRL AT THE HALFWAY HOUSE

A Story of the Plains

by

EMERSON HOUGH

Author of *The Covered Wagon, 54-40 or Fight, North of 36*, etc.

Grosset & Dunlap
Publishers New York

1900

TO EDWARD KEMEYS,

SOLDIER, HUNTER, AND SCULPTOR,

WHO KNEW AND LOVED THE WEST,

AND WHO HAS PRESERVED ITS SPIRIT IMPERISHABLY,

**THIS BOOK IS INSCRIBED WITH MANY GRATEFUL
ACKNOWLEDGMENTS.**

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BOOK I

THE DAY OF WAR

CHAPTER I

THE BRAZEN TONGUES

The band major was a poet. His name is lost to history, but it deserves a place among the titles of the great. Only in the soul of a poet, a great man, could there have been conceived that thought by which the music of triumph should pass the little pinnacle of human exultation, and reach the higher plane of human sympathy.

Forty black horses, keeping step; forty trumpeters, keeping unison; this procession, headed by a mere musician, who none the less was a poet, a great man, crossed the field of Louisburg as it lay dotted with the heaps of slain, and dotted also with the groups of those who sought their slain; crossed that field of woe, meeting only hatred and despair, yet leaving behind only tears and grief. Tears and grief, it is true, yet grief that knew of sympathy, and tears that recked of other tears.

For a long time the lines of invasion had tightened about the old city of Louisburg, and Louisburg grew weaker in the coil. When the clank of the

Southern cavalry advancing to the front rang in the streets, many were the men swept away with the troops asked to go forward to silence the eternally throbbing guns. Only the very old and the very young were left to care for the homes of Louisburg, and the number of these grew steadily less as the need increased for more material at the front. Then came the Southern infantry, lean, soft-stepping men from Georgia and the Carolinas, their long black hair low on their necks, their shoes but tattered bits of leather bound upon their feet, their blankets made of cotton, but their rifles shining and their drill perfection. The wheat lay green upon the fields and the odours of the blossoms of the peach trees hung heavy on the air; but there was none who thought of fruitage or of harvest. Out there in front, where the guns were pulsing, there went on that grimmer harvest with which the souls of all were intimately concerned. The boys who threw up their hats to greet the infantry were fewer than they had been before the blossoming of the peach. The war had grown less particular of its food. A boy could speed a bullet, or could stop one. There were yet the boys.

Of all the old-time families of this ancient little city none held position more secure or more willingly accorded than the Fairfaxes and the Beauchamps. There had always been a Colonel Fairfax, the leader at the local bar, perhaps the representative in the Legislature, or in some position of yet higher trust. The Beauchamps had always had men in the ranks of the professions or in stations of responsibility. They held large lands, and in the almost feudal creed of the times they gave large services in return. The curse of politics had not yet reached this land of born politicians. Quietly, smoothly, yet withal keyed to a high standard of living, the ways of this old community, as of these two representative families, went on with little change from generation to generation.

It was not unknown that these two families should intermarry, a Fairfax finding a wife among the Beauchamps, or perchance a Beauchamp coming

to the Fairfax home to find a mistress for his own household. It was considered a matter of course that young Henry Fairfax, son of Colonel Fairfax, should, after completing his studies at the ancient institution of William and Mary College, step into his father's law office, eventually to be admitted to the bar and to become his father's partner; after which he should marry Miss Ellen Beauchamp, loveliest daughter of a family noted for its beautiful women. So much was this taken for granted, and so fully did it meet the approval of both families, that the tide of the young people's plans ran on with little to disturb its current. With the gallantry of their class the young men of the plantations round about, the young men of the fastidiously best, rode in to ask permission of Mary Ellen's father to pay court to his daughter. One by one they came, and one by one they rode away again, but of them all not one remained other than Mary Ellen's loyal slave. Her refusal seemed to have so much reason that each disappointed suitor felt his own defeat quite stingless. Young Fairfax seemed so perfectly to represent the traditions of his family, and his future seemed so secure; and Mary Ellen herself, tall and slender, bound to be stately and of noble grace, seemed so eminently fit to be a Beauchamp beauty and a Fairfax bride.

For the young people themselves it may be doubted if there had yet awakened the passion of genuine, personal love. They met, but, under the strict code of that land and time, they never met alone. They rode together under the trees along the winding country roads, but never without the presence of some older relative whose supervision was conventional if careless. They met under the honeysuckles on the gallery of the Beauchamp home, where the air was sweet with the fragrance of the near-by orchards, but with correct gallantry Henry Fairfax paid his court rather to the mother than to the daughter. The hands of the lovers had touched, their eyes had momentarily encountered, but their lips had never met. Over the young

girl's soul there sat still the unbroken mystery of life; nor had the reverent devotion of the boy yet learned love's iconoclasm.

For two years Colonel Fairfax had been with his regiment, fighting for what he considered the welfare of his country and for the institutions in whose justice he had been taught to believe. There remained at the old Fairfax home in Louisburg only the wife of Colonel Fairfax and the son Henry, the latter chafing at a part which seemed to him so obviously ignoble. One by one his comrades, even younger than himself, departed and joined the army hastening forward toward the throbbing guns. Spirited and proud, restive under comparisons which he had never heard but always dreaded to hear. Henry Fairfax begged his mother to let him go, though still she said, "Not yet."

But the lines of the enemy tightened ever about Louisburg. Then came a day—a fatal day—fraught with the tidings of what seemed a double death. The wife of Colonel Henry Fairfax was grande dame that day, when she buried her husband and sent away her son. There were yet traditions to support.

Henry Fairfax said good-bye to Mary Ellen upon the gallery of the old home, beneath a solemn, white-faced moon, amid the odours of the drooping honeysuckle. Had Mary Ellen's eyes not been hid beneath the lids they might have seen a face pale and sad as her own. They sat silent, for it was no time for human speech. The hour came for parting, and he rose. His lips just lightly touched her cheek. It seemed to him he heard a faint "good-bye." He stepped slowly down the long walk in the moonlight, and his hand was at his face. Turning at the gate for the last wrench of separation, he gazed back at a drooping form upon the gallery. Then Mrs. Beauchamp came and took Ellen's head upon her bosom, seeing that now she was a woman, and that her sufferings had begun.

CHAPTER II

THE PLAYERS OF THE GAME

When the band major was twenty miles away in front of Louisburg his trumpets sounded always the advance. The general played the game calmly. The line of the march was to be along the main road leading into the town. With this course determined, the general massed his reserves, sent on the column of assault, halted at the edge of the wood, deployed his skirmishers, advanced them, withdrew them, retreated but advanced again, ever irresistibly sweeping the board in toward the base of Louisburg, knight meeting knight, pawn meeting pawn, each side giving and taking pieces on the red board of war.

The main intrenchments erected in the defences of Louisburg lay at right angles to the road along which came the Northern advance, and upon the side of the wood nearest to the town. Back of the trenches lay broken fields, cut up by many fences and dotted with occasional trees. In the fields both the wheat and the flowers were now trampled down, and a thousand industrious and complaining bees buzzed protest at the losing of their commerce. The defences themselves were but earthworks, though skilfully laid out. Along their front, well hidden by the forest growth, ran a line of entangling abattis of stakes and sharpened interwoven boughs.

In the centre of the line of defence lay the reserves, the boys of Louisburg, flanked on either side by regiments of veterans, the lean and black-haired Georgians and Carolinians, whose steadiness and unconcern gave comfort to more than one bursting boyish heart. The veterans had long played the game of war. They had long since said good-bye to their women. They had seen how small a thing is life, how easily and swiftly to be ended. Yellow-pale, their knees standing high in front of them as they squatted about on the ground, their long black hair hanging down uncared for, they chewed, smoked, swore, and cooked as though there was no jarring in the earth, no wide foreboding on the air. One man, sitting over his little fire, alternately removed and touched his lips to the sooty rim of his tin cup, swearing because it was too hot. He swore still more loudly and in tones more aggrieved when a bullet, finding that line, cut off a limb from a tree above and dropped it into his fire, upsetting the frying pan in which he had other store of things desirable. Repairing all this damage as he might, he lit his pipe and leaned against the tree, sitting with his knees high in front of him. There came other bullets, singing, sighing. Another bullet found that same line as the man sat there smoking.

Overhead were small birds, chirping, singing, twittering. A long black line of crows passed, tumbling in the air, with much confusion of chatter and clangour of complaint that their harvest, too, had been disturbed. They had been busy. Why should men play this game when there were serious things of life?

The general played calmly, and ever the points and edges and fronts of his advance came on, pressing in toward the last row of the board, toward the line where lay the boys of Louisburg. Many a boy was pale and sick that day, in spite of the encouraging calm or the biting jests of the veterans. The strange sighings in the air became more numerous and more urgent. Now and then bits of twigs and boughs and leaves came sifting down, cut by

invisible shears, and now and then a sapling jarred with the thud of an unseen blow. The long line in the trenches moved and twisted restlessly.

In front of the trenches were other regiments, out ahead in the woods, unseen, somewhere toward that place whence came the steadiest jarring of artillery and the loudest rattling of the lesser arms. It was very hard to lie and listen, to imagine, to suspect, to dread. For hours the game went on, the reserves at the trenches hearing now distinctly and now faintly the tumult of the lines, now receding, now coming on. But the volume of the tumult, and its separation into a thousand distinct and terrifying sounds, became in the average ever an increasing and not a lessening thing. The cracker-popping of the musketry became less and less a thing of sport, of reminiscences. The whinings that passed overhead bore more and more a personal message. These young men, who but lately had said good-bye to the women of their kin, began to learn what war might mean. It had been heretofore a distant, unmeasured, undreaded thing, conquerable, not to be feared. It seemed so sweet and fit to go forth, even though it had been hard to say good-bye!

Now there began to appear in the woods before the trenches the figures of men, at first scattered, then becoming steadily more numerous. There came men bearing other men whose arms lopped loosely. Some men walked with a hand gripped tightly to an arm; others hobbled painfully. Two men sometimes supported a third, whose head, heavy and a-droop, would now and then be kept erect with difficulty, the eyes staring with a ghastly, sheepish gaze, the face set in a look of horrified surprise. This awful rabble, the parings of the defeated line in front, dropped back through the woods, dropped back upon the young reserves, who lay there in the line. Some of them could go no farther, but fell there and lay silent. Others passed back into the fields where droned the protesting bees, or where here and there a wide tree offered shelter. Suddenly all the summer air was filled with anguish and horror. Was this, then, the War?

And now there appeared yet other figures among the trees, a straggling, broken line, which fell back, halted, stood and fired always calmly, coolly, at some unseen thing in front of them. But this line resolved itself into individuals, who came back to the edge of the wood, methodically picking their way through the abattis, climbing the intervening fences, and finally clambering into the earthworks to take their places for the final stand. They spoke with grinning respect of that which was out there ahead, coming on. They threw off their coats and tightened their belts, making themselves comfortable for what time there yet remained. One man saw a soldier sitting under a tree, leaning against the trunk, his knees high in front of him, his pipe between his lips. Getting no answer to his request for the loan of the pipe, he snatched it without leave, and then, discovering the truth, went on none the less to enjoy the luxury of a smoke, it seeming to him desirable to compass this while it yet remained among the possibilities of life.

At last there came a continued, hoarse, deep cheering, a roaring wave of menace made up of little sounds. An officer sprang up to the top of the breastworks and waved his sword, shouting out something which no one heard or cared to hear. The line in the trenches, boys and veterans, reserves and remnants of the columns of defence, rose and poured volley after volley, as they could, into the thick and concealing woods that lay before them. None the less, there appeared soon a long, dusty, faded line, trotting, running, walking, falling, stumbling, but coming on. It swept like a long serpent parallel to the works, writhing, smitten but surviving. It came on through the wood, writhing, tearing at the cruel abattis laid to entrap it. It writhed, roared, but it broke through. It swept over the rail fences that lay between the lines and the abattis, and still came on! This was not war, but Fate!

There came a cloud of smoke, hiding the face of the intrenchments. Then the boys of Louisburg saw bursting through this suffocating curtain a few

faces, many faces, long rows of faces, some pale, some red, some laughing, some horrified, some shouting, some swearing—a long row of faces that swept through the smoke, following a line of steel—a line of steel that flickered, waved, and dipped.

CHAPTER III

THE VICTORY

The bandmaster marshalled his music at the head of the column of occupation which was to march into Louisburg. The game had been admirably played. The victory was complete. There was no need to occupy the trenches, for those who lay in them or near them would never rally for another battle. The troops fell back behind the wood through which they had advanced on the preceding day. They were to form upon the road which had been the key of the advance, and then to march, horse and foot in column, into Louisburg, the place of honour at the head being given to those who had made the final charge to the last trench and through the abattis. Gorged with what it had eaten, the dusty serpent was now slothful and full of sleep. There was no longer need for hurry. Before the middle of the morning the lines would start on the march of the few short miles.

During the delay a young officer of engineers, Captain Edward Franklin by name, asked permission of his colonel to advance along the line of march until he came to the earthworks, to which he wished to give some examination, joining his regiment as it passed beyond the fortifications on its march. The colonel gave his consent, not altogether willingly. "You may see more over there than you want to see, young man," said he.

Franklin went on, following as nearly as he could the line of the assault of the previous day, a track all too boldly marked by the horrid *debris* of the fight. As he reached the first edge of the wood, where the victorious column had made its entrance, it seemed to him that there could have been no such thing as war. A gray rabbit hopped comfortably across the field. Merry squirrels scampered and scolded in the trees overhead. The jays jangled and bickered, it is true, but a score of sweet-voiced, peaceful-throated birds sang bravely and contentedly as though there had never been a sound more discordant than their own speech. The air was soft and sweet, just cold enough to stir the leaves upon the trees and set them whispering intimately. The sky, new washed by the rain which had fallen in the night, was clean and bright and sweet to look upon, and the sun shone temperately warm. All about was the suggestion of calm and rest and happiness. Surely it had been a dream! There could have been no battle here.

This that had been a dream was changed into a horrid nightmare as the young officer advanced into the wood. About him lay the awful evidences. Coats, caps, weapons, bits of gear, all marked and emphasized with many, many shapeless, ghastly things. Here they lay, these integers of the line, huddled, jumbled. They had all the contortions, all the frozen ultimate agonies left for survivors to see and remember, so that they should no more go to war. Again, they lay so peacefully calm that all the lesson was acclaim for happy, painless war. One rested upon his side, his arm beneath his head as though he slept. Another sat against a tree, his head fallen slightly forward, his lax arms allowing his hands to droop plaintively, palms upward and half spread, as though he sat in utter weariness. Some lay upon their backs where they had turned, thrusting up a knee in the last struggle. Some lay face downward as the slaughtered fall. Many had died with hands open, suddenly. Others sat huddled, the closed hand with its thumb turned under and covered by the fingers, betokening a gradual passing of the vital spark, and a slow submission to the conqueror. It was all a hideous and cruel

dream. Surely it could be nothing more. It could not be reality. The birds gurgled and twittered. The squirrels barked and played. The sky was innocent. It must be a dream.

In this part of the wood the dead were mingled from both sides of the contest, the faded blue and the faded gray sometimes scarce distinguishable. Then there came a thickening of the gray, and in turn, as the traveller advanced toward the fences and abattis, the Northern dead predominated, though still there were many faces yellow-pale, dark-framed. At the abattis the dead lay in a horrid commingling mass, some hanging forward half through the entanglement, some still in the attitude of effort, still tearing at the spiked boughs, some standing upright as though to signal the advance. The long row of dead lay here as where the prairie wind drives rolling weeds, heaping them up against some fence that holds them back from farther travel.

Franklin passed over the abattis, over the remaining fences, and into the intrenchments where the final stand had been. The dead lay thick, among them many who were young. Out across the broken and trodden fields there lay some scattered, sodden lumps upon the ground. Franklin stood looking out over the fields, in the direction of the town. And there he saw a sight fitly to be called the ultimate horror of all these things horrible that he had seen.

Over the fields of Louisburg there came a fearful sound, growing, rising, falling, stopping the singing and the twitter of the birds. Across the land there came a horrible procession, advancing with short, uncertain, broken pauses—a procession which advanced, paused, halted, broke into groups; advanced, paused, stopped, and stooped; a procession which came with wailings and bitter cries, with wringing of hands, with heads now and then laid upon the shoulders of others for support; a procession which stooped

uncertainly, horribly. It was the women of Louisburg coming to seek their slain—a sight most monstrous, most terrible, unknown upon any field of civilized war, and unfit to be tolerated even in the thought! It is for men, who sow the fields of battle, to attend also to the reaping.

Franklin stood at the inner edge of the earthworks, half hidden by a little clump of trees. It seemed to him that he could not well escape without being seen, and he hesitated at this thought, Yet as he stood it appeared that he must be an intruder even thus against his will. He saw approaching him, slowly but almost in direct line, two figures, an older lady and a girl. They came on, as did the others, always with that slow, searching attitude, the walk broken with pauses and stoopings. The quest was but too obvious. And even as Franklin gazed, uncertain and unable to escape, it seemed apparent that the two had found that which they had sought. The girl, slightly in advance, ran forward a few paces, paused, and then ran back. "Oh, there! there!" she cried. And then the older woman took the girl's head upon her bosom. With bared head and his own hand at his eyes, Franklin hurried away, hoping himself unseen, but bearing indelibly pictured on his brain the scene of which he had been witness. He wanted to cry out, to halt the advancing columns which would soon be here, to tell them that they must not come upon this field, made sacred by such woe.

The column of occupation had begun its movement. Far as the eye could see, the way was filled with the Northern troops now swinging forward in the march. Their course would be along this road, across these earthworks, and over the fields between the wood and the town. The rattle and rumble of the advance began. Upon the morning air there rose the gallant and forgetful music which bade the soldier think not of what had been or would be, but only of the present. The bugles and the cymbals sounded high and strong in the notes of triumph. The game was over. The army was coming to take possession of that which it had won.

It had won—what? Could the answer be told by this chorus of woe which arose upon the field of Louisburg? Could the value of this winning be summed by the estimate of these heaps of sodden, shapeless forms? Here were the fields, and here lay the harvest, the old and the young, the wheat and the flower alike cut down. Was this, then, what the conqueror had won?

Near the intrenchment where the bitter close had been, and where there was need alike for note of triumph, and forgetfulness, the band major marshalled his music, four deep and forty strong, and swung out into the anthem of the flag. The march was now generally and steadily begun. The head of the column broke from the last cover of the wood and came into full sight at the edge of the open country. Thus there came into view the whole panorama of the field, dotted with the slain and with those who sought the slain. The music of triumph was encountered by the concerted voice of grief and woe. There appeared for the feet of this army not a mere road, a mere battlefield, but a ground sacred, hedged high about, not rudely to be violated.

But the band major was a poet, a great man. There came to him no order telling him what he should do, but the thing was in his soul that should be done. There came to him, wafted from the field of sorrow, a note which was command, a voice which sounded to him above the voices of his own brasses, above the tapping of the kettledrums. A gesture of command, and the music ceased absolutely. A moment, and it had resumed.

The forty black horses which made up this regimental band were the pride of the division. Four deep, forty strong, with arching necks, with fore feet reaching far and drooping softly, each horse of the famous cavalry band passed on out upon the field of Louisburg with such carriage as showed it sensible of its mission. The reins lay loose upon their necks, but they kept step to the music which they felt. Forty horses paced slowly forward,

keeping step. Forty trumpeters, each man with his right hand aloft, holding his instrument, his left hand at his side, bearing the cap which he had removed, rode on across the field of Louisburg. The music was no longer the hymn of triumph.

Softly and sadly, sweetly and soothingly, the trumpets sang a melody of other days, an air long loved in the old-time South. And Annie Laurie, weeping, heard and listened, and wept the more, and blessed God for her tears!

BOOK II

THE DAY OF THE BUFFALO

CHAPTER IV

BATTERSLEIGH OF THE RILE IRISH

Colonel Henry Battersleigh sat in his tent engaged in the composition of a document which occasioned him concern. That Colonel Battersleigh should be using his tent as office and residence—for that such was the fact even the most casual glance must have determined—was for him a circumstance offering no special or extraordinary features. His life had been spent under canvas. Brought up in the profession of arms, so long as fighting and forage were good it had mattered little to him in what clime he found his home. He had fought with the English in India, carried sabre in the Austrian horse, and on his private account drilled regiments for the Grand Sultan, deep within the interior of a country which knew how to keep its secrets. When the American civil war began he drifted to the newest scene of activity as metal to a magnet. Chance sent him with the Union army, and there he found opportunity for a cavalry command. "A gentleman like Battersleigh of the Rile Irish always rides," he said, and natural horseman as well as trained cavalryman was Battersleigh, tall, lean, flat-backed, and martial even under his sixty admitted years. It was his claim that no Sudanese spearsman or waddling assegai-thrower could harm him

so long as he was mounted and armed, and he boasted that no horse on earth could unseat him. Perhaps none ever had—until he came to the Plains.

For this was on the Plains. When the bitter tide of war had ebbed, Battersleigh had found himself again without a home. He drifted with the disintegrating bodies of troops which scattered over the country, and in course of time found himself in the only portion of America which seemed to him congenial. Indeed, all the population was adrift, all the anchors of established things torn loose. In the distracted South whole families, detesting the new ways of life now thrust upon them, and seeing no way of retrieving their fortunes in the country which had borne them, broke away entirely from old associations and started on in the strange, vague American fashion of that day, in a hope of finding a newer and perhaps a better country. They moved by rail, by boat, by wagon, in such way as they could. The old Mountain Road from Virginia was trodden by many a disheartened family who found Kentucky also smitten, Missouri and Arkansas no better. The West, the then unknown and fascinating West, still remained beyond, a land of hope, perhaps a land of refuge. The men of the lower South, also stirred and unsettled, moved in long columns to the West and Southwest, following the ancient immigration into Texas. The men of Texas, citizens of a crude empire of unproved resources, likewise cast about them restlessly. Their cattle must some day find a market. To the north of them, still unknown and alluring, lay the new upper country known as the West.

In the North the story was the same. The young men, taken from the fields and marts to the camps and marches of the war, could not easily return to the staid ways of their earlier life. From New England to Michigan, from Michigan to Minnesota, many Northern families began to move also toward that West which offered at least opportunity for change. Thus there poured into the West from many different directions, but chiefly from two right-angling directions which intersected on the Plains, a diverse

population whose integers were later with phenomenal swiftness to merge and blend. As in the war the boldest fought, so in emigration the boldest travelled, and the West had the pick of the land. In Illinois and Iowa, after the war had ended, you might have seen a man in flapping blue army overcoat hewing timber for fences on the forgotten farms, or guiding the plough across the black reeking sod; but presently you must have also seen the streams of white-topped wagons, sequel to the white tented fields, moving on, pushing toward the West, the land of action and adventure, the land of hope and promise.

As all America was under canvas, it was not strange that Colonel Battersleigh should find his home in a tent, and that this tent should be pitched upon the Western Plains. Not that he had gone directly to the West after the mustering out of his regiment. To the contrary, his first abode had been in the city of New York, where during his brief stay he acquired a certain acquaintance. Colonel Battersleigh was always a striking figure, the more so by reason of his costume, which was invariably the same. His broad cavalry hat, his shapely varnished boots, his gauntlets, his sweeping cloak, made him fairly historic about the clubs. His air, lofty, assured, yet ever suave, showed that he classified himself cheerfully as being of the natural aristocracy of the earth. When Colonel Battersleigh had occasion to sign his name it was worth a dinner to see the process, so seriously did he himself regard it. "Battersleigh"—so stood the name alone, unsupported and self-sufficient. Seeing which inscription in heavy black lines, many a man wondered, considering that he had discovered an Old-World custom, and joining in the belief of the owner of the name that all the world must know the identity of Battersleigh.

What were the financial resources of Battersleigh after the cessation of his pay as a cavalry officer not even his best friends could accurately have told. It was rumoured that he was the commissioner in America of the

London Times. He was credited with being a Fellow of the Royal Geographical Society. That he had a history no one could doubt who saw him come down the street with his broad hat, his sweeping cloak, his gauntlets, his neatly varnished boots.

In reality Colonel Henry Battersleigh lived, during his city life, in a small, a very small room, up more than one night of stairs. This room, no larger than a tent, was military in its neatness. Battersleigh, bachelor and soldier, was in nowise forgetful of the truth that personal neatness and personal valour go well hand in hand. The bed, a very narrow one, had but meagre covering, and during the winter months its single blanket rattled to the touch. "There's nothing in the world so warm as newspapers, me boy," said Battersleigh. Upon the table, which was a box, there was displayed always an invariable arrangement. Colonel Battersleigh's riding whip (without which he was rarely seen in public) was placed upon the table first. Above the whip were laid the gauntlets, crossed at sixty degrees. On top of whip and gloves rested the hat, indented never more nor less. Beyond these, the personal belongings of Battersleigh of the Rile Irish were at best few and humble. In the big city, busy with reviving commerce, there were few who cared how Battersleigh lived. It was a vagrant wind of March that one day blew aside the cloak of Battersleigh as he raised his hat in salutation to a friend—a vagrant wind, cynical and merciless, which showed somewhat of the poverty with which Battersleigh had struggled like a soldier and a gentleman. Battersleigh, poor and proud, then went out into the West.

The tent in which Colonel Battersleigh was now writing was an old one, yellow and patched in places. In size it was similar to that of the bedroom in New York, and its furnishings were much the same. A narrow bunk held a bed over which there was spread a single blanket. It was silent in the tent, save for the scratching of the writer's pen; so that now and then there might easily have been heard a faint rustling as of paper. Indeed, this rustling was

caused by the small feet of the prairie mice, which now and then ran over the newspaper which lay beneath the blanket. Battersleigh's table was again a rude one, manufactured from a box. The visible seats were also boxes, two or three in number. Upon one of these sat Battersleigh, busy at his writing. Upon the table lay his whip, gloves, and hat, in exactly the same order as that which had been followed in the little chamber in the city. A strip of canvas made a carpet upon the hard earthen floor. A hanging cloth concealed a portion of the rear end of the tent. Such had been Battersleigh's quarters in many climes, under different flags, sometimes perhaps more luxurious, but nevertheless punctiliously neat, even when Fortune had left him servantless, as had happened now. Colonel Battersleigh as he wrote now and then looked out of the open door. His vision reached out, not across a wilderness of dirty roads, nor along a line of similar tents. There came to his ear no neighing of horses nor shouting of the captains, neither did there arise the din of the busy, barren city. He gazed out upon a sweet blue sky, unfretted by any cloud. His eye crossed a sea of faintly waving grasses. The liquid call of a mile-high mysterious plover came to him. In the line of vision from the tent door there could be seen no token of a human neighbourhood, nor could there be heard any sound of human life. The canvas house stood alone and apart. Battersleigh gazed out of the door as he folded his letter. "It's grand, just grand," he said. And so he turned comfortably to the feeding of his mice, which nibbled at his fingers intimately, as had many mice of many lands with Battersleigh.

CHAPTER V

THE TURNING OF THE ROAD

At the close of the war Captain Edward Franklin returned to a shrunken world. The little Illinois village which had been his home no longer served to bound his ambitions, but offered only a mill-round of duties so petty, a horizon of opportunities so restricted, as to cause in his mind a feeling of distress equivalent at times to absolute abhorrence. The perspective of all things had changed. The men who had once seemed great to him in this little world now appeared in the light of a wider judgment, as they really were—small, boastful, pompous, cowardly, deceitful, pretentious. Franklin was himself now a man, and a man graduated from that severe and exacting school which so quickly matured a generation of American youth. Tall, finely built, well set up, with the self-respecting carriage of the soldier and the direct eye of the gentleman, there was a swing in his step not commonly to be found behind a counter, and somewhat in the look of his grave face which caused men to listen when he spoke. As his hand had fitted naturally a weapon, so his mind turned naturally to larger things than those offered in these long-tilled fields of life. He came back from the war disillusionized, irreverent, impatient, and full of that surging fretfulness which fell upon all the land. Thousands of young men, accustomed for years to energy, activity, and a certain freedom from all small responsibility, were thrust back at once and asked to adjust themselves to the older and calmer ways of peace. The individual problems were enormous in the aggregate.

Before Franklin, as before many other young men suddenly grown old, there lay the necessity of earning a livelihood, of choosing an occupation. The paternal arm of the Government, which had guided and controlled so long, was now withdrawn. The young man must think for himself. He must choose his future, and work out his way therein alone and unsupported. The necessity of this choice, and the grave responsibility assumed in choosing, confronted and oppressed Edward Franklin as they did many another young man, whose life employment had not been naturally determined by family or business associations. He stood looking out over the way of life. There came to his soul that indefinite melancholy known by the young man not yet acquainted with the mysteries of life. Franklin had been taken away at the threshold of young manhood and crowded into a rude curriculum, which taught him reserve as well as self-confidence, but which robbed him of part of the natural expansion in experience which is the ordinary lot of youth. He had seen large things, and had become intolerant of the small. He wished to achieve life, success, and happiness at one assault, and rebelled at learning how stubborn a resistance there lies in that perpetual silent line of earth's innumerable welded obstacles. He grieved, but knew not why he grieved. He yearned, but named no cause.

To this young man, ardent, energetic, malcontent, there appeared the vision of wide regions of rude, active life, offering full outlet for all the bodily vigour of a man, and appealing not less powerfully to his imagination. This West—no man had come back from it who was not eager to return to it again! For the weak and slothful it might do to remain in the older communities, to reap in the long-tilled fields, but for the strong, for the unattached, for the enterprising, this unknown, unexplored, uncertain country offered a scene whose possibilities made irresistible appeal. For two years Franklin did the best he could at reading law in a country office. Every time he looked out of the window he saw a white-topped wagon moving West. Men came back and told him of this West. Men wrote letters

from the West to friends who remained in the East. Presently these friends also, seized upon by some vast impulse which they could not control, in turn arranged their affairs and departed for the West. Franklin looked about him at the squat buildings of the little town, at the black loam of the monotonous and uninviting fields, at the sordid, set and undeveloping lives around him. He looked also at the white wagons moving with the sun. It seemed to him that somewhere out in the vast land beyond the Missouri there beckoned to him a mighty hand, the index finger of some mighty force, imperative, forbidding pause.

The letter of Battersleigh to his friend Captain Franklin fell therefore upon soil already well prepared. Battersleigh and Franklin had been friends in the army, and their feet had not yet wandered apart in the days of peace. Knowing the whimsicality of his friend, and trusting not at all in his judgment of affairs, Franklin none the less believed implicitly in the genuineness of his friendship, and counted upon his comradeship as a rallying point for his beginning life in the new land which he felt with strange conviction was to be his future abiding place. He read again and again the letter Battersleigh had written him, which, in its somewhat formal diction and informal orthography, was as follows:

"To Capt. Edw. Franklin, Bloomsbury, Ill.

"MY DEAR NED: I have the honour to state to you that I am safely arrived and well-established at this place, Ellisville, and am fully disposed to remain. At present the Railway is built no further than this point, and the Labourers under charge of the Company Engineers make the most of the population. There is yet but one considerable building completed, a most surprising thing to be seen in this wild Region. It is of stone and built as if to last forever. It is large as a Courthouse of one of your usual Towns, and might seem absurd in this country did it not suggest a former civilization

instead of one yet to come. It is full large enough for any Town of several thousand people. This is the property of the Co. that is building the Ry. It is said that the Co. will equip it fully, so that the country round about may depend upon it for Rations.

"There is another building, intended also for an Hotel, but of a different sort. This is called the Cottage, and is much frequented by fellows of the lower sort, the Labourers and others now stopping in this vicinity. It is the especial rendezvous of many men concerned with the handling of Cattle. I must tell you that this is to be a great market for these Western Beeves. Great numbers of these cattle are now coming in to this country from the far South, and since the Ry. is yet unable to transport these Animals as they arrive there is good Numbers of them in the country hereabout, as well as many strange persons curiously known as Cowboys or Cow-Punchers, which the same I may call a purely Heathan sort. These for the most part resort at the Cottage Hotel, and there is no peace in the Town at this present writing.

"For myself I have taken entry upon one hundred and sixty Acres Govt. Land, and live a little way out from the Town. Here I have my quarters under tent, following example of all men, for as yet there are scarce a dozen houses within fifty Miles. I find much opportunity for studies to be presented to the London Times, which paper as you know I represent, and I prosecute with great hopes the business of the British American Colonization Society, of which corporation I am resident Agent.

"I have Chosen this point because it was the furtherest one yet reached by Rail. Back of this, clean to the Missouri River, new Towns have grown up in most wonderful fashion. I have been advised that it is highly desirable to be in at the beginning in this Country if one is to stay in the Hunt, therefore I have come to a Town which has just Begun. Believe me, dear Ned, it is

the beginning of a World. Such chances are here, I am Sure as do not exist in any other Land, for behind this land is all the Richer and older Parts, which are but waiting to pour money and men hither so soon as the Ry. shall be Fully completed. I have heard of many men who have made Fortunes since the War. It is truly a rapid Land.

"I am persuaded, my dear boy, that this is the place for you to come. There are an Hundred ways in which one may earn a Respectable living, and I find here no Class Distinction. It is an extraordinary fact that no man and no profession ranks another here. One man is quite good as another.

"Of society I regret to say we can not as yet offer you much. There is yet but four women in the place and for the men a Part seem mostly busy consuming Whisky at the Cottage, at which I wonder, for I have found the Whisky very bad. Let this not dishearten you, for many things will change when the Ry. is completed. We are to have Shops here, and I understand this is to be the seat of the county. A year from now, as I am told, we shall have 2,000 Persons living here, and in five years this will be a City. Conceive the opportunity meantime. The Cattle business is bound to grow, and I am advised that all this land will Ultimately be farmed and prove rich as that through which I Past in coming out. You are welcome, my dear Ned, as I am sure you know, to half my blankets and rations during your stay here, however long same may be, and I most cordially invite you to come out and look over this Country, nor do I have the smallest doubt that it will seem to you quite as it does to me, and I shall hope that we make a Citizen of you.

"Above all is this a man's country. For sport it has no equal I have ever seen, and as you know I have visited some Parts of the World. The Buffaloes is to be found by Millions within a few miles of this point, and certain of the savidge Tribes still live but a short journey from this point, though now the Army has pretty much Reduced them. Antelopes there is all

around in thousands, and many Wolves. It is, indeed, my boy, as I have told you, a country entirely new. I have travelled much, as you know, and am not so Young as yourself, but I must say to you that your friend Batty feels like a boy again. There is something Strange in this air. The sky is mostly clear, and the Air very sweet. The wind is steady but pleasant, and a man may live in comfort the year round as I am told. I am but new here as yet myself, but am fully disposed, as they say in the strange language here, to drive my Stake. I want you, my dear boy, also to drive Yours beside me, and to that Effect I beg to extend you whatever Aid may lie in my Power.

"Hoping that you may receive this communication duly, and make reply to

Same, and hoping above all things that I may soon meet again my Companion of the 47th., I beg to subscribe myself, my dear boy, ever your Obdt. & Affect. Friend,

"BATTERSLEIGH.

"P.S.—Pray Herild your advent by a letter & bring about 4 lbs. or 5 lbs. of your Favourite Tea, as I am Short of Same."

The letter ended with Battersleigh's best flourish. Franklin turned it over again and again in his hand and read it more than once as he pondered upon its message. "Dear old fellow," he said; "he's a good deal of a Don Quixote, but he never forgets a friend. Buffalo and Indians, railroads and hotels—it must at least be a land of contrasts!"

CHAPTER VI

EDWARD FRANKLIN, LAWYER

Edward Franklin had taken up his law studies in the office of Judge Bradley, the leading lawyer of the little village of Bloomsbury, where Franklin was born, and where he had spent most of his life previous to the time of his enlistment in the army. Judge Bradley was successful, as such matters go in such communities, and it was his open boast that he owed his success to himself and no one else. He had no faith in such mythical factors as circumstances in the battle of life. This is the common doctrine of all men who have arrived, and Judge Bradley had long since arrived, in so far as the possibilities of his surroundings would admit. His was the largest law library in the town. He had the most imposing offices—a suite of three rooms, with eke a shiny base-burner in the reception room. His was one of the three silk hats in the town.

Thirty-five years earlier, a raw youth from old Vermont, Hollis N. Bradley had walked into the embryonic settlement of Bloomsbury with a single law book under his arm, and naught but down upon his chin. He pleaded his first cause before a judge who rode circuit over a territory now divided into three Congressional districts. He won his first case, for his antagonist was even more ignorant than he. As civilization advanced, he defended fewer men for stealing hogs, and more for murder and adultery. His practice grew with the growth of the population of the country about

him. He was elected county attorney, local counsel for the railroad, and judge of the circuit court. He was mentioned for gubernatorial honours, and would perhaps have received the party nomination but for the breaking out of the civil war. Not fancying the personal risks of the army, he hired a substitute, and this sealed his political fate; for Illinois at that time did not put in power men who sent substitutes to the war. None the less, the lands and moneys of the most prominent lawyer of the place kept him secure, and human memories are short; so that, when Edward Franklin and others of the young men of Bloomsbury returned from the war, they saw upon the streets of the little town, as they had seen before they went away, the tall form, the portly front, the smooth-shaven face, and the tall silk hat of Judge Hollis N. Bradley, who had in every sense survived the war.

It was an immemorial custom in Bloomsbury for the youth who had aspirations for a legal career to "read law" in Judge Bradley's office. Two of his students had dropped their books to take up rifles, and they came not back to their places. They were forgotten, save once a year, upon Decoration Day, when Judge Bradley made eloquent tribute above their graves. Upon such times Judge Bradley always shed tears, and always alluded to the tears with pride. Indeed, his lachrymal ability was something of which he had much right to be proud, it being well known in the legal profession that one's fees are in direct proportion to his ability to weep. Judge Bradley could always weep at the right time before a Jury, and this facility won him many a case. Through no idle whim had public sentiment, even after the incident of the substitute, confirmed him in his position as the leading lawyer of Bloomsbury.

It was therefore predetermined that Edward Franklin should go into the office of Judge Bradley to begin his law studies, after he had decided that the profession of the law was the one likely to offer him the best career. In making his decision, Franklin was actuated precisely as are many young

men who question themselves regarding their career. He saw the average results of the lives of others in a given calling, and conceived, without consulting in most jealous scrutiny his own natural fitnesses and preferences, that he might well succeed in that calling because he saw others so succeeding. Already there were two dozen lawyers in Bloomsbury, and it was to be questioned whether they all did so well as had Judge Bradley in the hog-stealing epoch of the local history. Yet it was necessary for him to take up something by way of occupation, and it resolved itself somewhat into a matter of cancellation. For the profession of medicine he had a horror, grounded upon scenes of contract surgery upon the fields of battle. The ministry he set aside. From commerce, as he had always seen it in his native town, twelve hours a day of haggling and smirking, he shrank with all the impulses of his soul. The abject country newspaper gave him no inkling of that fourth estate which was later to spring up in the land. Arms he loved, but there was now no field for arms. There were no family resources to tide him over the season of experiment, and, indeed, but for a brother and a sister, who lived in an adjoining farming community, he had no relatives to be considered in his plans. Perforce, then, Franklin went into the law, facing it somewhat as he had the silent abattis, as with a duty to perform. Certainly, of all students, Judge Bradley had never had a handsomer, a more mature, or a more reluctant candidate than this same Edward Franklin, late captain in the United States Army, now getting well on into his twenties, grave, silent, and preoccupied, perhaps a trine dreamy. He might or might not be good material for a lawyer; as to that, Judge Bradley did not concern himself. Young men came into his office upon their own responsibility.

It was one of the unvarying rules of Judge Bradley's office, and indeed this was almost the only rule which he imposed, that the law student within his gates, no matter what his age or earlier servitude, should each morning sweep out the office, and should, when so requested, copy out any law

papers needing to be executed in duplicate. So long as a student did these things, he was welcome as long as he cared to stay. The judge never troubled himself about the studies of his pupil, never asked him a question, indeed never even told him what books it might be best to read, unless this advice were asked voluntarily by the student himself. He simply gave the candidate a broom, a chair, and the freedom of the library, which latter was the best law library in the town. What more could one ask who contemplated a career at law? It was for him to work out his own salvation; and to sweep the stairs each morning.

Edward Franklin accepted his seat in Judge Bradley's office without any reservations, and he paid his daily fee of tenure as had all the other students before him, scorning not the broom. Indeed, his conscience in small things augured well, for it was little cousin to his conscience in great things. Ardent, ambitious, and resolute, he fell upon Blackstone, Chitty, and Kent, as though he were asked to carry a redoubt. He read six, eight, ten hours a day, until his head buzzed, and he forgot what he had read. Then at it all over again, with teeth set. Thus through more than a year he toiled, lashed forward by his own determination, until at length he began to see some of the beautiful first principles of the law—that law, once noble and beneficent, now degraded and debased; once designed for the protection of the individual, now used by society as the instrument for the individual's extermination. So in his second year Franklin fared somewhat beyond principles merely, and got into notes and bills, torts, contracts, and remedies. He learned with a shiver how a promise might legally be broken, how a gift should be regarded with suspicion, how a sacred legacy might be set aside. He read these things again and again, and forced them into his brain, so that they might never be forgotten; yet this part of the law he loved not so much as its grand first principles of truth and justice.

One morning, after Franklin had finished his task of sweeping down the stairs, he sat him down by the window with Battersleigh's letter in his hand; for this was now the third day since he had received this letter, and it had been in his mind more vividly present than the pages of the work on contracts with which he was then occupied. It was a bright, fresh morning in the early spring. A little bird was singing somewhere near the window. From where Franklin sat he could see the green grass just starting, over in the courthouse yard. A long and lazy street lay in perspective before the window, and along it, out beyond the confines of the town, there reached the flat monotony of the dark prairie soil. The leaves of the soft maples were beginning to show over there, near the village church. A dog crossed the street, pausing midway of the crossing to scratch his ear. The cart of the leading grocer was hitched in front of his store, and an idle citizen or two paused near by to exchange a morning greeting. All the little, uneventful day was beginning, as it had begun so many times before here in this little, uneventful town, where the world was finished, never more to change. Franklin shuddered. Was this, then, to be his life? He turned to the rows of scuffed-backed law books on their shelves. Then he turned again to his letter, and to the window, and to the birds and the grass. He caught himself noting how long the dog's hind leg looked, how impossible the angle between the fore leg and the spine, as it half sat in flea-compelled contortions.

There came a regular tread upon the stair, as there had always for years come at this hour of half past seven in the morning, rain or shine. Judge Bradley entered, tall, portly, smooth shaven, his silk hat pushed back upon his brow, as was his fashion. Franklin turned to make the usual morning salutation.

"Good-morning, Ned," said the Judge, affably.

"Good-morning, Judge," said Franklin. "I hope you are well."

"Yes, thank you. Nothing ever the matter with me. How are things coming?"

"Oh, all right, thank you."

This was the stereotyped form of the daily greeting between the two. Judge Bradley turned as usual to his desk, but, catching sight of the letter still held in Franklin's hand, remarked carelessly:

"Got a letter from your girl?"

"Not so lucky," said Franklin. "From a friend."

Silence resulted. Judge Bradley opened his desk, took off his coat and hung it on a nail, after his custom, thereafter seating himself at his desk, with the official cough which signified that the campaign of the day had begun. He turned over the papers for a moment, and remarked absent-mindedly, and more to be polite than because the matter interested him, "Friend, eh?"

"Yes," said Franklin, "friend, out West"; and both relapsed again into silence. Franklin once more fell to gazing out of the window, but at length turned toward the desk and pulled over his chair to a closer speaking distance.

"Judge Bradley," said he, "I shouldn't wonder if I could pass my examination for the bar."

"Well, now," said the Judge, "I hope you can. That's nice. Goin' to hang out your own shingle, eh?"

"I might, if I got my license."

"Oh, that's easy," replied the other; "it's mostly a matter of form. The court'll appoint a committee of three members of the bar, an' they'll tell you when they want to see you for the circus—some evening after court. They'll ask you where you've been readin' law, an' for how long. If you tell 'em you've read in my office, it'll be all right. I never knew 'em to fail to pass a student that had read with me—it wouldn't be professional courtesy to me. You'll go through all right, don't worry. You want to post up on a few such questions as, 'What is the law?' and 'What are the seven—or is it eight?—forms of actions at law?' Then you want to be able to answer on 'What was the rule in Shelley's Case?' There's sure to be some fool or other that'll ask you that question, just to show off—I don't remember what the d——d thing is myself—and you'll never hear of it again; but you get fixed to answer them three questions, an' you can be admitted to the bar all right anywhere in the State of Illinois, or leastways in this county. Then it's customary for a fellow just admitted to the bar to have a little jug around at his office before court adjourns—just to comply with a professional custom, you know. No trouble about it—not in the least. I'll see you through."

"I am clear in my own mind that I don't know much about the law," said Franklin, "and I should not think of going up for examination if that ended my studies in the profession. If I were intending to go into practice here, sir, or near by, I should not think of applying for admission for at least another year. But the fact is, I'm thinking of going away."

"Goin' away?" Judge Bradley straightened up, and his expression if anything was one of relief. He had had his own misgivings about this grave-faced and mature young man should he go into the practice at the Bloomsbury bar. It was well enough to encourage such possibilities to take

their test in some other locality. Judge Bradley therefore became more cheerful. "Goin' away, eh?" he said. "Where to?"

"Out West," said Franklin, unconsciously repeating the phrase which was then upon the lips of all the young men of the country.

"Out West, eh?" said the judge, with still greater cheerfulness. "That's right, that's right. That's the place to go to, where you can get a better chance. I came West in my day myself, though it isn't West now; an' that's how I got my start. There's ten chances out there to where there's one here, an' you'll get better pay for what you do. I'd advise it, sir—I'd advise it; yes, indeed."

"I think it will be better," said Franklin calmly.

"Hate to lose you," said the judge, politely—"hate to lose you, of course, but then a young man's got to make his way; he's got to get his start."

Franklin sat silent for a few moments, musingly staring out of the window, and listening, without active consciousness of the fact, to the music of the singing bird which came from somewhere without. At length he rose and turned toward the elder man.

"If you please, judge," said he, "get the committee appointed for to-night if you can. I'll take the examination now."

"Yes? You are in a hurry!"

"Then to-morrow I'll go over and say good-bye to my sister; and the next day I think I'll follow the wagons West. I've not much to put in a wagon, so I can go by rail. The road's away west of the Missouri now, and my letter comes from the very last station, at the head of the track."

"So?" said the Judge. "Well, that ought to be far enough, sure, if you go clean to the jumping-off place. Goin' to leave your sweetheart behind you, eh?"

Franklin laughed. "Well, I don't need face that hardship," said he, "for I haven't any sweetheart."

"Ought to have," said the judge. "You're old enough. I was just twenty-two years old when I was married, an' I had just one hundred dollars to my name. I sent back to Vermont for my sweetheart, an' she came out, an' we were married right here. I couldn't afford to go back after her, so she came out to me. An' I reckon," added he, with a sense of deep satisfaction, "that she hasn't never regretted it."

"Well, I don't see how love and law can go together," said Franklin sagely.

"They don't," said the judge tersely. "When you get so that you see a girl's face a-settin' on the page of your law book in front of you, the best thing you can do is to go marry the girl as quick as the Lord'll let you. It beats the world, anyhow, how some fellows get mixed up, and let a woman hinder 'em in their work. Now, in my case, I never had any such a trouble."

"And I hope I never shall," said Franklin.

"Well, see that you don't. You hit it close when you said that love an' law don't go together. Don't try to study 'em both at the same time; that's my advice, an' I don't charge you anything for it, seeing it's you." With a grin at his little jest, Judge Bradley turned back to his desk and to his little world.

CHAPTER VII

THE NEW WORLD

Franklin crossed the Missouri River, that dividing stream known to a generation of Western men simply as "the River," and acknowledged as the boundary between the old and the new, the known and the untried. He passed on through well-settled farming regions, dotted with prosperous towns. He moved still with the rolling wheels over a country which showed only here and there the smoke of a rancher's home. Not even yet did the daring flight of the railway cease. It came into a land wide, unbounded, apparently untracked by man, and seemingly set beyond the limit of man's wanderings. Far out in the heart of this great gray wilderness lay the track-end of this railroad pushing across the continent. When Franklin descended from the rude train he needed no one to tell him he had come to Ellisville. He was at the limit, the edge, the boundary! "Well, friend," said the fireman, who was oiling the engine as he passed, and who grinned amiably as he spoke, "you're sure at the front now."

Franklin had not advised his friend Battersleigh of his intended arrival, but as he looked about him he saw that he had little need for any guide.

Ellisville as an actual town did not yet exist. A rude shanty or two and a line of tents indicated the course of a coming street. The two hotels mentioned by Battersleigh were easily recognised, and indeed not to be

evaded. Out of the middle of this vast, treeless plain the great stone hotel arose, with no visible excuse or palliation, a deliberate affront to the solitude which lay far and wide about. Even less within the bounds of reason appeared the wooden building which Franklin learned was the Cottage. "Surely," thought he, "if the railroad company had been mad in building the stone hotel, much worse must have been the man who erected this rambling wooden structure, hoping for customers who must come a thousand miles." Yet was this latter mad act justified before his very eyes. The customers had come. More than forty cow ponies stood in the Cottage corral or in the street near by. Afar there swelled the sound of morning revelries.

Franklin wanted breakfast, and instinctively turned toward the stone hotel at the depot, where he learned were quartered the engineers and contractors on the railroad work. He seated himself at one of the many tables in the vast, barren dining room. Half the attendants were haughty young women, and half rather slovenly young men.

Franklin fell under the care of one of the latter, who greeted him with something of the affection of an old acquaintance. Coming to the side of his chair, and throwing an arm carelessly across Franklin's shoulder, the waiter asked in a confidential tone of voice, "Well, Cap, which'll you have, hump or tongue?" Whereby Franklin discovered that he was now upon the buffalo range, and also at the verge of a new etiquette.

After breakfast Franklin paused for a moment at the hotel office, almost as large and empty as the dining room. Different men now and then came and passed him by, each seeming to have some business of his own. The clerk at the hotel asked him if he wanted to locate some land. Still another stranger, a florid and loosely clad young man with a mild blue eye, approached him and held some converse.

"Mornin', friend," said the young man.

"Good-morning," said Franklin.

"I allow you're just in on the front," said the other.

"Yes," said Franklin, "I came on the last train."

"Stay long?"

"Well, as to that," said Franklin, "I hardly know, but I shall look around a bit."

"I didn't know but maybe you'd like to go south o' here, to Plum Centre. I run the stage line down there, about forty-six miles, twict a week. That's my livery barn over there—second wooden building in the town. Sam's my name; Sam Poston."

"I never heard of Plum Centre," said Franklin, with some amusement. "Is it as large a place as this?"

"Oh, no," said Sam hurriedly, "not nigh as large as this, but it's a good town, all right. Lots on the main street there sold for three hundred dollars last week. You see, old man Plum has got it figgered out that his town is right in the middle of the United States, ary way you measure it. We claim the same thing for Ellisville, and there you are. We've got the railroad, and they've got my stage line. There can't no one tell yet which is goin' to get the bulge on the other. If you want to go down there, come over and I'll fix you up."

Franklin replied that he would be glad to do so in case he had the need, and was about to turn away. He was interrupted by the other, who stopped him with an explosive "Say!"

"Yes," said Franklin.

"Did you notice that girl in the dining room, pony-built like, slick, black-haired, dark eyes—wears glasses? Say, that's the smoothest girl west of the river. She's waitin', in the hotel here, but say" (confidentially), "she taught school onct—yes, sir. You know, I'm gone on that girl the worst way. If you get a chanct to put in a word for me, you do it, won't you?"

Franklin was somewhat impressed with the swiftness of acquaintanceships and of general affairs in this new land, but he retained his own tactfulness and made polite assurances of aid should it become possible.

"I'd be mightily obliged," said his new-found friend. "Seems like I lose my nerve every time I try to say a word to that girl. Now, I plum forgot to ast you which way you was goin'. Do you want a team?"

"Thank you," said Franklin, "but I hardly think so. I want to find my friend Colonel Battersleigh, and I understand he lives not very far away."

"Oh, you mean old Batty. Yes, he lives just out south a little ways—Section No. 9, southeast quarter. I suppose you could walk."

"I believe I will walk, if you don't mind," said Franklin. "It seems very pleasant, and I am tired of riding."

"All right, so long," said Sam. "Don't you forgit what I told you about that Nora girl."

Franklin passed on in the direction which had been pointed out to him, looking about him at the strange, new country, in which he felt the proprietorship of early discovery. He drew in deep breaths of an air delightfully fresh, squaring his shoulders and throwing up his head

instinctively as he strode forward. The sky was faultlessly clear. The prospect all about him, devoid as it was of variety, was none the less abundantly filling to the eye. Far as the eye could reach rolled an illimitable, tawny sea. The short, harsh grass near at hand he discovered to be dotted here and there with small, gay flowers. Back of him, as he turned his head, he saw a square of vivid green, which water had created as a garden spot of grass and flowers at the stone hotel. He did not find this green of civilization more consoling or inspiring than the natural colour of the wild land that lay before him. For the first time in his life he looked upon the great Plains, and for the first time felt their fascination. There came to him a subtle, strange exhilaration. A sensation of confidence, of certainty, arose in his heart. He trod as a conqueror upon a land new taken. All the earth seemed happy and care-free. A meadow lark was singing shrilly high up in the air; another lark answered, clanking contentedly from the grass, whence in the bright air its yellow breast showed brilliantly.

As Franklin was walking on, busy with the impressions of his new world, he became conscious of rapid hoof-beats coming up behind him, and turned to see a horseman careering across the open in his direction, with no apparent object in view beyond that of making all the noise possible to be made by a freckled-faced cowboy who had been up all night, but still had some vitality which needed vent.

"Eeeeeee-yow-heeeeeee!" yelled the cowboy, both spurring and reining his supple, cringing steed. "Eeeeeee-yip-yeeeeee!" Thus vociferating, he rode straight at the footman, with apparently the deliberate wish to ride him down. He wist not that the latter had seen cavalry in his day, and was not easily to be disconcerted, and, finding that he failed to create a panic, he pulled up with the pony's nose almost over Franklin's shoulder.

"Hello, stranger," cried the rider, cheerfully; "where are you goin', this bright an' happy mornin'?"

Franklin was none too pleased at the method of introduction selected by this youth, but a look at his open and guileless face forbade the thought of offence. The cowboy sat his horse as though he was cognizant of no such creature beneath him. His hand was held high and wabbling as he bit off a chew from a large tobacco plug the while he jogged alongside.

Franklin made no immediate reply, and the cowboy resumed.

"Have a chew?" he said affably, and looked surprised when Franklin thanked him but did not accept.

"Where's yore hoss, man?" asked the new-comer with concern. "Where you goin', headin' plum south, an' 'thout no hoss?"

"Oh," said Franklin, smiling, "I'm not going far; only over south a mile or so. I want to find a friend. Colonel Battersleigh. I think his place is only a mile or so from here."

"Sure," said the cowboy. "Old Batty—I know him. He taken up a quarter below here. Ain't got his shack up yet. But say, that's a full mile from yer. You ain't goin' to walk a mile, are you?"

"I've walked a good many thousand miles," said Franklin, "and I shouldn't wonder if I could get over this one."

"They's all kind of fools in the world," said the rider sagely, and with such calm conviction in his tone that again Franklin could not take offence. They progressed a time in silence.

"Say," said the cowboy, after a time—"say, I reckon I kin lick you."

"Do you think so?" said Franklin calmly, pulling up his shoulders and feeling no alarm.

"Shorely I do," said the other; "I reckon I kin lick you, er beat you shootin', er throw you down."

"Friend," said Franklin judicially, "I have a good many doubts about your being able to do all that. But before we take it up any further I would like to ask you something."

"Well, whut?"

"I'd just like to ask you what makes you tell me that, when I'm a perfect stranger to you, and when perhaps you may never see me again?"

"Well, now," said the cowboy, pushing back his hat and scratching his head thoughtfully, "blame if I know why, but I just 'lowed I could, sorter. An' I *kin*!"

"But why?"

"Say, you're the d——dest feller I ever did see. You got to have a reason fer everything on earth?" His tone became more truculent. "First place, 'f I didn't have no other reason, I kin lick ary man on earth that walks."

"Friend," said Franklin, "get down off that horse, and I'll give you a little wrestle to see who rides. What's your name, anyhow?"

"Whoa!" said the other. "Name's Curly." He was on the ground as he said this last, and throwing the bridle over the horse's head. The animal stood as though anchored. Curly cast his hat upon the ground and trod upon it in a sort of ecstasy of combat. He rushed at Franklin without argument or premeditation.

The latter had not attended country school for nothing. Stepping lightly aside, he caught his ready opponent as he passed, and, with one arm about his neck, gave him a specimen of the "hip-lock" which sent him in the air over his own shoulder. The cowboy came down much in a heap, but presently sat up, his hair somewhat rumped and sandy. He rubbed his head and made sundry exclamations of surprise. "Huh!" said he. "Well, I'm d——d! Now, how you s'pose that happened? You kain't do that again," he said to Franklin, finally.

"Shouldn't wonder if I could," said Franklin, laughing.

"Look out fer me—I'm a-comin'!" cried Curly.

They met more fairly this time, and Franklin found that he had an antagonist of little skill in the game of wrestling, but of a surprising wiry, bodily strength. Time and again the cowboy writhed away from the hold, and came back again with the light of battle in his eye. It was only after several moments that he succumbed, this time to the insidious "grapevine." He fell so sharply that Franklin had difficulty in breaking free in order not to fall upon him. The cowboy lay prone for a moment, then got up and dusted off his hat.

"Mount, friend," said he, throwing the bridle back over the horse's neck without other word. "You done it fair!"

"I'll tell you what we'll do," said Franklin, extending his hand. "We'll just both walk along together a way, if you don't mind. I'll get me a horse pretty soon. You see, I'm a new man here—just got in this morning, and I haven't had time to look around much yet. I thought I'd go out and meet my friend, and perhaps then we could talk over such things together."

"Shore," said Curly. "Why didn't you tell me? Say, ole Batty, he's crazy to ketch a whole lot o' hosses out'n a band o' wild hosses down to the Beaver Creek. He always a-wantin' me to help him ketch them hosses. Say, he's got a lot o' sassafiddity, somethin' like that, an' he says he's goin' to soak some corn in that stuff an' set it out fer hosses. Says it'll make 'em *loco*, so'st you kin go right up an' rope 'em. Now, ain't that the d——dest fool thing yet? Say, some o' these pilgrims that comes out here ain't got sense enough to last over night."

"Battersleigh is fond of horses," said Franklin, "and he's a rider, too."

"That's so," admitted Curly. "He kin ride. You orter see him when he gits his full outfit on, sword *an'* pistol by his side, uh-huh!"

"He has a horse, then?"

"Has a boss? Has a hoss—has—what? Why, o' course he has a boss. Is there anybody that ain't got a hoss?"

"Well, I haven't," said Franklin.

"You got this one," said Curly.

"How?" said Frank, puzzled.

"Why, you won him."

"Oh, pshaw!" said Franklin. "Nonsense! I wasn't wrestling for your horse, only for a ride. Besides, I didn't have any horse put up against yours. I couldn't lose anything."

"That's so," said Curly. "I hadn't thought of that. Say, you seem like a white sort o' feller. Tell you what I'll just do with you. O' course, I was

thinkin' you'd win the whole outfit, saddle an' all. I think a heap o' my saddle, an' long's you ain't got no saddle yet that you have got used to, like, it don't make much difference to you if you get another saddle. But you just take this here hoss along. No, that's all right. I kin git me another back to the corral, just as good as this one. Jim Parsons, feller on the big bunch o' cows that come up from the San Marcos this spring, why, he got killed night before last. I'll just take one o' his hosses, I reckon. I kin fix it so'st you kin git his saddle, if you take a notion to it."

Franklin looked twice to see if there was affectation in this calm statement, but was forced, with a certain horror, to believe that his new acquaintance spoke of this as a matter of fact, and as nothing startling. He had made no comment, when he was prevented from doing so by the exclamation of the cowboy, who pointed out ahead.

"There's Batty's place," said he, "an' there's Batty himself. Git up, quick; git up, an' ride in like a gentleman. It's bad luck to walk."

Franklin laughed, and, taking the reins, swung himself into the saddle with the ease of the cavalry mount, though with the old-fashioned grasp at the cantle, with the ends of the reins in his right hand.

"Well, that's a d——d funny way gittin' on top of a hoss," said Curly. "Are you 'fraid the saddle's goin' to git away from you? Better be 'fraid 'bout the hoss.—Git up, Bronch!"

He slapped the horse on the hip with his hat, and gave the latter a whirl in the air with a shrill "Whooooop-eee!" which was all that remained needful to set the horse off on a series of wild, stiff-legged plunges—the "bucking" of which Franklin had heard so much; a manoeuvre peculiar to the half-wild Western horses, and one which is at the first experience a desperately difficult one for even a skilful horseman to overcome. It perhaps did not

occur to Curly that he was inflicting any hardship upon the newcomer, and perhaps he did not really anticipate what followed on the part either of the horse or its rider. Had Franklin not been a good rider, and accustomed to keeping his head while sitting half-broken mounts, he must have suffered almost instantaneous defeat in this sudden encounter. The horse threw his head down far between his fore legs at the start, and then went angling and zigzagging away over the hard ground in a wild career of humpbacked antics, which jarred Franklin to the marrow of his bones. The air became scintillant and luminously red. His head seemed filled with loose liquid, his spine turned into a column of mere gelatine. The thudding of the hoofs was so rapid and so punishing to his senses that for a moment he did not realize where he actually was. Yet with the sheer instinct of horsemanship he clung to the saddle in some fashion, until finally he was fairly forced to relax the muscular strain, and so by accident fell into the secret of the seat—loose, yielding, not tense and strung.

"Go it, go it—whoop-e-e-e!" cried Curly, somewhere out in a dark world. "Ee-eikee-hooo! Set him fair, pardner! Set him fair, now! Let go that leather! Ride him straight up! That's right!"

Franklin had small notion of Curly's locality, but he heard his voice, half taunting and half encouraging, and calling on all his pluck as he saw some hope of a successful issue, he resolved to ride it out if it lay within him so to do. He was well on with his resolution when he heard another voice, which he recognised clearly.

"Good boy, Ned," cried out this voice heartily, though likewise from some locality yet vague. "R-ride the divil to a finish, me boy! Git up his head, Ned! Git up his head! The murdering haythin' brute! Kill him! Ride him out!"

And ride him out Franklin did, perhaps as much by good fortune as by skill, though none but a shrewd horseman would have hoped to do this feat. Hurt and jarred, he yet kept upright, and at last he did get the horse's head up and saw the wild performance close as quickly as it had begun. The pony ceased his grunting and fell into a stiff trot, with little to indicate his hidden pyrotechnic quality. Franklin whirled him around and rode up to where Battersleigh and Curly had now joined. He was a bit pale, but he pulled himself together well before he reached them and dismounted with a good front of unconcern. Battersleigh grasped his hand in both his own and greeted him with a shower of welcomes and of compliments. Curly slapped him heartily upon the shoulders.

"You're all right, pardner," said he. "You're the d——dest best pilgrim that ever struck this place, an' I kin lick ary man that says differ'nt. He's yore horse now, shore."

"And how do ye do, Ned? God bless ye!" said Battersleigh a moment later, after things had become more tranquil, the horse now falling to cropping at the grass with a meekness of demeanour which suggested innocence or penitence, whichever the observer chose. "I'm glad to see ye; glad as ivver I was in all me life to see a livin' soul! Why didn't ye tell ye was coming and not come ridin' like a murderin' Cintaur—but ay, boy, ye're a rider—worthy the ould Forty-siventh—yis, more, I'll say ye might be a officer in the guards, or in the Rile Irish itself, b'gad, yes, sir!—Curly, ye divvil, what do ye mean by puttin' me friend on such a brute, him the first day in the land? And, Ned, how are ye goin' to like it here, me boy?"

Franklin wiped his forehead as he replied to Battersleigh's running fire of salutations.

"Well, Battersleigh," he said, "I must say I've been pretty busy ever since I got here, and so far as I can tell at this date, I'm much disposed to think

this is a strange and rather rapid sort of country you've got out here."

"Best d——n pilgrim ever hit this rodeo!" repeated Curly, with conviction.

"Shut up, Curly, ye divvil!" said Battersleigh. "Come into the house, the both of you. It's but a poor house, but ye're welcome.—An' welcome ye are, too, Ned, me boy, to the New World."

CHAPTER VIII

THE BEGINNING

Franklin's foot took hold upon the soil of the new land. His soul reached out and laid hold upon the sky, the harsh flowers, the rasping wind. He gave, and he drank in. Thus grew the people of the West.

The effect upon different men of new and crude conditions is as various as the individuals themselves. To the dreamer, the theorist, the man who looks too far forward into the future or too far back into the past, the message of the environment may fall oppressively; whereas to the practical man, content to live in the present and to devise immediate remedies for immediate ills, it may come sweet as a challenge upon reserves of energy. The American frontier subsequent to the civil war was so vast, yet so rapid, in its motive that to the weak or the unready it was merely appalling. The task was that of creating an entire new world. So confronted, some sat down and wept, watching the fabric grow under the hands of others. Some were strong, but knew not how to apply their strength; others were strong but slothful. The man of initiative, of executive, of judgment and resource, was the one who later came to rule. There was no one class, either of rich or of poor, who supplied all these men. The man who had been poor in earlier life might set to work at once in bettering himself upon the frontier; and by his side, equally prosperous, might be one who in his earlier days had never needed to earn a dollar nor to thrash a fellow-man. Civilization at its later

stages drives the man into a corner. In its beginning it summons this same man out of the corner and asks him to rely upon himself for the great and the small things of life, thus ultimately developing that sturdy citizen who knows the value of the axiom, "*Ubi bene, ibi patria*." The great deeds, the great dreams become possible for nation or for individual only through the constant performance of small deeds. "For it must be remembered that life consists not of a series of illustrious actions or elegant enjoyments. The greater part of our time passes in compliance with necessities, in the performance of daily duties, in the removal of small inconveniences, in the procurement of petty pleasures; and we are well or ill at ease as the main stream of life glides on smoothly, or is ruffled by small obstructions and frequent interruptions."

Such philosophy was for Franklin unformulated. Care sat not on his heart. There were at first no problems in all the world for him. It was enough to feel this warm sun upon the cheek, to hear the sigh of the wind in the grasses, to note the nodding flowers and hear the larks busy with their joys. The stirring of primeval man was strong, that magnificent rebellion against bonds which has, after all, been the mainspring of all progress, however much the latter may be regulated by many intercurrent wheels. It was enough for Franklin to be alive. He stood straight, he breathed deep. This infection was in his blood.

"Think you, Ned, me boy," said Battersleigh, one day, as they stood at the tent door—"think you, this old gray world has been inhabited a million years, by billions of people, and yet here we have a chance to own a part of it, each for himself, here, at this last minute of the world's life! Do you mind that, what it means? Never you think a chance like that'll last forever. Yet here we are, before the law, and almost antedatin' the social ijee. It's the beginning man, it's the very beginnin' of things, where we're standin' here,

this very blessed day of grace. It's Batty has travelled all his life, and seen the lands, but never did Batty live till now!"

"It's grand," murmured Franklin, half dreamily and unconsciously repeating the very words of his friend, as he had done before.

Yet Franklin was well bitten of the ambition germ. It would serve him to run only in the front rank. He was not content to dream. He saw the great things ahead, and the small things that lay between. In a week he was the guiding mind in the affairs of the odd partnership which now sprang between him and his friend. Battersleigh would have lived till autumn in his tent, but Franklin saw that the need of a house was immediate. He took counsel of Curly, the cowboy, who proved guardian and benefactor. Curly forthwith produced a workman, a giant Mexican, a half-witted *mozo*, who had followed the cow bands from the far Southwest, and who had hung about Curly's own place as a sort of menial, bound to do unquestioningly whatever Curly bade. This curious being, a very colossus of strength, was found to be possessed of a certain knowledge in building houses after the fashion of that land—that is to say, of sods and earthen unbaked bricks—and since under his master's direction he was not less serviceable than docile, it was not long before the "claim" of Battersleigh was adorned with a comfortable house fit for either winter or summer habitation. Franklin meantime selected the body of land upon which he proposed to make settlers' entry, this happily not far from his friend, and soon this too had its house—small, crude, brown, meagre, but not uncomfortable to one who looked over the wide land and saw none better than his own. Then, little by little, they got precious coal from the railroad, this land having but scant fuel near at hand, and they built great stacks of the *bois des vaches*, that fuel which Nature left upon the plains until the railroads brought in coal and wood. Each man must, under the law, live upon his own land, but in practice this was no hardship. Each must of necessity cook for himself, sew

for himself, rely upon himself for all those little comforts which some men miss so keenly, and which others so quickly learn to supply. To these two this was but comfortable campaigning.

There remained ever before the minds of the settlers the desirability of laying this land under tribute, of forcing it to yield a livelihood. Franklin had no wish to depart from his original plans. He looked to see all the ways of the civilization he had left behind come duly hither to search him out. He was not satisfied to abandon his law books for the saddle, but as yet there was no possibility of any practice in the law, though meantime one must live, however simply. It was all made easy. That wild Nature, which had erected rude barriers against the coming of the white man, had at her reluctant recession left behind the means by which the white man might prevail. Even in the "first year" the settler of the new West was able to make his living. He killed off the buffalo swiftly, but he killed them in numbers so desperately large that their bones lay in uncounted tons all over a desolated empire. First the hides and then the bones of the buffalo gave the settler his hold upon the land, which perhaps he could not else have won.

Franklin saw many wagons coming and unloading their cargoes of bleached bones at the side of the railroad tracks. The heap of bones grew vast, white, ghastly, formidable, higher than a house, more than a bowshot long. There was a market for all this back in that country which had conceived this road across the desert. Franklin put out a wagon at this industry, hauling in the fuel and the merchandise of the raw plains. He bought the grim product of others who were ready to sell and go out the earlier again. He betimes had out more than one wagon of his own; and Battersleigh, cavalryman, became Batty, scouter for bones, while Franklin remained at the market. It was Franklin who, bethinking himself of the commercial difference between hard black horn and soft, spongy bone, began the earliest shipments of the tips of the buffalo horns, which he

employed a man to saw off and pack into sacks ready for the far-off button factories. Many tons of these tips alone he came to ship, such had been the incredible abundance and the incredible waste; and thus thriving upon an industry whose cause and whose possibility he deplored, he came to realize considerable sums and saw the question of subsistence pass rapidly into unconcern. Thus he had gone to work in his new and untried world with a direct and effective force. He dropped from him as a garment the customs and standards of the world he had left behind, and at once took his place as a factor in a new order of things.

Meantime the little town added building after building along its straggling street, each of these houses of a single story, with a large square of board front which projected deceptively high and wide, serving to cover from direct view the rather humiliating lack of importance in the actual building. These new edifices were for the most part used as business places, the sorts of commerce being but two—"general merchandise," which meant chiefly saddles and firearms, and that other industry of new lands which flaunts under such signboards as the Lone Star, the Happy Home, the Quiet Place, the Cowboy's Dream, and such descriptive nomenclature. Of fourteen business houses, nine were saloons, and all these were prosperous. Money was in the hands of all. The times had not yet come when a dollar seemed a valuable thing. Men were busy living, busy at exercising this vast opportunity of being prehistoric.

One by one, then in a body, as though struck by panic, the white tents of the railroad labourers vanished, passing on yet farther to the West, only the engineers remaining at Ellisville and prosecuting from the haven of the stone hotel the work of continuing the line. The place of the tents was taken by vast white-topped wagons, the creaking cook carts of the cattle trail, and the van of the less nomadic man. It was the beginning of the great cattle drive from the Southern to the Northern ranges, a strange, wild movement

in American life which carried in its train a set of conditions as vivid and peculiar as they were transient. At Ellisville there was no ordered way of living. The frontier was yet but one vast camp. It was, as Battersleigh had said, the beginning of things.

Many of the white-topped wagons began to come from the East, not following the railroad, but travelling the trail of the older adventurers who had for a generation gone this way, and whose pathway the railroad took for its own. Some of these wagons passed still onward, discontent. Others swerved and scattered over the country to the south and southwest, from which the Indian tribes had now been driven, and which appeared more tempting to the farming man than lands farther to the west and higher up that gradual and wonderful incline which reaches from the Missouri River to the Rockies. One by one, here and there, these new men selected their lands and made their first rude attempts at building for themselves the homes which they coveted and had come far to win.

Ellisville lay at an eddy in the Plains, and gathered toll of the strange driftwood which was then afloat. Though the chutes at the railway were busy, yet other herds of cattle passed Ellisville and wandered on north, crowding at the heels of the passing Indians, who now began to see their own cattle to be doomed. The main herd of the buffalo was now reported to be three or four days' drive from Ellisville, and the men who killed for the railroad camps uttered loud complaints. The skin-hunting still went on. Great wagons, loaded with parties of rough men, passed on out, bound for the inner haunts, where they might still find their prey. The wagons came creaking back loaded with bales of the shaggy brown robes, which gave the skin-hunters money with which to join the cowmen at the drinking places. Some of the skin-hunters, some of the railroad men, some of the cowmen, some of the home-seekers, remained in the eddy at Ellisville, this womanless beginning of a permanent society. Not sinless was this society at

its incipency. In any social atmosphere good and evil are necessary concomitants. Sinless men would form a community at best but perishable. Tolerance, submission, patriotism so called, brotherly love so named—all these things were to come later, as they have ever done in the development of communities, builded mainly upon the foundation of individual aggressiveness and individual centrifugence. Having arrived, we wave scented kerchiefs between us and the thought of such a beginning of our prosperity. Having become slaves, we scoff at the thought of a primitive, grand, and happy world, where each man was a master. Having lost touch of the earth, having lost sight of the sky, we opine there could have been small augur in a land where each man found joy in an earth and sky which to him seemed his own. There were those who knew that joy and who foresaw its passing, yet they were happy. Edward Franklin saw afar off the dim star of his ambition; yet for him, as for many another man in those days, it was enough to own this earthy this sky, to lie down under his own roof at night to untroubled dreams, to awake each morning to a day of hopeful toil.

CHAPTER IX

THE NEW MOVERS

Far away, across the wide gray plain, appeared a tiny dot, apparently an unimportant fixture of the landscape. An hour earlier it might not have been observed at all by even the keenest eye, and it would have needed yet more time to assure an observer even now that the dot was a moving object. Under the shifting play of the prairie sun the little object appeared now dark, now light in colour, but became gradually more distinct. It came always crawling steadily on. Presently an occasional side-blown puff of dust added a certain heraldry, and thus finally the white-topped wagon and its plodding team came fully into view, crawling ever persistently from the East into the West.

Meantime, from the direction of the north, there came travelling across the prairie another cloud of dust more rapid than that stirred up by the slow-moving emigrant wagon. Sam, the stage driver, was crossing on his regular buckboard trip from Ellisville to Plum Centre, and was now nearly half-way on his journey. Obviously the courses of these two vehicles must intersect, and at the natural point of this intersection the driver of the faster pulled up and waited for the other. "Movers" were not yet so common in that region that the stage driver, natural news agent, must not pause for investigation.

The driver of the wagon, a tall, dark man, drew rein with a grave salutation, his tired horses standing with drooping heads while there took place one of the pregnant conversations of the Plains.

"Mornin', friend," said Sam.

"Mornin', sir," said the other.

"Which way you headin', friend?" asked Sam.

"Well, sir," came the answer, slowly, "I rather reckon you've got me. I've just been movin' on out. I want to locate, but I reckon my team could travel a little further if they had to." This with a certain grimness in his smile, as though he realized the whimsicality of the average motive which governed in that day in quests like his. "Is there much travel comin' through here this season?" he resumed, turning in his seat and resting one foot on the wheel as he sat still perched on the high wagon seat.

"Well," replied Sam, "they ain't so much just yet, but they will be pretty soon. You see, the Land Office is about sixty mile east of here yet, and folks is mostly stoppin' in there. Land around here is pretty much all open yet. If they move the Land Office to the track-end, of course all this land will be taken up a good deal faster."

"Is it good farmin' land around here?"

"Sure. Better'n it is farther west, and just as good as it is farther east. Wheat'll do well here, and it ain't too cold for corn. Best cow country on earth."

"How is Ellisville doing now?"

"Bloomin'."

"Yes, sir, so I heard farther back. Is it goin' to be a real town?"

"That's whatever! How can it help it? It's goin' to be a division point on the road. It's goin' to have all the cattle-shippin' trade. After a while it'll have all the farmin' trade. It's goin' to be the town, all right, don't you neglect that. They's fifteen thousand head of cattle in around here now. Town's got two hotels, good livery stable—that's mine—half a dozen stores, nigh on to a dozen saloons, an' two barber-shops. Yes, sir, Ellisville is the place!"

"Which way are you bound, sir?" asked the stranger, still sitting, apparently in thought, with his chin resting on his hand.

"Well, you see, they's another town goin' up below here about twenty mile—old man Plum's town, Plum Centre. I run the mail an' carry folk acrost from Ellisville to that place. This here is just about halfway acrost. Ellisville's about twenty or twenty-five mile north of here."

Sam spoke lucidly enough, but really he was much consumed with curiosity, for he had seen, behind the driver of the wagon, a face outlined in the shade. He wondered how many "women-folk" the new mover had along, this being ever a vital question at that day. The tall man on the wagon seat turned his face slowly back toward the interior of the wagon.

"What do you think, Lizzie?" he asked.

"Dear me, William," came reply from the darkness in a somewhat complaining voice, "how can I tell? It all seems alike to me. You can judge better than I."

"What do you say, niece?"

The person last addressed rested a hand upon the questioner's shoulder and lightly climbed out upon the seat by his side, stooping as she passed under the low bow of the cover frame. She stood upright, a tall and gracious figure, upon the wagon floor in front of the seat, and shaded her eyes as she looked about her. Her presence caused Sam to instinctively straighten up and tug at his open coat. He took off his hat with a memory of other days, and said his "Good-mornin'" as the schoolboy does to his teacher—superior, revered, and awesome.

Yet this new character upon this bare little scene was not of a sort to terrify. Tall she was and shapely, comely with all the grace of youth and health, not yet tanned too brown by the searing prairie winds, and showing still the faint purity of the complexion of the South. There was no slouch in her erect and self-respecting carriage, no shiftiness in her eye, no awkwardness in her speech. To Sam it was instantaneously evident that here was a new species of being, one of which he had but the vaguest notions through any experiences of his own. His chief impression was that he was at once grown small, dusty, and much unshaven. He flushed as he shifted and twisted on the buckboard seat.

The girl looked about her for a moment in silence, shading her eyes still with her curved hand.

"It is much alike, all this country that we have seen since we left the last farms. Uncle William," she said, "but it doesn't seem dreary to me. I should think—"

But what she would have thought was broken into by a sudden exclamation from farther back in the wagon. A large black face appeared at the aperture under the front wagon bow, and the owner of it spoke with a certain oracular vigour.

"Fo' Gawd, Mass' William, less jess stop right yer! I 'clare, I'se jess wore to a plum frazzle, a-travelin' an' *a-travelin'*! Ef we gwine settle, why, less *settle*, thass all I say!"

The driver of the wagon sat silent for a moment, his leg still hanging over the end of the seat, his chin in the hand of the arm which rested upon his other leg, propped up on the dashboard of the wagon. At length, quietly, and with no comment, he unbuckled the reins and threw them out and down upon the ground on either side of the wagon.

"Whoa, boys," he called to the horses, which were too weary to note that they were no longer asked to go farther on. Then the driver got deliberately down. He was a tall man, of good bearing, in his shoulders but little of the stoop of the farmer, and on his hands not any convincing proof that he was personally acquainted with continuous bodily toil. His face was thin, aquiline, proud; his hair dark, his eyes gray. He might have been a planter, a rancher, a man of leisure or a man of affairs, as it might happen that one met him at the one locality or the other. One might have called him a gentleman, another only a "pilgrim." To Sam he was a "mover," and that was all. His own duty as proselyter was obvious. Each new settlement was at war with all others, population being the first need.

"We'll turn out here," said the man, striking his heel upon the ground with significant gesture, as was an unconscious custom among the men who chose out land for themselves in a new region. "We'll stop here for a bite to eat, and I reckon we won't go any farther west. How is this country around here for water?"

"Sure," said Sam, "excuse me. I've got a jug along with me. I nearly always carry some water along, because they ain't but one creek, and they ain't no wells.—Have a drink, miss?" And he politely pulled out the wooden stopper of a jug and offered it with a hand which jumped in spite of himself.

"Thank you, sir," said the girl, and her uncle added his courteous thanks also. "What I meant to ask, sir, however," he continued, "is what is the prospect of getting water in this part of the country in case we should like to settle in here?"

"Oh, that?" said Sam. "Why, say, you couldn't very well hit it much better. Less'n a mile farther down this trail to the south you come to the Sinks of the White Woman Creek. They's most always some water in that creek, and you can git it there any place by diggin' ten or twenty feet.

"That's good," said the stranger. "That's mighty good." He turned to the wagon side and called out to his wife. "Come, Lizzie," he said, "get out, dear, and take a rest. We'll have a bite to eat, and then we'll talk this all over."

The woman to whom he spoke next appeared at the wagon front and was aided to the ground. Tall, slender, black clad, with thin, pale face, she seemed even more unsuited than her husband to the prospect which lay before them. She stood for a moment alone, looking about her at the land which had long been shut off from view by the wagon tent, then turned and went close to the man, upon whom she evidently relied for the solution of life's problems. Immediately behind her there clambered down from the wagon, with many groanings and complaints, the goodly bulk of the black woman who had earlier given her advice. "Set down yer, Mis' Lizzie, in the shade," she said, spreading a rug upon the ground upon the side of the wagon farthest from the sun. "Set down an' git a ress. Gawd knows we all needs it—this yer fo'saken kentry. 'Tain' good as Mizzoury, let 'lone Kaintucky er Ole Vehginny—no, mam!"

There was thus now established, by the chance of small things, the location of a home. This wagon, with its occupants, had come far and journeyed vaguely, having no given point in view. The meeting of this other

vehicle, here in the middle of the untracked prairie, perhaps aided by the chance words of a tired negress, made the determining circumstances. It was done. It was decided. There was a relief at once upon every countenance. Now these persons were become citizens of this land. Unwittingly, or at least tacitly, this was admitted when the leader of this little party advanced to the side of the buckboard and offered his hand.

"My name is Buford," he said slowly and with grave courtesy. "This is my wife; my niece, Miss Beauchamp. Your name, sir, I don't know, but we are very glad to meet you."

"My name's Poston," said Sam, as he also now climbed down from his seat, seeing that the matter was clinched and that he had gained a family for his county—"Sam Poston. I run the livery barn. I sure hope you'll stop in here, for you won't find no better country. Do you allow you'll move up to Ellisville and live there?"

"Well, I've started out to get some land," said Buford, "and I presume that the first thing is to find that and get the entry made. Then we'll have to live on it till we can commute it. I don't know that it would suit us at Ellisville just yet. It must be a rather hard town, from all I can learn, and hardly fit for ladies."

"That's so," said Sam, "it ain't just the quietest place in the world for women-folks. Only five or six women in the place yet, outside the section boss's wife and the help at the depot hotel. Still," he added apologetically, "folks soon gets used to the noise. I don't mind it no more at all."

Buford smiled as he glanced quizzically at the faces of his "women-folks." At this moment Sam broke out with a loud exclamation.

"Say!" he cried.

"Yes, sir," said Buford.

"I'll tell you what!"

"Yes?"

"Now, you listen to me. I'll tell you what! You see, this here place where we are now is just about a mile from the White Woman Sinks, and that is, as I was sayin', just about halfway between Ellisville and Plum Centre. Now, look here. This country's goin' to boom. They's goin' to be a plenty of people come in here right along. There'll be a regular travel from Ellis down to Plum Centre, and it's too long a trip to make between meals. My passengers all has to carry meals along with 'em, and they kick on that a-plenty. Now, you look here. Listen to me. You just go down to the White Woman, and drive your stake there. Take up a quarter for each one of you. Put you up a sod house quick as you can—I'll git you help for that. Now, if you can git anything to cook, and can give meals to my stage outfit when I carry passengers through here, why, I can promise you, you'll git business, and you'll git it a-plenty, too. Why, say, this'd be the best sort of a lay-out, all around. You can start just as good a business here as you could at Ellisville, and it's a heap quieter here. Now, I want some one to start just such a eatin' place somewheres along here, and if you'll do that, you'll make a stake here in less'n two years, sure's you're born."

Sam's conviction gave him eloquence. He was talking of business now, of the direct, practical things which were of immediate concern in the life of the region about. The force of what he said would not have been apparent to the unpracticed observer, who might have seen no indication in the wide solitude about that there would ever be here a human population or a human industry. Buford was schooled enough to be more just in his estimate, and he saw the reasonableness of what his new acquaintance had said. Unconsciously his eye wandered over to the portly form of the negress, who

sat fanning herself, a little apart from the others. He smiled again with the quizzical look on his face. "How about that, Aunt Lucy?" he said.

"Do hit, Mass' William," replied the coloured woman at once with conviction, and extending an energetic forefinger. "You jess do whut this yer man says. Ef they's any money to be made a-cookin', I kin do all the cookin' ever you wants, ef you-all kin git anything to cook. Yas, suh!"

"You ain't makin' no mistake," resumed Sam. "You go in and git your land filed on, and put you up a sod house or dugout for the first season, because lumber's awful high out here. It's pretty late to do anything with a crop this year, even if you had any breakin' done, but you can take your team and gether bones this fall and winter, and that'll make you a good livin', too. You can git some young stock out of the trail cattle fer a'most anything you want to give, and you can hold your bunch in here on the White Woman when you git started. You can cut a little hay a little lower down on the White Woman for your team, or they can range out in here all winter and do well, just like your cows can. You can git a lot of stock about you before long, and what with keepin' a sort of eatin' station and ranchin' it a bit, you ought to git along mighty well, I should say. But—'scuse me, have you ever farmed it much?"

"Well, sir," said Buford, slowly, "I used to plant corn and cotton, back in Kentucky, befo' the war."

"And you come from Kentucky out here?"

"Not precisely that; no, sir. I moved to Missouri from Kentucky after the war, and came from Missouri here."

Sam looked at him, puzzled. "I allowed you'd never ranched it much," he said, vaguely. "How'd you happen to come out here?"

The quizzical smile again crossed Buford's face. "I think I shall have to give that up, on my honour," he said. "We just seem to have started on West, and to have kept going until we got here. It seemed to be the fashion—especially if you'd lost about everything in the world and seen everything go to pieces all about you." He added this with a slow and deliberate bitterness which removed the light trace of humour for the time.

"From Kentucky, eh?" said Sam, slowly and meditatively. "Well, it don't make no difference where you come from; we want good men in here, and you'll find this a good country, I'll gamble on that. I've followed the front clean acrost the State, the last ten years, and I tell you it's all right here. You can make it if you take hold right. Now I must be gittin' along again over toward Plum Centre. See you again if you stop in here on White Woman—see you several times a week, like enough. You must come up to Ellis soon as you git straightened out. Ain't many women-folks up there, but then they're fine what there is. Say," and he drew Buford to one side as he whispered to him—"say, they's a mighty fine girl—works in the depot hotel—Nory's her name—you'll see her if you ever come up to town. I'm awful gone on that girl, and if you git any chanct, if you happen to be up there, you just put in a good word for me, won't you? I'd do as much for you. I didn't know, you know, but what maybe some of your women-folks'd sort of know how it was, you know. They understand them things, I reckon."

Buford listened with grave politeness, though with a twinkle in his eye, and promised to do what he could. Encouraged at this, Sam stepped up and shook hands with Mrs. Buford and with the girl, not forgetting Aunt Lucy, an act which singularly impressed that late inhabitant of a different land, and made him her fast friend for life.

"Well, so long," he said to them all in general as he turned away, "and good luck to you. You ain't makin' no mistake in settlin' here. Good-bye till

I see you all again."

He stepped into the buckboard and clucked to his little team, the dust again rising from under the wheels. The eyes of those remaining followed him already yearningly. In a half hour there had been determined the location of a home, there had been suggested a means of livelihood, and there had been offered and received a friendship. Here, in the middle of the great gray Plains, where no sign of any habitation was visible far as the eye could reach, these two white men had met and shaken hands. In a half hour this thing had become matter of compact. They had taken the oath. They had pledged themselves to become members of society, working together—working, as they thought, each for himself, but working also, as perhaps they did not dream, at the behest of some destiny governing plans greater than their own. As Buford turned he stumbled and kicked aside a bleached buffalo skull, which lay half hidden in the red grass at his feet.

CHAPTER X

THE CHASE

The summer flamed up into sudden heat, and seared all the grasses, and cut down the timid flowers. Then gradually there came the time of shorter days and cooler nights. The grass curled tight down to the ground. The air carried a suspicion of frost upon some steel-clear mornings. The golden-backed plover had passed to the south in long, waving lines, which showed dark against the deep blue sky. Great flocks of grouse now and then rocked by at morning or evening. On the sand bars along the infrequent streams thousands of geese gathered, pausing in their flight to warmer lands. On the flats of the Rattlesnake, a pond-lined stream, myriads of ducks, cranes, swans, and all manner of wild fowl daily made mingled and discordant chorus. Obviously all the earth was preparing for the winter time.

It became not less needful for mankind to take thought for the morrow. Winter on the Plains was a season of severity for the early settlers, whose resources alike in fuel and food were not too extensive. Franklin's forethought had provided the houses of himself and Battersleigh with proper fuel, and he was quite ready to listen to Curly when the latter suggested that it might be a good thing for them to follow the usual custom and go out on a hunt for the buffalo herd, in order to supply themselves with their winter's meat.

Before the oncoming white men these great animals were now rapidly passing away, from month to month withdrawing farther back from the settlements. Reports from the returning skin-hunters set the distance of the main herd at three to five days' journey. The flesh of the buffalo was now a marketable commodity at any point along the railway; but the settler who owned a team and a rifle was much more apt to go out and kill his own meat than to buy it of another. There were many wagons which went out that fall from Ellisville besides those of the party with which Franklin, Battersleigh, and Curly set out. These three had a wagon and riding horses, and they were accompanied by a second wagon, owned by Sam, the liveryman, who took with him Curly's *mozo*, the giant Mexican, Juan. The latter drove the team, a task which Curly scornfully refused when it was offered him, his cowboy creed rating any conveyance other than the saddle as far beneath his station.

"Juan can drive all right," he said. "He druv a cook wagon all the way from the Red River up here. Let him and Sam drive, and us three fellers'll ride."

The task of the drivers was for the most part simple, as the flat floor of the prairies stretched away evenly mile after mile, the horses jogging along dejectedly but steadily over the unbroken short gray grass, ignorant and careless of any road or trail.

At night they slept beneath the stars, uncovered by any tent, and saluted constantly by the whining coyotes, whose vocalization was betimes broken by the hoarser, roaring note of the great gray buffalo wolf. At morn they awoke to an air surcharged with some keen elixir which gave delight in sense of living. The subtle fragrance of the plains, born of no fruit or flower, but begotten of the sheer cleanliness of the thrice-pure air, came to their nostrils as they actually snuffed the day. So came the sun himself, with

heralds of pink and royal purple, with banners of flaming red and gold. At this the coyotes saluted yet more shrilly and generally. The lone gray wolf, sentinel on some neighbouring ridge, looked down, contemptuous in his wisdom. Perhaps a band of antelope tarried at some crest. Afar upon the morning air came the melodious trumpeting of wild fowl, rising from some far-off unknown roosting place and setting forth upon errand of their own. All around lay a new world, a wild world, a virgin sphere not yet acquainted with man. Phoenicians of the earthy seas, these travellers daily fared on into regions absolutely new.

Early upon the morning of the fourth day of their journey the travellers noted that the plain began to rise and sink in longer waves. Presently they found themselves approaching a series of rude and wild-looking hills of sand, among which they wound deviously as they might, confronted often by forbidding buttes and lofty dunes whose only sign of vegetation was displayed in a ragged fringe of grass which waved like a scalp lock here and there upon the summits. For many miles they travelled through this difficult and cheerless region, the horses soon showing signs of distress and all the party feeling need of water, of which the supply had been exhausted. It was nearly noon while they were still involved in this perplexing region, and as none of the party had ever seen the country before, none could tell how long it might be before they would emerge from it. They pushed on in silence, intent upon what might be ahead, so that when there came an exclamation from the half-witted Mexican, whose stolid silence under most circumstances had become a proverb among them, each face was at once turned toward him.

"Eh, what's that, Juan?" said Curly—"Say, boys, he says we're about out of the sand hills. Prairie pretty soon now, he says."

"And will ye tell me, now," said Battersleigh, "how the haythen knows a bit more of it than we oursilves? He's never been here before. I'm thinkin' it's pure guess he's givin' us, me boy."

"No, sir," said Curly, positively. "If Juan says a thing like that, he knows. I don't know how he knows it, but he shore does, and I'll gamble on him every time. You see, he ain't hardly like folks, that feller. He's more like a critter. He knows a heap of things that you and me don't."

"That's curious," said Franklin. "How do you account for it?"

"Kin savvy," said Curly. "I don't try to account for it, me. I only know it's so. You see if it ain't."

And so it was. The wall of the sand hills was for a time apparently as endless and impervious as ever, and they still travelled on in silence, the Mexican making no further sign of interest. Yet presently the procession of the sand dunes began to show gaps and open places. The hills grew less tall and more regular of outline. Finally they shrank and fell away, giving place again to the long roll of the prairie, across which, and near at hand to the edge of the sand hills, there cut the open and flat bed of a water way, now apparently quite dry.

"We're all right for water now," said Sam. "See that little pile of rocks, 'bout as high as your head, off to the right down the creek? That's water there, sure."

"Yep," said Curly. "She's there, sure. Or you could git it by diggin' anywheres in here in the creek bed, inside of four or five feet at most."

Franklin again felt constrained to ask somewhat of the means by which these two felt so confident of their knowledge. "Well, now, Curly," he said,

"it isn't instinct this time, surely, for Juan didn't say anything about it to you. I would like to know how you know there is water ahead."

"Why," said Curly, "that's the sign for water on the plains. If you ever see one of them little piles of stones standin' up, you can depend you can git water there. Sometimes it marks a place where you can git down through the breaks to the creek bed, and sometimes it means that if you dig in the bed there you can find water, 'lowin' the creek's dry."

"But who built up the rock piles to make these signs?" asked Franklin.

"O Lord! now you've got me," said Curly. "I don't know no more about that than you do. Injuns done it, maybe. Some says the first wild-horse hunters put 'em up. They was always there, all over the dry country, far back as ever I heard. You ask Juan if there ain't water not far off. See what he says.—*Oye, Juan! Tengo agua, poco tiempo?*"

The giant did not even lift his head, but answered listlessly, "*Agua? Si,*" as though that were a matter of which all present must have equal knowledge.

"That settles it," said Curly. "I never did know Juan to miss it on locatin' water yet, not onct. I kin fairly taste it now. But you see, Juan, he don't seem to go by no rock-pile signs. He just seems to smell water, like a horse or a steer."

They now rode on more rapidly, bearing off toward the cairn which made the water sign. All at once Juan lifted his head, listened for a moment, and then said, with more show of animation than he had yet displayed and with positiveness in his voice: "*Vacas!*" ("cows; cattle").

Curly straightened up in his saddle as though electrified. "*Vacas? Onde, Juan?*—where's any cows?" He knew well enough that no hoof of domestic cattle had ever trod this country. Yet trust as he did the dictum of the giant's strange extra sense, he could not see, anywhere upon the wide country round about them, any signs of the buffalo to which he was sure the Mexican meant to call his attention.

"*Vacas! muchas,*" repeated Juan carelessly.

"Lots of 'em, eh? Well, I'd like to know where they are, my lily of the valley," said Curly, for once almost incredulous. And then he stopped and listened.—"Hold on, boys, listen," he said. "Look out—look out! Here they come!"

Every ear caught the faint distant pattering, which grew into a rapid and insistent rumble. "Cavalry, b'gad!" cried Battersleigh. Franklin's eyes shone. He spurred forward fast as he could go, jerking loose the thong which held his rifle fast in the scabbard under his leg.

The tumultuous roaring rumble came on steadily, the more apparent by a widening and climbing cloud of dust, which betokened that a body of large animals was coming up through the "breaks" from the bed of the stream to the prairie on which the wagons stood. Presently there appeared at the brink, looming through the white dust cloud, a mingling mass of tangled, surging brown, a surface of tossing, hairy backs, spotted with darker fronts, over all and around all the pounding and clacking of many hoofs. It was the stampede of the buffalo which had been disturbed at their watering place below, and which had headed up to the level that they might the better make their escape in flight. Head into the wind, as the buffalo alone of wild animals runs, the herd paid no heed to the danger which they sought to escape, but upon which they were now coming in full front. The horses of the hunters, terrified at this horrid apparition of waving horned heads and

shaggy manes, plunged and snorted in terror, seeing which the first rank of the buffalo in turn fell smitten of panic, and braced back to avoid the evil at their front. Overturned by the crush behind them, these none the less served to turn the course of the remainder of the herd, which now broke away to the right, paralleling the course of the stream and leaving the wagons of the hunters behind them and at their left. The herd carried now upon its flank three figures which clung alongside and poured sharp blue jets of smoke into the swirling cloud of ashy dust.

It was neck and neck for the three. The cowboy, Curly, had slightly the advance of the others, but needed to spur hard to keep even with Battersleigh, the old cavalryman, who rode with weight back and hands low, as though it were cross country in old Ireland. Franklin challenged both in the run up, riding with the confidence of the man who learned the saddle young in life. They swerved slightly apart as they struck the flank of the herd and began to fire. At such range it was out of the question to miss. Franklin and Battersleigh killed two buffaloes each, losing other head by reason of delivering their fire too high up in the body, a common fault with the beginner on bison. Curly ran alongside a good cow, and at the third shot was able to see the great creature stumble and fall. Yet another he killed before his revolver was empty. The butchery was sudden and all too complete. As they turned back from the chase they saw that even Sam, back at the wagon, where he had been unable to get saddle upon one of the wagon horses in time for the run, had been able to kill his share. Seeing the horses plunging, Juan calmly went to their heads and held them quiet by main strength, one in each hand, while Sam sprang from the wagon and by a long shot from his heavy rifle knocked down a good fat cow. The hunters looked at the vast bodies lying prostrate along the ground before them, and felt remorse at their intemperance.

"The hunt's over," said Franklin, looking at the dead animals. "We've enough for us all."

"Yes, sir," said Curly, "we shore got meat, and got it plenty sudden.— Juan, *vamos, pronto!*" He made signs showing that he wished the Mexican to skin and dress the buffalo, and the latter, as usual, proceeded to give immediate and unhesitating obedience.

CHAPTER XI

THE BATTLE

Occupied for a few moments with the other at the wagon, Franklin ceased to watch Juan, as he went slowly but not unskilfully about the work of dressing the dead buffalo. Suddenly he heard a cry, and looking up, saw the Mexican running hurriedly toward the wagon and displaying an animation entirely foreign to his ordinary apathetic habit. He pointed out over the plain as he came on, and called out excitedly: "*Indios! Los Indios!*"

The little party cast one long, careful look out toward the horizon, upon which now appeared a thin, waving line of dust. A moment later the two wagons were rolled up side by side, the horses were fastened securely as possible, the saddles and blanket rolls were tossed into breastworks at the ends of the barricade, and all the feeble defences possible were completed. Four rifles looked steadily out, and every face was set and anxious, except that of the Mexican who had given the alarm. Juan was restless, and made as though to go forth to meet the advancing line.

"*Vamos—me vamos!*" he said, struggling to get past Curly, who pushed him back.

"Set down, d——n you—set down!" said Curly, and with his strange, childlike obedience, the great creature sat down and remained for a moment

submissively silent.

The indefinite dust line turned from gray to dark, and soon began to show colours—black, red, roan, piebald—as the ponies came on with what seemed an effect of a tossing sea of waving manes and tails, blending and composing with the deep sweeping feather trails of the grand war bonnets. Hands rose and fell with whips, and digging heels kept up the unison. Above the rushing of the hoofs there came forward now and then a keen ululation. Red-brown bodies, leaning, working up and down, rising and falling with the motion of the ponies, came into view, dozens of them—scores of them. Their moccasined feet were turned back under the horses' bellies, the sinewy legs clamping the horse from thigh to ankle as the wild riders came on, with no bridle governing their steeds other than the jaw rope's single strand.

"Good cavalry, b'gad!" said Battersleigh calmly, as he watched them in their perfect horsemanship. "See 'em come!" Franklin's eyes drew their brows down in a narrowing frown, though he remained silent, as was his wont at any time of stress.

The Indians came on, close up to the barricade, where they saw the muzzles of four rifles following them steadily, a sight which to them carried a certain significance. The line broke and wheeled, scattering, circling, still rising and falling, streaming in hair and feathers, and now attended with a wild discord of high-keyed yells.

"Keep still, boys; don't shoot!" cried Franklin instinctively. "Wait!"

It was good advice. The mingling, shifting line, obedient to some loud word of commando swept again up near to the front of the barricade, then came to a sudden halt with half the forefeet off the ground. The ponies shuffled and fidgeted, and the men still yelled and called out unintelligible

sounds, but the line halted. It parted, and there rode forward an imposing figure.

Gigantic, savage, stern, clad in the barbaric finery of his race, his body nearly nude, his legs and his little feet covered with bead-laden buckskin, his head surmounted with a horned war bonnet whose eagle plumes trailed down the pony's side almost to the ground, this Indian headman made a picture not easily to be forgotten nor immediately to be despised. He sat his piebald stallion with no heed to its restive prancing. Erect, immobile as a statue, such was the dignity of his carriage, such the stroke of his untamed eye, that each man behind the barricade sank lower and gripped his gun more tightly. This was a personality not to be held in any hasty or ill-advised contempt.

The Indian walked his horse directly up to the barricade, his eye apparently scorning to take in its crude details.

"Me, White Calf!" he exclaimed in English, like the croak of a parrot, striking his hand upon his breast with a gesture which should have been ludicrous or pompous, but was neither. "Me, White Calf!" said the chief again, and lifted the medal which lay upon his breast. "Good. White man come. White man go. Me hunt, now!"

He swept his arm about in a gesture which included the horizon, and indicated plainly his conviction that all the land belonged to him and his own people. So he stood, silent, and waiting with no nervousness for the diplomacy of the others.

Franklin stepped boldly out from the barricade and extended his hand. "White Calf, good friend," said he. The Indian took his hand without a smile, and with a look which Franklin felt go through him. At last the chief grunted out something, and, dismounting, seated himself down upon the

ground, young men taking his horse and leading it away. Others, apparently also of rank, came and sat down. Franklin and his friends joined the rude circle of what they were glad to see was meant to be an impromptu council.

White Calf arose and faced the white men.

"White men go!" he said, his voice rising. "Injun heap shoot!"

"B'gad, I believe the haythen thinks he can scare us," said Battersleigh, calmly.

Franklin pointed to the carcasses of the buffalo, and made signs that after they had taken the meat of the buffalo they would go. Apparently he was understood. Loud words arose among the Indians, and White Calf answered, gesticulating excitedly:

"Heap good horse!" he said, pointing to the horses of the party.

"White man go! Injun heap get horse! Injun heap shoot!"

"This is d——d intimidation!" shouted Battersleigh, starting up and shaking a fist in White Calf's face.

"Give up our horses? Not by a d——d sight!" said Curly. "You can heap shoot if you want to turn loose, but you'll never set me afoot out here, not while I'm a-knowin' it!"

The situation was tense, and Franklin felt his heart thumping, soldier though he was. He began to step back toward the wagons with his friends. A confused and threatening uproar arose among the Indians, who now began to crowd forward. It was an edged instant. Any second might bring on the climax.

And suddenly the climax came. From the barricade at the rear there rose a cry, half roar and half challenge. The giant Mexican Juan, for a time quieted by Curly's commands, was now seized upon by some impulse which he could no longer control. He came leaping from behind the wagons, brandishing the long knife with which he had been engaged upon the fallen buffalo.

"*Indios!*" he cried, "*Indios!*" and what followed of his speech was only incoherent savage babblings. He would have darted alone into the thick of the band had not Franklin and Curly caught him each by a leg as he passed.

The chief, White Calf, moved never a muscle in his face as he saw his formidable adversary coming on, nor did he join in the murmurs that arose among his people. Rather there came a glint into his eye, a shade of exultation in his heavy face. "Big chief!" he said, simply. "Heap fight!"

"You bet your blame life he'll heap fight!" said Curly, from his position upon Juan's brawny breast as he held him down. "He's good for any two of you, you screechin' cowards!"

Curly's words were perhaps not fully understood, yet the import of his tone was unmistakable. There was a stirring along the line, as though a snake rustled in the grass. The horse-holders were crowding up closer. There were bows drawn forward over the shoulders of many young men, and arrows began to shiver on the string under their itching fingers. Once more Franklin felt that the last moment had come, and he and Battersleigh still pressed back to the wagons where the rifles lay.

The Indian chief raised his hand and came forward, upon his face some indescribable emotion which removed it from mere savagery, some half-chivalrous impulse born perhaps of a barbaric egotism and self-confidence, perhaps of that foolhardy and vain love of risk which had made White Calf

chief of his people and kept him so. He stood silent for a moment, his arms folded across his breast with that dramatic instinct never absent from the Indian's mind. When he spoke, the scorn and bravado in his voice were apparent, and his words were understood though his speech was broken.

"Big chief!" he said, pointing toward Juan. "White Calf, me big chief," pointing to himself. "Heap fight!" Then he clinched his hands and thrust them forward, knuckles downward, the Indian sign for death, for falling dead or being struck down. With his delivery this was unmistakable. "Me," he said, "me dead; white man go. Big chief" (meaning Juan), "him dead; Injun heap take horse," including in the sweep of his gesture all the outfit of the white men.

"He wants to fight Juan by himself," cried Franklin.

"Yes, and b'gad he's doin' it for pure love of a fight, and hurray for him!" cried Battersleigh. "Hurrray, boys! Give him a cheer!" And, carried away for the moment by Battersleigh's own dare-deviltry, as well as a man's admiration for pluck, they did rise and give him a cheer, even to Sam, who had hitherto been in line, but very silent. They cheered old White Calf, self-offered champion, knowing that he had death in a hundred blankets at his back.

The meaning of the white men was also clear. The grim face of White Calf relaxed for a moment into something like a half-smile of pride. "Heap fight!" he repeated simply, his eyes fixed on the vast form of the babbling giant. He dropped his blanket fully back from his body and stood with his eyes boring forward at his foe, his arms crossed arrogantly over his naked, ridging trunk, proud, confident, superb, a dull-hued statue whose outlines none who witnessed ever again forgot.

There was no time to parley or to decide. Fate acted rapidly through the agency of a half-witted mind. Juan the Mexican was regarding the Indian intently. Perhaps he gathered but little of the real meaning of that which had transpired, but something in the act or look of the chieftain aroused and enraged him. He saw and understood the challenge, and he counted nothing further. With one swift upheaval of his giant body, he shook off restraining hands and sprang forward. He stripped off his own light upper garment, and stood as naked and more colossal than his foe. Weapon of his own he had none, nor cared for any. More primitive even than his antagonist, he sought for nothing better than the first weapon of primeval man, a club, which should extend the sweep of his own arm. From the hand of the nearest Indian he snatched a war club, not dissimilar to that which hung at White Calf's wrist, a stone-headed beetle, grooved and bound fast with rawhide to a long, slender, hard-wood handle, which in turn was sheathed in a heavy rawhide covering, shrunk into a steel-like re-enforcement. Armed alike, naked alike, savage alike, and purely animal in the blind desire of battle, the two were at issue before a hand could stay them. All chance of delay or separation was gone. Both white and red men fell back and made arena for a unique and awful combat.

There was a moment of measuring, that grim advance balance struck when two strong men meet for a struggle which for either may end alone in death. The Indian was magnificent in mien, superb in confidence. Fear was not in him. His vast figure, nourished on sweet meat of the plains, fed by pure air and developed by continual exercise, showed like the torso of a minor Hercules, powerful but not sluggish in its power. His broad and deep chest, here and there spotted with white scars, arched widely for the vital organs, but showed no clogging fat. His legs were corded and thin. His arms were also slender, but showing full of easy-playing muscles with power of rapid and unhampered strength. Two or three inches above the six-foot mark he stood as he cast off his war bonnet and swept back a hand over the

standing eagle plumes, whipped fast to his braided hair. White Calf was himself a giant.

Yet huge and menacing as he stood, the figure opposed to him was still more formidable. Juan, the *mozo* overtopped him by nearly half a head, and was as broad or broader in the shoulder. His body, a dull brown in colour, showed smoother than that of his enemy, the muscles not having been brought out by unremitted exercise. Yet under that bulk of flesh there lay no man might tell how much of awful vigour. The loop of the war club would not slip over his great hand. He caught it in his fingers and made the weapon hum about his head, as some forgotten ancestor of his, tall Navajo, or forgotten cave dweller, may have done before the Spaniard came. The weapon seemed to him like a toy, and he cast his eye about for another more commensurate with his strength, but, seeing none, forgot the want, and in the sheer ignorance of fear which made his bravery, began the fight as though altogether careless of its end.

White Calf was before his people, whose chief he was by reason of his personal prowess, and with all the vanity of his kind he exulted in this opportunity of displaying his fitness for his place. Yet in him natural bravery had a qualifying caution, which was here obviously well justified. The Mexican made direct assault, rushing on with battle axe poised as though to end it all with one immediate blow. With guard and parry he was more careless than the wild bull of the Plains, which meets his foe in direct impetuous assault. White Calf was not so rash. He stepped quickly back from the attack, and as the *mozo* plunged forward from the impulse of his unchecked blow, the Indian swept sternly at him with the full force of his extended arm. The caution of the chief, and the luck of a little thing, each in turn prevented the ending of the combat at its outset. Half falling onward, the Mexican slipped upon a tuft of the hard gray grass and went down headlong. A murmur arose from the Indians, who thought at first that their

leader's blow had proved fatal. A sharp call from Curly seemed to bring the Mexican to his feet at once. The Indian lost the half moment which was his own. Again the two engaged, White Calf now seeking to disconcert the Mexican, whom he discovered to be less agile than himself. Darting in and out, jumping rapidly from side to side, and uttering the while the sharp staccato of his war call, he passed about the Mexican, half circling and returning, his eye fixed straight upon the other's, and his war club again and again hurtling dangerously close to his opponents head. One shade more of courage, one touch more of the daring necessary to carry him a single foot closer in, and the victory had been with him, for no human skull could have withstood the impact of a pound of flint impelled by an arm so powerful.

Juan the *mozo* stood almost motionless, his own club half raised, the great muscles of his arm now showing under the brown skin as he clinched hard the tiny stem of the weapon. He seemed not perturbed by the menaces of the chieftain, and though unaware that the latter must in time suffer from the violence of his own exertions, nevertheless remained the fuller master of his own forces by simply waiting in this one position. His readiness for offence was the one defence that he offered. His brute courage had no mental side. The whistling of this threatening weapon was unheeded, since it did not hurt him. He glared in fury at the Indian, but always his arm remained half raised, his foot, but shifted, side stepping and turning only enough to keep him with front toward his antagonist. The desperate, eager waiting of his attitude was awful. The whisper of the wings of death was on the air about this place. The faces of the white men witnessing the spectacle were drawn and haggard. A gulp, a sigh, a half groan now and again came from their parted lips.

White Calf pursued his rapid tactics for some moments, and a dozen times sped a blow which still fell short. He gained confidence, and edged closer in. He feinted and sprang from side to side, but gained little ground.

His people saw his purpose, and murmurs of approval urged him on. It seemed that in a moment he must land the fatal blow upon his apparently half-stupefied opponent. He sought finally to deliver this blow, but the effort was near to proving his ruin. Just as he swung forward, the giant, with a sudden contraction of all his vast frame, sprang out and brought down his war axe in a sheer downward blow at half-arm's length. White Calf with lightning speed changed his own attack into defence, sweeping up his weapon to defend his head. On the instant his arm was beaten down. It fell helpless at his side, the axe only hanging to his hand by means of the loop passed around the wrist. A spasm of pain crossed his face at the racking agony in the nerves of his arm, yet he retained energy enough to spring back, and still he stood erect. A cry of dismay burst from the followers of the red champion and a keen yell from the whites, unable to suppress their exultation, Yet at the next moment the partisans of either had become silent; for, though the Indian seemed disabled, the *mozo* stood before him weaponless. The tough, slender rod which made the handle of his war axe had snapped like a pipestem under the force of his blow, and even the rawhide covering was torn loose from the head of stone, which lay, with a foot of the broken hard-wood staff still attached, upon the ground between the two antagonists.

Juan cast away the bit of rod still in his hand and rushed forward against his enemy, seeking to throttle him with his naked fingers. White Calf, quicker-witted of the two, slung the thong of his war club free from his crippled right hand, and, grasping the weapon in his left, still made play with it about his head. The giant none the less rushed in, receiving upon his shoulder a blow from the left hand of the Indian which cut the flesh clean to the collar bone, in a great bruised wound which was covered at once with a spurt of blood. The next instant the two fell together, the Indian beneath his mighty foe, and the two writhing in a horrible embrace. The hands of the *mozo* gripped the Indian's throat, and he uttered a rasping, savage roar of

triumph, more beastlike than human, as he settled hard upon the chest of the enemy whose life he was choking out. Again rose the savage cries of the on-lookers.

Not even yet had the end come. There was a heaving struggle, a sharp cry, and Juan sprang back, pressing his hand against his side, where blood came from between his fingers. The Indian had worked his left hand to the sheath of his knife, and stabbed the giant who had so nearly overcome him. Staggering, the two again stood erect, and yet again came the cries from the many red men and the little band of whites who were witnessing this barbarous and brutal struggle. Bows were bending among the blankets, but the four rifles now pointed steadily out. One movement would have meant death to many, but that movement was fore-stalled in the still more rapid happenings of the unfinished combat. For one-half second the two fighting men stood apart, the one stunned at his unexpected wound, the other startled that the wound had not proved fatal. Seeing his antagonist still on his feet. White Calf for the first time lost courage. With the knife still held in his left hand, he hesitated whether to join again in the encounter, or himself to guard against the attack of a foe so proof to injury. He half turned and gave back for a pace.

The man pursued by a foe looks about him quickly for that weapon nearest to his own hand. The dread of steel drove Juan to bethink himself of a weapon. He saw it at his feet, and again he roared like an angry bull, his courage and his purpose alike unchanged. He stooped and clutched the broken war axe, grasping the stone head in the palm of his great hand, the jagged and ironlike shaft projecting from between his fingers like the blade of a dagger. With the leap of a wild beast he sprang again upon his foe. White Calf half turned, but the left hand of the giant caught him and held him up against the fatal stroke. The sharp shaft of wood struck the Indian in the side above the hip, quartering through till the stone head sunk against

the flesh with a fearful sound. With a scream the victim straightened and fell forward. The horrid spectacle was over.

CHAPTER XII

WHAT THE HAND HAD TO DO

In this wide, new world of the West there were but few artificial needs, and the differentiation of industries was alike impossible and undesired. Each man was his own cook, his own tailor, his own mechanic in the simple ways demanded by the surroundings about him. Each man was as good as his neighbour, for his neighbour as well as himself perforce practised a half-dozen crafts and suffered therefrom neither in his own esteem nor that of those about him. The specialists of trade, of artisanship, of art, were not yet demanded in this environment where each man in truth "took care of himself," and had small dependence upon others.

In all the arts of making one's self comfortable in a womanless and hence a homeless land both Franklin and Battersleigh, experienced campaigners as they were, found themselves much aided by the counsel of Curly, the self-reliant native of the soil who was Franklin's first acquaintance in that land. It was Curly who helped them with their houses and in their household supplies. It was he who told them now and then of a new region where the crop of bones was not yet fully gathered. It was he who showed them how to care for the little number of animals which they began to gather about them; and who, in short, gave to them full knowledge of the best ways of exacting a subsistence from the land which they had invaded.

One morning Franklin, thinking to have an additional buffalo robe for the coming winter, and knowing no manner in which he could get the hide tanned except through his own efforts, set about to do this work for himself, ignorant of the extent of his task, and relying upon Curly for advice as to the procedure.

Curly sat on his horse and looked on with contempt as Franklin flung down the raw skin upon the ground.

"You've shore tackled a bigger job than you know anything about, Cap," said he, "and, besides that, it ain't a job fittin' fer a man to do. You ought to git some squaw to do that for you."

"But, you see, there aren't any squaws around," said Franklin, smiling. "If you'll tell me just how the Indians do it I'll try to see how good a job I can make of it."

Curly shifted his leg in his saddle and his cud in his mouth, and pushing his hat back on his forehead, assumed the position of superintendent.

"Well, it'll take you a long time," said he, "but I 'low it ain't no use tellin' you not to begin, fer you'll just spile a good hide anyhow. First thing you do, you stretch yer hide out on the ground, fur side down, and hold it there with about six hundred pegs stuck down around the edges. It'll take you a week to do that. Then you take a knife and scrape all the meat off the hide. That sounds easy, but it'll take about another week. Then you git you a little hoe, made out of a piece of steel, and you dig, and dig, and dig at that hide till you git some more meat off, and begin to shave it down, thin like. You got to git all the grease out of it, an' you got to make all the horny places soft. Time you git it dug down right it'll take you about a year, I reckon, and then you ain't done. You got to git brains—buffalo brains is best—and smear all over it, and let 'em dry in. Then you got to take your hide up and

rub it till it's plum soft. That'll take you a couple of weeks, I reckon. Then you kin smoke it, if you have got any place to smoke it, an' that'll take you a week, if you don't burn it up. Sometimes you kin whiten a hide by rubbin' it with white clay, if you can git any clay. That might take you a few days longer. Oh, yes, I reckon you kin git the hide tanned if you live long enough. You'd ought to put up a sign, 'Captain Franklin, Attorney at Law, an' Hide Tanner.'"

Franklin laughed heartily at Curly's sarcasm. "There's one thing sure, Curly," said he; "if I ever get this thing done I shall have to do the work myself, for no one ever knew you to do any work but ride a horse. Now, I think I can tan this hide, and do it in less than a year, and in less than a week, too. I can peg it out, and I can make me the iron hoe, and I can soften the hide with brains, and I can rub it until it is finished. I have, or can get, about all the ingredients you mention except the clay. If I had some white pipe clay I believe I could really make me a beautiful robe for a counterpane for my bed next winter."

"If it's only clay you want," said Curly lazily, "I can git you plenty of that."

"Where?" said Franklin.

"Over in a little holler, to the crick back o' town," said Curly. "You go on an' tack out your hide, an' I'll ride over and git you some."

"How'll you carry it," said Franklin, "if you go on horseback?"

"Kerry it!" said Curly contemptuously. "How'd you s'pose I'd kerry it? Why, in my hat, o' course!" and he rode off without deigning further explanation. Franklin remained curious regarding this episode until, an hour later, Curly rode up to the house again, carrying his hat by the brim, with

both hands before him, and guiding his pony with his knees. He had, indeed, a large lump of white, soft clay, which he carried by denting in the crown of his hat and crowding the clay into the hollow. After throwing down the clay and slapping the hat a few times on his knee, he seemed to think his headgear not injured by this transaction.

"There's yer blamed clay," said he; "it'll be a good while before you need it, but there she is."

The two were joined at this juncture by Battersleigh, who had come over to pay a morning visit, and who now stood looking on with some interest at the preparations in progress.

"It's makin' ye a robe is it, Ned, me boy?" said he. "I'm bound it's a fine thing ye'll do. I'll give yer four dollars if ye'll do as much for me. Ye wouldn't be leavin' old Batty to sleep cold o' nights, now, wud ye, Ned?"

"Oh, go tan your own robes," said Franklin cheerfully. "I'm not in the wholesale line."

"You might git Juan to tan you all one or two," said Curly. "He kin tan ez good ez ary Injun ever was."

"But, by the way, Curly," said Franklin, "how is Juan this morning? We haven't heard from him for a day or two."

"Oh, him?" said Curly. "Why, he's all right. He's just been layin' 'round a little, like a dog that's been cut up some in a wolf fight, but he's all right now. Shoulder's about well, an' as fer the knife-cut, it never did amount to nothin' much. You can't hurt a Greaser much, not noways such a big one as Juan. But didn't he git action in that little difficulty o' his'n? You could a-

broke the whole Cheyenne tribe, if you could a-got a-bettin' with 'em before that fight."

"Odds was a hundred to one against us, shure," said Battersleigh, seating himself in the doorway of the shack. "Ye may call the big boy loco, or whatever ye like, but it's grateful we may be to him. An' tell me, if ye can, why didn't the haythins pile in an' polish us all off, after their chief lost his number? No, they don't rush our works, but off they go trailin', as if 'twas themselves had the odds against 'em, och-honin' fit to set ye crazy, an' carryin' their dead, as if the loss o' one man ended the future o' the tribe. Faith, they might have— Ned, ye're never stretchin' that hide right."

"Them Cheyennes was plenty hot at us fer comin' in on their huntin' grounds," said Curly, "an' they shore had it in fer us. I don't think it was what their chief said to them that kep' them back from jumpin' us, ater the fight was over. It's a blame sight more likely that they got a sort o' notion in their heads that Juan was bad medicine. It they get it in their minds that a man is *loco*, an' pertected by spirits, an' that sort o' thing, they won't fight him, fer fear o' gettin' the worst of it. That's about why we got out of there, I reckon. They'd a-took our hosses an' our guns an' our meat, an' been blame apt not to a-fergot our hair, too, if they hadn't got the idee that Juan was too much fer 'em. I'll bet they won't come down in there again in a hundred years"

"I felt sad for them," said Franklin soberly.

Curly smiled slowly. "Well, Cap," said he, "they's a heap o' things out in this here country that seems right hard till you git used to 'em. But what's the ust carin' 'bout a dead Injun here or there? They got to go, one at a time, or more in a bunch. But now, do you know what they just done with ole Mr. White Calf? Why, they taken him out along with 'em a ways, till they thought we was fur enough away from 'em, an' then they probably got a lot

of poles tied up, or else found a tree, an' they planted him on top of a scaffold, like jerked beef, an' left him there fer to dry a-plenty, with all his war clothes on and his gun along with him. Else, if they couldn't git no good place like that, they likely taken him up on to a highish hill, er some rocky place, an' there they covered him up good an' deep with rocks, so'st the wolves wouldn't bother him any. They tell me them buryin' hills is great places fer their lookouts, an' sometimes their folks'll go up on top o' them hills and set there a few days, or maybe overnight, a-hopin' they'll dream something. They want to dream something that'll give 'em a better line on how to run off a whole cavvie-ward o' white men's hosses, next time they git a chanct."

"Ye're a d——d Philistine, Curly," said Battersleigh calmly.

"I'm sorry for them," repeated Franklin, thoughtfully, as he sat idly fingering the lump of clay that lay between his feet. "Just think, we are taking' away from these people everything in the world they had. They were happy as we are—happier, perhaps—and they had their little ambitions, the same as we have ours. We are driving them away from their old country, all over the West, until it is hard to see where they can get a foothold to call their own. We drive them and fight them and kill them, and then—well, then we forget them."

Curly had a certain sense of politeness, so he kept silence for a time. "Well," said he at length, "a Injun could tan hides better'n a white man kin—at least some white men."

"I'm not so sure of that," said Franklin, rousing and replying stoutly. "The white man wins by dodging the issue. Now, look you, the Indian squaw you tell me about would probably hack and hack away at this hide by main strength in getting the flesh off the inside. I am sure I shall do it better,

because I shall study which way the muscles run, and so strip off the flesh along those lines, and not across them."

"I didn't know that made any difference," said Curly. "Besides, how kin you tell?"

"Well, now, maybe there are some things you don't know, after all, Curly," said Franklin. "For instance, can you tell me how many boss ribs there are in the hump of a buffalo?"

"Well, no—o," admitted Curly. "But what's the difference, so long ez I know they're all good to eat ?"

"Plainly, a d——d Philistine," said Battersleigh again, striking a match for his pipe. "But I'm not sure but he had you there, Ned, me boy."

"I'll show you," said Franklin eagerly. "Here it is on the hide. The hump came to here. Here was the knee joint—you can see by the whirl in the muscles as plainly as you could by the curl in the hair there—you can see it under a wolf's leg, the same way; the hair follows the lines of the muscles, you know. Wait, I could almost make you a dummy out of the clay. Now, look here—"

"You're a funny sort o' a feller, Cap," said Curly, "but if you're goin' to tan that hide you'd better finish peggin' it out, an' git to work on it."

CHAPTER XIII

PIE AND ETHICS

One morning Battersleigh was at work at his little table, engaged, as he later explained, upon the composition of a letter to the London Times, descriptive of the Agrarian Situation in the United States of America, when he was interrupted by a knock at his door.

"Come in, come in, Ned, me boy," he exclaimed, as he threw open the door and recognised his visitor. "What's the news this mornin'?"

"News?" said Franklin gaily, holding his hands behind his back. "I've news that you can't guess—good news."

"You don't mean to tell me they've moved the land office into Ellisville, do you, Ned?"

"Oh, no, better than that."

"You've not discovered gold on your quarter section, perchance?"

"Guess again—it's better than that."

"I'll give it up. But leave me a look at your hands."

"Yes," said Franklin, "I'll give you a look, and one more guess." He held up a small bag before Battersleigh's face.

"It's not potatoes, Ned?" said Battersleigh in an awed tone of voice. Franklin laughed.

"No; better than that," he said.

"Ned," said Battersleigh, "do ye mind if I have a bit smell of that bag?"

"Certainly," said Franklin, "you may have a smell, if you'll promise to keep your hands off."

Battersleigh approached his face to the bag and snuffed at it once, twice, thrice, as though his senses needed confirmation. He straightened up and looked Franklin in the face.

"Ned," said he, his voice sinking almost to a whisper, "it's—it's apples!"

"Right," said Franklin. "And isn't that news?"

"The best that could be, and the hardest to believe," said Battersleigh. "Where'd you get them, and how?"

"By diplomacy," said Franklin. "Morrison, one of the transit men of the engineers, was home in Missouri for a visit, and yesterday he came back and brought a sack of apples with him. He was so careless that he let the secret out, and in less than half an hour he had lost two thirds of his sack of apples—the boys wheedled them out of him, or stole them. At last he put the bag, with what was left of the apples, in the safe at the hotel, and left orders that no one should have even a look at them. I went out and sent a man in to tell the clerk that he was wanted at the depot, and while he was away I looted the safe—it wasn't locked—and ran for it. It was legitimate,

wasn't it? I gave Sam one big red apple, for I knew he would rather have it, to give to his Nora, the waiter girl, than the best horse and saddle on the range. The rest—behold them! Tell me, do you know how to make a pie?"

"Ned," said Battersleigh, looking at him with an injured air, "do you suppose I've campaigned all me life and not learned the simplest form of cookin'? Pie? Why, man, I'll lay you a half section of land to a saddle blanket I'll make ye the best pie that ever ye set eye upon in all your life. Pie, indeed, is it?"

"Well," said Franklin, "you take some risks, but we'll chance it. Go ahead. We'll just save out two or three apples for immediate consumption, and not put all our eggs in one basket."

"Wisely spoken, me boy," said Battersleigh. "Ye're a thrue conservative. But now, just ye watch Batty while he goes to work."

Battersleigh busied himself about the little box which made his cupboard, and soon had out what he called his "ingraydeyints."

"Of course, ye've to take a little flour," he said, "that's for the osseous structure, so to speak. Ye've to add a little grease of some sort, lard or butter, an' we've nayther; the bacon fat'll do, methinks. Of course, there's the bakin' powder. Fer I've always noticed that when ye take flour ye take also bakin' powder. Salt? No, I'm sure there's no salt goes in at all; that's against reason, an' ye'll notice that the principles of philosophy go into all the ways of life. And, lastly, makin', as I may say, the roundin' out of the muscular and adipose tissue of the crayture, as the sowl of the pie we must have the apples. It's a sin to waste 'em peelin'; but I think they used to peel 'em, too. And ye've to put in sugar, at laste a couple o' spoons full. Now observe. I roll out this dough—it's odd-actin' stuff, but it's mere idiosyncrasy on its part—I roll this out with a bottle, flat and fine; and I put into this pan, here,

ye'll see. Then in goes the intayrior contints, cut in pieces, ye'll see. Now, thin, over the top of the whole I sprid this thin blanket of dough, thus. And see me thrim off the edges about the tin with me knife. And now I dint in the shircumference with me thumb, the same as July Trelawney did in the Ould Tinth. And there ye are, done, me pie, an' may God have mercy on your sowl!—Ned, build up the fire."

They sat at the side of the little stove somewhat anxiously waiting for the result of Battersleigh's labours. Every once in a while Battersleigh opened the oven door and peered in. "She isn't brownin' just to suit me, Ned," he said, "but that's the fault o' the chimney." Franklin opined that this anxiety boded no certainty of genius, but kept silent. "I'm wonderin' if it's right about that bakin' powder?" said Battersleigh. "Is it too late now, do ye think?"

"This isn't my pie, Battersleigh," said Franklin, "but if anything has gone wrong with those apples it'll take more than a little diplomacy to get you out of the trouble."

As they sat for a moment silent there came the sound of approaching hoof-beats, and presently the cracking and popping of the feet of a galloping horse fell into a duller crunch on the hard ground before the door, and a loud voice called out,

"Whoa-hope, Bronch! Hello, in the house!"

"Come in, Curly," cried Battersleigh. "Come in. We've business of importhance this mornin'."

Curly opened the door a moment later, peering in cautiously, the sunshine casting a rude outline upon the floor, and his figure to those within showing

silhouetted against the background of light, beleggined, befringed, and begloved after the fashion of his craft.

"How! fellers," he said, as he stooped to enter at the low door. "How is the world usin' you all this bright and happy mornin'?"

"Pretty well, me friend," said Battersleigh, his eyes on the stove, importantly. "Sit ye down."

Curly sat down on the edge of the bed, under whose blanket the newspapers still rattled to the touch, "Seems like you all mighty busy this mornin'," said he.

"Yes," said Franklin, "we've got business on hand now. You can't guess what we're cooking."

"No; what?"

"Pie."

"Go 'long!"

"Yes, sir, pie," said Franklin firmly.

Curly leaned back on the bed upon his elbow, respectful but very incredulous.

"Our cook made a pie, onct," said he, to show himself also a man of worldly experience. "That was down on the Cimarron, 'bout four years ago. We et it. I have et worse pie 'n that, an' I have et better. But I never did git a chance to eat all the pie I wanted, not in my whole life. Was you sayin' I'm in on this here pie?"

"Certainly you are. You wait. It'll be done now pretty soon," said Franklin.

"If ye can poke a straw into thim, they're done," said Battersleigh oracularly. "Curly, hand me the broom."

Curly passed over the broom, and the two, with anxiety not unmixed with cynicism, watched Battersleigh as he made several ineffectual attempts to penetrate the armour of the pie.

"Stop lookin' at me like a brace o' evil-minded hyenies," protested Battersleigh. "Ye'd make the devil himself nervous, a-reghardin' one so like a object o' suspicion. Mind ye, I'm goin' to take it out. There's nothin' at all whativver in that ijee of stickin' it with a straw. Moreover, these straws is shameful."

The others watched him eagerly as he removed the hot tin from the oven and set it upon the bare table.

"I'm thinkin' it looks a bit dumpish midships, Ned," said Battersleigh dubiously. "But there's one thing shure, ye'll find all the apples in it, for I've watched the stove door meself, and there's been no possibility fer them to escape. And of course ye'll not forgit that the apples is the main thing in an apple pie. The crust is merely a secondary matter." Battersleigh said this in an airy manner which disarmed criticism. Curly drew his clasp knife from his pocket and cut into the portion assigned to him. Franklin was reserved, but Curly attained enthusiasm at the second bite.

"Rile Irish," said he, "I'm not so sure you're such a h——l of a military man, but as a cook you're a burnin' success. You kin sign with our outfit tomorrer if you want to. Man, if I could bake pie like that, I'd break the Bar O outfit before the season was over! An' if I ever could git all the pie I

wanted to eat, I wouldn't care how quick after that I fanned out. This here is the real thing. That pie that our cook made on the Cimarron—why, it was made of dried apples. Why didn't you tell me you had real apples?"

The pie, startling as it was in some regards, did not long survive the determined assault made upon it. Curly wiped his knife on the leg of his "chaps" and his mouth on the back of his hand.

"But say, fellers," he said, "I plumb forgot what I come over here for. They's goin' to be a dance over to town, an' I come to tell you about it. O' course you'll come."

"What sort of a dance can it be, man?" said Battersleigh.

"Why, a plumb dandy dance; reg'lar high-steppin' outfit; *mucha baille*; best thing ever was in this settlement."

"I'm curious to know where the ladies will come from," said Franklin.

"Don't you never worry," rejoined Curly. "They's plenty o' women-folks. Why, there's the section boss, his wife—you know her—she does the washin' for most everybody. There's Nora, Sam's girl, the head waiter; an' Mary, the red-headed girl; an' Kitty, the littlest waiter girl; an' the new grocery man's wife; an' Hank Peterson's wife, from down to his ranch. Oh, there'll be plenty o' ladies, don't you never doubt. Why, say, Sam, he told me, last time he went down to Plum Centre, he was goin' to ask Major Buford an' his wife, an' the gal that's stayin' with them—tall gal, fine looker—why, Sam, he said he would ast them, an' maybe they'd come up to the dance—who knows? Sam, he says that gal ain't no common sort—whole outfit's a puzzler to him, he says, Sam does."

"And when does this all happen, Curly, boy?" asked Battersleigh.

"Why, night after to-morrer night, to the big stone hotel. They're goin' to clean out the dinin'-room for us. Three niggers, two fiddlers, an' a 'cordion—oh, we'll have music all right! You'll be over, of course?"

"That we will, me boy," responded Battersleigh. "It's mesilf will inthrojuce Captain Franklin to his first haythin ball. Our life on the claim's elevatin', for it leaves time for thought, but it is a bit slow at times. An' will we come? Man, we'll be the first."

"Well, then, so long, fellers," said Curly. "I got to be movin' along a little. See you at the dance, sure."

"Now, as to a ball, Battersleigh," said Franklin, argumentatively, when they were alone, "how can I go? I've not the first decent thing to wear to such a place."

"Tut, tut!" said Battersleigh. "There speaks the coxcombrity of youth. I make no doubt ye'd be the best-dressed man there if ye'd go as ye stand now. But what about Batty? On me honour, Ned, I've never been so low in kit as I am this season here, not since I was lance sergeant in the Tinth. You're able to pull out your blue uniform, I know, an' b'gad! the uniform of an officer is full dress the worrld over! Look at Batty, half mufti, and his allowance a bit late, me boy. But does Batty despair? By no means. 'Tis at times like this that gaynius rises to the occasion."

Franklin grinned amiably. "Thank you for the suggestion about the uniform, at least," he said. "Now, if we can fix you up as well."

Battersleigh came and stood before him, waving a long forefinger.

"Listen to me, Ned," he began, "an' I'll lay down to ye a few of the fundamental rules of conduct and appar'l."

"A gintleman never lies; a gintleman never uses unseemly haste; a gintleman is always ready for love and ready for war—for, Ned, me boy, without love and war we'd miss the only two joys of life. Thereto, a gintleman must shoot, fence, ride, dance, and do anny of 'em like a gintleman. For outwardly appar'l, seein' him clane within, me boy, a gintleman should make the best of what he finds about him. I have slept sweet in turban or burnous in me time. Dress is nothing that we may always control. But if ye found yeself a bit low in kit, as Batty is this day, what would ye say, Ned, me boy, was the first salient—what is the first essintial in the dress of a gintleman, me boy?"

"Linen," said Franklin, "or is it gloves?"

"Ned," said Battersleigh solemnly, laying a hand upon his shoulder, "ye're the dearest boy in the world. Ye're fit to be lance sergeant yersilf in the ould Tinth Rigiment. Right ye are, quite right. White, white, me boy, is the first colour of a gintleman! White, to show the integrity of his honour and the claneeness of his merit roll. Shure, he must have his weapons, and his horse—for a gintleman always rides—and his hat and gloves are matter of course. But, first of all, essintial to him as the soap and crash, is white, sir—yes, white! A touch of white at neck and wrist anny gintleman must show who presints himself at a ball."

"But, now, how?"

Battersleigh pointed a long finger at Franklin, then turned it upon himself, tapping with import upon his forehead. "Look at me, at Batty," he said. "Here is where gaynius comes in, me friend. I may be far from the home that bore me—God prosper them that knows it now!—and I may be a bit behind with me allowance; but never yet was Batty without the arms and the appar'l of a gintleman. Ned, come with me."

Grasping his companion by the arm, Battersleigh stepped outside the house, and strode off with long steps across the prairie. "Come," he said, as one who commanded alike secrecy and despatch. Humouring him, Franklin followed for a quarter of a mile. Then, bending his gaze in the direction of the march, he saw afar, fluttering like a signal of distress in the engulfing sea about, a little whipping flag of white, which was upheld by the gaunt hand of a ragged sage bush. This, as he drew near, he discovered to be a portion of an old flour sack, washed clean and left bleaching in the sun and wind until it had assumed a colour a shade more pure than its original dinginess.

Battersleigh made dramatic approach. "There!" said he, pointing with triumphant dignity to the fluttering rag.

"Yes, I see," said Franklin, "but what do you want of this piece of sack?"

"Sack!" cried Battersleigh, offended. "'Sack!' say you, but I say, 'White!' Look ye, the history of a man is something sacred. 'Sack!' say you, but I say, 'White!' A strip of this at me neck and at me wrist; me hat, an' me sabre and me ridin' whip—I r-ride up to the dure. I dismount. I throw me rein to the man. I inter the hall and place me hat and gloves in order as they should be. I appear—Battersleigh, a gintleman, appears, standin' in the dure, the eyes of all upon him. I bow, salutin', standin' there, alone, short on allowance, but nate and with me own silf-respect. Battersleigh, a bit low in kit and in allowance, with white at neck and wrist, bows, and he says, 'Ladies and gintlemen, Battersleigh is here!'"

CHAPTER XIV

THE FIRST BALL AT ELLISVILLE

The wife of the section boss sat in conscious dignity, as became a leader of society. She was gowned in purple, newly starched, and upon her bosom rose and fell the cross that Jerry gave her long ago. Below her in order of station came Nora, the head waiter, and the red-headed waiter girl, and the littlest waiter girl, and the wife of the new grocery man. These sat silent and unhappy at one part of the long row of chairs that lined the side of the hall. Opposite to them, equally silent and equally unhappy, sat a little row of men. Jerry, the section boss, made no claim to social distinction. He was a simple, plain, hard-working man, whose main concern was in his work, and whose great pride was in the social triumphs of his wife. Jerry was short and broad and sturdy, and his face was very, very red. Near to Jerry sat the new grocery man, and Curly the cowboy, and Del Hickman, another cowboy, and several other cowboys, and Sam, the stage-driver. They were all silent and very miserable. The lights of the big hanging kerosene lamps flickered and cast great shadows, showing the women all with heads very high and backs straight and stiff, the men in various attitudes of jellyfish, with heads hanging and feet screwed under their chairs in search of moral support.

It was the beginning of the ball. These were the first arrivals. At the head of the hall, far off, sat three musicians, negroes alleged to play violins and

an accordion, and by that merit raised to a bad eminence. Gloomy, haughty, superior, these gazed sternly out before them, ready for the worst. Now and then they leaned over the one toward another, and ventured some grim, ghastly remark. Once the leader, an old and gray-haired man, was heard to utter, inadvertently above his breath, the ominous expression, "Yass, indeed!" All in all, the situation was bodeful in the extreme. There was no speech other than that above noted.

After a vast hiatus the door at the main entrance was pulled cautiously open, a little at a time. Evidently some one was looking in. The consciousness of this caused two or three men to shuffle their feet a trifle upon the floor, as though they expected the death march soon to begin. The littlest waiter girl, unable to stand the nervous strain, tittered audibly, which caused Nora, the head waiter, to glare at her through her glasses. At length the door opened, and two figures entered affrightedly, those of Hank Peterson, a neighbouring rancher, and his wife. Hank was dressed in the costume of the time, and the high heels of his boots tapped uncertainly as he made his way over the wide hollow-sounding floor, his feet wobbling and crossing in his trepidation. None the less, having forthwith decoyed to the row of men sitting silent against the wall, he duly reached that harbour and sank down, wiping his face and passing his hand across his mouth uncertainly. His wife was a tall, angular woman, whose garb was like that of most of the other women—cotton print. Yet her hair was combed to the point of fatality, and at her neck she had a collarette of what might have been lace, but was not. Conscious of the inspection of all there assembled, Mrs. Peterson's conduct was different from that of her spouse. With head held very high and a glance of scorn, as of one hurling back some uttered word of obloquy, she marched down the hall to the side occupied by the ladies; nay, even passed the full line as in daring review, and seated herself at the farther end, with head upright, as ready for instant sally of offence.

The door opened again and yet again. Two or three engineers, a rodman, a leveller, and an axeman came in, near behind them more cattlemen. From among the guests of the hotel several came, and presently the clerk of the hotel himself. The line of men grew steadily, but the body upon the opposite side of the room remained constant, immobile, and unchanged. At these devoted beings there glared many eyes from across the room. More and more frequent came the scrape of a foot along the floor, or the brief cough of perturbation. One or two very daring young men leaned over and made some remark in privacy, behind the back of the hand, this followed by a nudge and a knowing look, perhaps even by a snicker, the latter quickly suppressed. Little by little these bursts of courage had their effect. Whispers became spasmodic, indeed even frequent.

"Say, Curly," whispered Del Hickman hoarsely to his neighbour, "ef somethin' don't turn loose right soon I'm due to die right here. I'm thirstier'n if this here floor was the Staked Plains."

"Same here," said Curly in a muttered undertone. "But I reckon we're here till the round-up's made. When she do set loose, you watch me rope that littlest waiter girl. She taken my eye, fer shore."

"That's all right, friend," said Del, apparently relieved. "I didn't know but you'd drew to the red-headed waiter girl. I sorter 'lowed I'd drift over in thataway, when she starts up."

Sam, the driver, was sitting rapt, staring mutely across the great gulf fixed between him and Nora, the head waiter. Nora, by reason of her authority in position, was entitled to wear a costume of white, whereas the waiters of lower rank were obliged by house rules to attire themselves in dark skirts. To Sam's eyes, therefore, Nora, arrayed in this distinguishing garb, appeared at once the more fair and the more unapproachable. As she sat, the light glinting upon her glasses, her chin well upheld, her whole

attitude austere and commanding, Sam felt his courage sink lower and lower, until he became abject and abased. Fascinated none the less, he gazed, until Curly poked him sharply and remarked:

"Which 'un you goin' to make a break fer, Sam?"

"I—I d-d-don't know," said Sam, startled and disturbed.

"Reckon you'd like to mingle some with Nory, hey?"

"W-w-w-well—" began Sam defensively.

"But she don't see it that way. Not in a hundred. Why, she'll be dancin' with Cap Franklin, or Batty, er some folks that's more in her line, you see. Why in h——I don't you pick out somebody more in yer own bunch, like?" Curly was meaning to be only judicial, but he was cruel. Sam collapsed and sat speechless. He had long felt that his ambition was sheer presumption.

The hours grew older. At the head of the hall the musicians manifested more signs of their inexorable purpose. A sad, protesting squeal came from the accordion. The violins moaned, but were held firm. The worst might be precipitated at any moment.

But again there was a transfer of the general attention toward the upper end of the hall. The door once more opened, and there appeared a little group of three persons, on whom there was fixed a regard so steadfast and so silent that it might well have been seen that they were strangers to all present. Indeed, there was but one sound audible in the sudden silence which fell as these three entered the room. Sam, the driver, scraped one foot unwittingly upon the floor as he half leaned forward and looked eagerly at them as they advanced.

Of the three, one was a tall and slender man, who carried himself with that ease which, itself unconscious, causes self-consciousness in those still some generations back of it. Upon the arm of this gentleman was a lady, also tall, thin, pale, with wide, dark eyes, which now opened with surprise that was more than half shock. Lastly, with head up and eyes also wide, like those of a stag which sees some new thing, there came a young woman, whose presence was such as had never yet been seen in the hotel at Ellisville. Tall as the older lady by her side, erect, supple, noble, evidently startled but not afraid, there was that about this girl which was new to Ellisville, which caused the eye of every man to fall upon her and the head of every woman to go up a degree the higher in scorn and disapprobation. This was a being of another world. There was some visitation here. Mortal woman, woman of the Plains, never yet grew like this. Nor had gowns like these—soft, clinging, defining, draping—ever occurred in history. There was some mistake. This creature had fallen here by error, while floating in search of some other world.

Astonished, as they might have been by the spectacle before them of the two rows of separated sex, all of whom gazed steadfastly in their direction; greeted by no welcoming hand, ushered to no convenient seat, these three faced the long, half-lit room in the full sense of what might have been called an awkward situation. Yet they did not shuffle or cough, or talk one with another, or smile in anguish, as had others who thus faced the same ordeal. Perhaps the older lady pressed the closer to the gentleman's side, while the younger placed her hand upon his shoulder; yet the three walked slowly, calmly, deliberately down into what must have been one of the most singular scenes hitherto witnessed in their lives. The man did not forsake his companions to join the row of unfortunates. As they reached the head of the social rank, where sat Mrs. McDermott, the wife of the section boss and *arbiter elegantiarum* for all Ellisville, the gentleman bowed and spoke

some few words, though obviously to a total stranger—a very stiff and suspicious stranger, who was too startled to reply.

The ladies bowed to the wife of the section boss and to the others as they came in turn. Then the three passed on a few seats apart from and beyond the other occupants of that side of the house, thus leaving a break in the ranks which caused Mrs. McDermott a distinct sniff and made the red-headed girl draw up in pride. The newcomers sat near to the second lamp from the musicians' stand, and in such fashion that they were half hid in the deep shadows cast by that erratic luminary.

There was now much tension, and the unhappiness and suspense could have endured but little longer. Again the accordion protested and the fiddle wept. The cornet uttered a faint note of woe. Yet once more there was a pause in this time of joy.

Again the door was pushed open, not timidly, but flung boldly back. There stood two figures at the head of the hall and in the place of greatest light. Of these, one was tall and very thin, but upright as a shaft of pine. Over his shoulder hung a cloak, which he swept aside over his arm with a careless and free gesture of unconcern. He was clad in dark garments; thus much might be said. His face, clean shaven but for the long and pointed mustaches and goatee, was high and bold, his gaze confident and merry. His waistcoat sat high and close. At wrist and neck there showed a touch of white, and a bit of white appeared protruding at the bosom of his coat. His tread was supple and easy as that of a boy of twenty. "Ned, me boy," he whispered to his companion as they entered, "I'm feelin' fine the night; and as for yerself, ye're fit for the court o' St. James at a diplomats' ball."

Franklin, indeed, deserved somewhat of the compliment. He was of that rare figure of man which looks well whether clad for the gymnasium or the ball, upon which clothing does not merely hang, but which fills out and

dignifies the apparel that may be worn. In height the ex-captain was just below the six-foot mark which so often means stature but not strength, and he carried every inch of his size with proportions which indicated vigour and activity. He walked now with the long, easy hip-stride of the man whose sides and back are not weak, but strong and hardened. His head, well set upon the neck, was carried with the chin unconsciously correct, easily, not stiffly. His shoulders were broad enough to hang nicely over the hips, and they kept still the setting-up of the army drill. Dressed in the full uniform of a captain, he looked the picture of the young army officer of the United States, though lacking any of the arrogance which might come from the purely military life. Simply, easily, much as had the little group that immediately preceded himself and friend, Franklin passed on up into the hall, between the batteries which lined the walls.

Any emergency brings forward its own remedy. The times produce the man, each war bringing forth its own generals, its heroes, its solvers of great problems. Thus there came now to these persons assembled, deadlocked, unguided, unhappy, who might else have sat forever rooted to this spot, the man who was to save them, to lead them forth out of their wilderness of incertitude.

None had chosen Battersleigh to the leadership. He came as mere guest, invited as were the others. There had been no election for master of ceremonies, nor had Battersleigh yet had time to fully realize how desperate was this strait in which these folk had fallen. It appeared to him merely that, himself having arrived, there was naught else to cause delay. At the centre of the room he stopped, near by the head of the stern column of womanhood which held the position on the right as one entered the hall. Here Battersleigh paused, making a deep and sweeping bow, and uttered the first open speech which had been heard that evening.

"Ladies and gintlemen," he said in tones easily distinguishable at all parts of the room, "I'm pleased to meet ye all this evenin'. Perhaps ye all know Battersleigh, and I hope ye'll all meet me friend Captain Franklin, at me side. We claim the inthroduction of this roof, me good friends, and we welcome everybody to the first dance at Ellisville. Ladies, yer very dutiful servant! It's well ye're lookin', Mrs. McDermott; and Nora, gyurl, sure ye're charmin' the night. Kittie, darlin', how do ye do? Do ye remember Captain Franklin, all of ye? Pipe up, ye naygurs—that's right. Now, thin, all hands, choose yer partners fer the gr-rand march. Mrs. McDermott, darlin', we'll lead the march, sure, with Jerry's permission—how'll he help himself, I wonder, if the lady says yis? Thank ye, Mrs. McDermott, and me arm—so."

The sheepish figures of the musicians now leaned together for a moment. The violins wailed in sad search for the accord, the assistant instrument less tentative. All at once the slack shoulders straightened up firmly, confidently, and then, their feet beating in unison upon the floor, their faces set, stern and relentless, the three musicians fell to the work and reeled off the opening bars.

A sigh went up from the assembly. There was a general shuffling of shoes, a wide rustling of calico. Feet were thrust forward, the body yet unable to follow them in the wish of the owner. Then, slowly, sadly, as though going to his doom, Curly arose from out the long line of the unhappy upon his side of the room. He crossed the intervening space, his limbs below the knees curiously affected, jerking his feet into half time with the tune. He bowed so low before the littlest waiter girl that his neck scarf fell forward from his chest and hung before him like a shield. "May I hev the honour, Miss Kitty?" he choked out; and as the littlest waiter girl rose and took his arm with a vast air of unconcern, Curly drew a long breath.

In his seat Sam writhed, but could not rise. Nora looked straight in front. It was Hank Peterson, who led her forth, and who, after the occasion was over, wished he had not done so, for his wife sat till the last upon the row. Seeing this awful thing happen, seeing the hand of Nora laid upon another's arm, Sam sat up as one deeply smitten with a hurt. Then, silently, unobserved in the confusion, he stole away from the fateful scene and betook himself to his stable, where he fell violently to currying one of the horses.

"Oh, kick!" he exclaimed, getting speech in these surroundings. "Kick! I deserve it. Of all the low-down, d——n cowards that ever was borned I sure am the worst! But the gall of that feller Peterson! An' him a merried man!"

When Sam left the ballroom there remained no person who was able to claim acquaintance with the little group who now sat under the shadow of the swinging lamp at the lower end of the hall, and farthest from the door. Sam himself might have been more courteous had not his mental perturbation been so great. As it was, the "grand march" was over, and Battersleigh was again walking along the lines in company with his friend Franklin, before either could have been said to have noticed fully these strangers, whom no one seemed to know, and who sat quite apart and unengaged. Battersleigh, master of ceremonies by natural right, and comfortable gentleman at heart, spied out these three, and needed but a glance to satisfy himself of their identity. Folk were few in that country, and Sam had often been very explicit in his descriptions.

"Sir," said Battersleigh, approaching and bowing as he addressed the stranger, "I shall make bold to introjuce meself—Battersleigh of Ellisville, sir, at your service. If I am not mistaken, you will be from below, toward the next town. I bid ye a very good welcome, and we shall all hope to see ye

often, sir. We're none too many here yet, and a gentleman and his family are always welcome among gentlemen. Allow me, sir, to present my friend Captain Franklin, Captain Ned Franklin of the—th' Illinois in the late unpleasantness.—Ned, my boy, Colonel—ye'll pardon me not knowin' the name?"

"My name is Buford, sir," said the other as he rose. "I am very glad to see you gentlemen. Colonel Battersleigh, Captain Franklin. I was so unlucky as to be of the Kentucky troops, sir, in the same unpleasantness. I want to introduce my wife, gentlemen, and my niece, Miss Beauchamp."

Franklin really lost a part of what the speaker was saying. He was gazing at this form half hidden in the shadows, a figure with hands drooping, with face upturned, and just caught barely by one vagrant ray of light which left the massed shades piled strongly about the heavy hair. There came upon him at that moment, as with a flood-tide of memory, all the vague longing, the restlessness, the incertitude of life which had harried him before he had come to this far land, whose swift activity had helped him to forget. Yet even here he had been unsettled, unhappy. He had missed, he had lacked—he knew not what. Sometimes there had come vague dreams, recurrent, often of one figure, which he could not hold in his consciousness long enough to trace to any definite experience or association—a lady of dreams, against whom he strove and whom he sought to banish. Whom he had banished! Whom he had forgotten! Whom he had never known! Who had ever been in his life a vague, delicious mystery!

The young woman rose, and stood out a pace or two from the shadows. Her hand rested upon the arm of the elder lady. She turned her face toward Franklin. He felt her gaze take in the uniform of blue, felt the stroke of mental dislike for the uniform—a dislike which he knew existed, but which he could not fathom. He saw the girl turn more fully toward him, saw upon

her face a querying wonder, like that which he had known in his own dreams! With a strange, half-shivering gesture the girl advanced half a step and laid her head almost upon the shoulder of the elder woman, standing thus for one moment, the arms of the two unconsciously entwined, as is sometimes the way with women. Franklin approached rudeness as he looked at this attitude of the two, still puzzling, still seeking to solve this troubling problem of the past.

There came a shift in the music. The air swept from the merry tune into the minor from which the negro is never musically free. Then in a flash Franklin saw it all. He saw the picture. His heart stopped!

This music, it was the wail of trumpets! These steps, ordered, measured, were those of marching men. These sounds, high, commingling, they were the voices of a day gone swiftly by. These two, this one—this picture—it was not here, but upon the field of wheat and flowers that he saw it now again—that picture of grief so infinitely sad.

Franklin saw, and as he gazed, eager, half advancing, indecision and irresolution dropped from him forever. Resolved from out the shadows, wherein it had never in his most intimate self-searching taken any actual form, he saw the image of that unformulated dream which had haunted his sub-consciousness so long, and which was now to haunt him openly and forever.

CHAPTER XV

ANOTHER DAY

The morning after the first official ball in Ellisville dawned upon another world.

The occupants of the wagons which trailed off across the prairies, the horsemen who followed them, the citizens who adjourned and went as usual to the Cottage—all these departed with the more or less recognised feeling that there had happened a vague something which had given Ellisville a new dignity, which had attached to her a new significance. Really this was Magna Charta. All those who, tired and sleepy, yet cheerful with the vitality of beef and air, were going home upon the morning following the ball, knew in their souls that something had been done. Each might have told you in his way that a new web of human interests and human antagonisms was now laid out upon the loom. Rapid enough was to be the weaving, and Ellisville was early enough to become acquainted with the joys and sorrows, the strivings and the failures, the happinesses and bitternesses of organized humanity.

There are those who sneer at the communities of the West, and who classify all things rural as crude and unworthy, entitled only to tolerance, if they be spared contempt. They are but provincials themselves who are guilty of such attitude, and they proclaim only an ignorance which itself is

not entitled to the dignity of being called intolerance. The city is no better than the town, the town is no better than the country, and indeed one is but little different from the other. Everywhere the problems are the same. Everywhere it is Life which is to be seen, which is to be lived, which is to be endured, to be enjoyed. Perhaps the men and women of Ellisville did not phrase it thus, but surely they felt the strong current which warmed their veins, which gave them hope and belief and self-trust, worth full as much, let us say, as the planted and watered life of those who sometimes live on the earnings of those who have died before them, or on the labour of those who are enslaved to them.

Ellisville, after the first ball, was by all the rules of the Plains admittedly a town. A sun had set, and a sun had arisen. It was another day.

In the mind of Edward Franklin, when he was but a boy, there came often problems upon which he pondered with all the melancholy seriousness of youth, and as he grew to young manhood he found always more problems to engage his thoughts, to challenge his imagination. They told the boy that this earth was but a part of a grand scheme, a dot among the myriad stars. He was not satisfied, but asked always where was the Edge. No recurrent quotient would do for him; he demanded that the figures be conclusive. They told him of the positive and negative poles, and he wished to see the adjoining lines of the two hemispheres of force. Carrying his questionings into youth and manhood, they told him—men and women told him, the birds told him, the flowers told him—that there were marrying and giving in marriage, that there was Love. He studied upon this and looked about him, discovering a world indeed divided into two hemispheres, always about to be joined since ever time began. But it seemed to him that this union must never be that of mere chance. There could be but one way right and fit for the meeting of the two halves of life. He looked about him in the little village where he was brought up, and found that the men had married

the women who were there for them to marry. They had never sailed across seas, had never searched the stars, had never questioned their own souls, asking, "Is this, then, the Other of me?" Seeing that this was the way of human beings, he was ashamed. It aroused him to hear of this man or that who, having attained a certain number of cattle or a given amount of household goods, conceived himself now ready to marry, and who therefore made court to the neighbour's daughter, and who forthwith did marry her. To his dreamer's heart it seemed that there should be search, that there should be a sign, so that it should be sure that the moment had come, that the Other had been found. With some men this delusion lasts very late. With some women it endures forever. For these there may be, after all, another world somewhere in the recurrent quotient which runs indefinitely out into the stars.

With these vague philosophizings, these morbid self-queryings, there came into conflict the sterner and more practical side of Franklin's nature, itself imperious and positive in its demands. Thus he found himself, in his rude surroundings on the Plains, a man still unsettled and restless, ambitious for success, but most of all ambitious with that deadly inner ambition to stand for his own equation, to be himself, to reach his own standards; that ambition which sends so many broken hearts into graves whose headstones tell no history. Franklin wondered deliberately what it must be to succeed, what it must be to achieve. And he wondered deliberately what it must mean to love, to find by good fortune or by just deserts, voyaging somewhere in the weltering sea of life, in the weltering seas of all these unmoved stars, that other being which was to mean that he had found himself. To the searcher who seeks thus starkly, to the dreamer who has not yielded; but who has deserved his dream, there can be no mistaking when the image comes.

Therefore to Edward Franklin the tawdry hotel parlour on the morning after the ball at Ellisville was no mere four-square habitation, but a chamber of the stars. The dingy chairs and sofas were to him articles of joy and beauty. The curtains at the windows, cracked and seamed, made to him but a map of the many devious happinesses which life should thenceforth show. The noises of the street were but music, the voices from the rooms below were speech of another happy world. Before him, radiant, was that which he had vaguely sought. Not for him to marry merely the neighbour's daughter! This other half of himself, with feet running far to find the missing friend, had sought him out through all the years, through all the miles, through all the spheres! This was fate, and at this thought his heart glowed, his eyes shone, his very stature seemed to increase. He wist not of Nature and her ways of attraction. He only knew that here was that Other whose hand, pathetically sought, he had hitherto missed in the darkness of the foregone days. Now, thought he, it was all happily concluded. The quotient was no indefinite one; it had an end. It ended here, upon the edge of the infinite which he had sought; upon the pinnacle of that universe of which he had learned; here, in this brilliant chamber of delight, this irradiant abode, this noble hall bedecked with gems and silks and stars and all the warp and woof of his many, many days of dreams!

Mr. and Mrs. Buford had for the time excused themselves by reason of Mrs. Buford's weariness, and after the easy ways of that time and place the young people found themselves alone. Thus it was that Mary Ellen, with a temporary feeling of helplessness, found herself face to face with the very man whom she at that time cared least to see.

CHAPTER XVI

ANOTHER HOUR

"But it seems as though I had always known you," said Franklin, turning again toward the tall figure at the window. There was no reply to this, neither was there wavering in the attitude of the head whose glossy back was turned to him at that moment.

"It was like some forgotten strain of music!" he blundered on, feeling how hopeless, how distinctly absurd was all his speech. "I surely must always have known you, somewhere!" His voice took on a plaintive assertiveness which in another he would have derided and have recognised as an admission of defeat.

Mary Ellen still gazed out of the window. In her mind there was a scene strangely different from this which she beheld. She recalled the green forests and the yellow farms of Louisburg, the droning bees, the broken flowers and all the details of that sodden, stricken field. With a shudder there came over her a swift resentment at meeting here, near at hand, one who had had a share in that scene of desolation.

Franklin felt keenly enough that he was at disadvantage, but no man may know what there is in the heart of a girl. To Mary Ellen there seemed to be three ways open. She might address this man bitterly, or haughtily, or

humorously. The latter course might have been most deadly of all, had it not been tempered with a certain chivalrousness which abode in Mary Ellen's heart. After all, thought she, here was a man who was one of their few acquaintances in this strange, wild country. It might be that he was not an ill sort of man at heart, and by all means he was less impossible of manner than any other she had seen here. She had heard that the men of a womanless country were sometimes suddenly disconcerted by the appearance of womankind upon their horizon. There was a certain quality about this man which, after all, left him distinctly within the classification of gentleman. Moreover, it would be an ill thing for her to leave a sore heart on the first day of her acquaintance in this town, with which her fortunes were now apparently to be so intimately connected.

Mary Ellen turned at length and seated herself near the window. The light of which many women are afraid, the cross-light of double windows on the morning after a night of dancing, had no terrors for her. Her eye was clear, her skin fresh, her shoulders undrooping. Franklin from his seat opposite gazed eagerly at this glorious young being. From his standpoint there were but few preliminaries to be carried on. This was the design, the scheme. This was what life had had in store for him, and why should he hesitate to enter into possession? Why should he delay to speak that which was foremost in his soul, which assuredly at that very moment must be the foremost concern in all the interlocking universe of worlds? After his fashion he had gone straight. He could not understand the sickening thought that he did not arrive, that his assertion did not convince, that his desire did not impinge.

Mary Ellen turned toward him slowly at length, and so far from seeming serious, her features bore the traces of a smile. "Do you know," said she, "I think I heard of a stage-driver—wasn't it somewhere out West—who was

taking a school-teacher from the railroad to the schoolhouse—and he—well, that is to say—"

"He said things—"

"Yes, that is it. He said things, you know. Now, he had never seen the school-teacher before."

"Yes, I have heard of that story," said Franklin, smiling as he recalled the somewhat different story of Sam and the waiter girl. "I don't just recollect all about it."

"It seems to me that the stage-driver said something—er, like—maybe he said it was 'like forgotten music' to him."

Franklin coloured. "The story was an absurdity, like many others about the West," he said. "But," he brightened, "the stage-driver had never seen the school-teacher before."

"I don't quite understand," said Mary Ellen coldly. "In my country it was not customary for gentlemen to tell ladies when they met for the first time that it was 'like a strain of forgotten music'—not the first time." And in spite of herself she now laughed freely, feeling her feminine advantage and somewhat exulting in spite of herself to see that even here upon the frontier there was opportunity for the employment of woman's ancient craft.

"Music never forgotten, then!" said Franklin impetuously. "This is at least not the first time we have met." In any ordinary duel of small talk this had not been so bad an attack, yet now the results were something which neither could have foreseen. To the mind of the girl the words were shocking, rude, brutal. They brought up again the whole scene of the battlefield. They recalled a music which was indeed not forgotten—the music of that

procession which walked across the heart of Louisburg on that far-off fatal day. She shuddered, and upon her face there fell the shadow of an habitual sadness.

"You have spoken of this before, Captain Franklin," said she, "and if what you say is true, and if indeed you did see me—there—at that place—I can see no significance in that, except the lesson that the world is a very small one. I have no recollection of meeting you. But, Captain Franklin, had we ever really met, and if you really cared to bring up some pleasant thought about the meeting, you surely would never recall the fact that you met me upon that day!"

Franklin felt his heart stop. He looked aside, his face paling as the even tones went on:

"That was the day of all my life the saddest, the most terrible. I have been trying ever since then to forget it. I dare not think of it. It was the day when—when my life ended—when I lost everything, everything on earth I had."

Franklin turned in mute protest, but she continued:

"Because of that day," said she bitterly, "to which you referred as though it were a curious or pleasant thought, since you say you were there at that time—because of that very day I was left adrift in the world, every hope and every comfort gone. Because of Louisburg—why, this—Ellisville! This is the result of that day! And you refer to it with eagerness."

Poor Franklin groaned at this, but thought of no right words to say until ten hours afterward, which is mostly the human way. "I know—I could have known," he blundered—"I should not be so rude as to suppose that—ah, it was only *you* that I remembered! The war is past and gone, The world, as you say, is very small. It was only that I was glad—"

"Ah, sir," said Mary Ellen, and her voice now held a plaintiveness which was the stronger from the droop of the tenderly curving lips—"ah, sir, but you must remember! To lose your relatives, even in a war for right and principle—and the South was right!" (this with a flash of the eye late pensive)—"that is hard enough. But for me it was not one thing or another; it was the sum of a thousand misfortunes. I wonder that I am alive. It seems to me as though I had been in a dream for a long, long time. It is no wonder that those of us left alive went away, anywhere, as far as we could, that we gave up our country—that we came even here!" She waved a hand at the brown monotony visible through the window.

"You blame me as though it were personal!" broke in Franklin; but she ignored him.

"We, our family," she went on, "had lived there for a dozen generations. You say the world is small. It is indeed too small for a family again to take root which has been torn up as ours has been. My father, my mother, my two brothers, nearly every relative I had, killed in the war or by the war—our home destroyed—our property taken by first one army and then the other—you should not wonder if I am bitter! It was the field of Louisburg which cost me everything. I lost all—all—on that day which you wish me to remember. You wish me to remember that you saw me then, that I perhaps saw you. Why, sir, if you wished me to hate you, you could do no better—and I do not wish to hate any one. I wish to have as many friends as we may, here in this new country; but for remembering—why, I can remember nothing else, day or night, but Louisburg!"

"You stood so," said Franklin, doggedly and fatuously, "just as you did last night. You were leaning on the arm of your mother—"

Mary Ellen's eyes dilated. "It was not my mother," said she.

"A friend?" said Franklin, feelingly as he might.

"The mother of a friend," said Mary Ellen, straightening up and speaking with effort. And all the meaning of her words struck Franklin fully as though a dart had sunk home in his bosom.

"We were seeking for my friend, her son," said Mary Ellen. "I—Captain Franklin, I know of no reason why we should speak of such things at all, but it was my—I was to have been married to the man for whom we were seeking, and whom we found! That is what Louisburg means to me. It means this frontier town, a new, rude life for us. It means meeting you all here—as we are glad and proud to do, sir—but first of all it means—that!"

Franklin bowed his head between his hands and half groaned over the pain which he had cost. Then slowly and crushingly his own hurt came home to him. Every fibre of his being, which had been exultingly crying out in triumph at the finding of this missing friend—every fibre so keenly strung—now snapped and sprang back at rag ends. In his brain he could feel the parting one by one of the strings which but now sang in unison. Discord, darkness, dismay, sat on all the world.

The leisurely foot of Buford sounded on the stair, and he knocked gaily on the door jam as he entered.

"Well, niece," said he, "Mrs. Buford thinks we ought to be starting back for home right soon now."

Mary Ellen rose and bowed to Franklin as she passed to leave the room; but perhaps neither she nor Franklin was fully conscious of the leave-taking. Buford saw nothing out of the way, but turned and held out his hand. "By the way, Captain Franklin," said he, "I'm mighty glad to meet you, sir—mighty glad. We shall want you to come down and see us often. It isn't

very far—only about twenty-five miles south. They call our place the Halfway Ranch, and it's not a bad name, for it's only about halfway as good a place as you and I have always been used to; but it's ours, and you will be welcome there. We'll be up here sometimes, and you must come down. We shall depend on seeing you now and then."

"I trust we shall be friends," mumbled Franklin.

"Friends?" said Butord cheerily, the smiling wrinkles of his own thin face signifying his sincerity; "why, man, here is a place where one needs friends, and where he can have friends. There is time enough and room enough, and—well, you'll come, won't you?" And Franklin, dazed and missing all the light which had recently made glad the earth, was vaguely conscious that he had promised to visit the home of the girl who had certainly given him no invitation to come further into her life, but for whose word of welcome he knew that he should always long.

BOOK III

THE DAY OF THE CATTLE

CHAPTER XVII

ELLISVILLE THE RED

Gourdlike, Ellisville grew up in a night. It was not, and lo! it was. Many smokes arose, not moving from crest to crest of the hills as in the past, when savage bands of men signalled the one to the other, but rising steadily, in combined volume, a beacon of civilization set far out in the plains, assuring, beckoning. Silently, steadily, the people came to this rallying place, dropping in from every corner of the stars. The long street spun out still longer its string of toylike wooden houses. It broke and doubled back upon itself, giving Ellisville title to unique distinction among all the cities of the plains, which rarely boasted more than a single street. The big hotel at the depot sheltered a colony of restless and ambitious life. From the East there came a minister with his wife, both fresh from college. They remained a week. The Cottage Hotel had long since lost its key, and day and night there went on vast revelry among the men of the wild, wide West, then seeing for the first time what seemed to them the joy and glory of life. Little parties of men continually came up from the South, in search of opportunity to sell their cattle. Little parties of men came from the East, seeking to buy

cattle and land. They met at the Cottage, and made merry in large fashion, seeing that this was a large land, and new, and unrestrained.

Land and cattle, cattle and land. These themes were upon the lips of all, and in those days were topics of peace and harmony. The cattleman still stood for the nomadic and untrammelled West, the West of wild and glorious tradition. The man who sought for land was not yet recognised as the homesteader, the man of anchored craft, of settled convictions, of adventures ended. For one brief, glorious season the nomad and the home dweller shook hands in amity, not pausing to consider wherein their interests might differ. For both, this was the West, the free, unbounded, illimitable, exhaustless West—Homeric, Titanic, scornful to metes and bounds, having no scale of little things.

Here and there small, low houses, built of the soil and clinging grimly to the soil, made indistinct dots upon the wide gray plains. Small corrals raised their ragged arms. Each man claimed his herd of kine. Slowly, swinging up from the far Southwest, whose settlement, slower and still more crude, had gone on scores of years ago when the Spaniards and the horse Indians of the lower plains were finally beaten back from the *rancherias*, there came on the great herds of the gaunt, broad-horned cattle, footsore and slow and weary with their march of more than a thousand miles. These vast herds deployed in turn about the town of Ellisville, the Mecca for which they had made this unprecedented pilgrimage. They trampled down every incipient field, and spread abroad over all the grazing lands, until every township held its thousands, crowded by the new thousands continually coming on. Long train loads of these cattle, wild and fierce, fresh from the chutes into which they were driven after their march across the untracked empire of the range, rolled eastward day after day. Herd after herd pressed still farther north, past Ellisville, going on wearily another thousand miles, to found the Ellisvilles of the upper range, to take the place of the buffalo driven from

the ancient feeding grounds. Scattered into hundreds and scores and tens, the local market of the Ellisville settlers took its share also of the cheap cattle from the South, and sent them out over the cheap lands.

It was indeed the beginning of things. Fortune was there for any man. The town became a loadstone for the restless population ever crowding out upon the uttermost frontier. The men from the farther East dropped their waistcoats and their narrow hats at Ellisville. All the world went under wide felt and bore a jingling spur. Every man was armed. The pitch of life was high. It was worth death to live a year in such a land! The pettinesses fell away from mankind. The horizon of life was wide. There was no time for small exactness. A newspaper, so called, cost a quarter of a dollar. The postmaster gave no change when one bought a postage stamp. A shave was worth a quarter of a dollar, or a half, or a dollar, as that might be. The price of a single drink was never established, since that was something never called for. For a cowman to spend one hundred dollars at the Cottage bar, and to lose ten thousand dollars at cards later in the same evening, was a feat not phenomenal. There were more cattle, south in Texas. The range-men, acquainted with danger and risk, loving excitement, balked at no hazard. Knowing no settled way of life, ignorant of a roof, careless of the ways of other lands, this town was a toy to them, a jest, just as all life, homeless, womanless, had been a jest. By day and by night, ceaseless, crude, barbaric, there went on a continuous carousal, which would have been joyless backed by a vitality less superb, an experience less young. Money and life—these two things we guard most sacredly in the older societies, the first most jealously, the latter with a lesser care. In Ellisville these were the commodities in least esteem. The philosophy of that land was either more ignorant or more profound than ours. Over all the world, unaided by a sensational press, and as yet without even that non-resident literature which was later to discover the Ellisvilles after the Ellisvilles were gone, there spread the tame of Ellisville the Red, the lustful, the

unspeakable. Here was a riot of animal intensity of life, a mutiny of physical man, the last outbreak of the innate savagery of primitive man against the day of shackles and subjugation. The men of that rude day lived vehemently. They died, and they escaped. The earth is trampled over their bold hearts, and they have gone back into the earth, the air, the sky, and the wild flowers. Over their graves tread now those who bow the neck and bear the burden and feed the wheels, and know the despair of that civilization which grinds hope from out the heart. The one and the other came, departed, and will depart. The one and the other, the bond and the free, the untamed and the broken, were pawns in the iron game of destiny.

The transient population of Ellisville, the cattle sellers and cattle buyers and land seekers, outnumbered three to one the resident or permanent population, which catered to this floating trade, and which supplied its commercial or professional wants. The resident one third was the nucleus of the real Ellisville that was to be. The social compact was still in embryo. Life was very simple. It was the day of the individual, the day before the law.

With this rude setting there was to be enacted a rapid drama of material progress such as the world has never elsewhere seen; but first there must be played the wild prologue of the West, never at any time to have a more lurid scene than here at the Halfway House of a continent, at the intersection of the grand transcontinental trails, the bloody angle of the plains. Eight men in a day, a score in a week, met death by violence. The street in the cemetery doubled before that of the town. There were more graves than houses. This superbly wasteful day, how could it presage that which was to come? In this riotous army of invasion, who could have foreseen the population which was to follow, adventurous yet tenacious, resolved first upon independence, and next upon knowledge, and then upon the fruits of knowledge? Nay, perhaps, after all, the prescience of this coming time lay

over Ellisville the Red, so that it roared the more tempestuously on through its brief, brazen day.

CHAPTER XVIII

STILL A REBEL

In the swift current of humanity then streaming up and down the cattle range, the reputation of the Halfway House was carried far and near; and for fifty miles east and west, for five hundred miles north and south, the beauty of the girl at the Halfway House was matter of general story. This was a new sort of being, this stranger from another land, and when applied to her, all the standards of the time fell short or wide. About her there grew a saga of the cow range, and she was spoken of with awe from the Brazos to the Blue. Many a rude cowman made long pilgrimage to verify rumours he had heard of the personal beauty, the personal sweetness of nature, the personal kindness of heart, and yet the personal reserve and dignity of this new goddess, whose like was not to be found in all the wide realms of the range. Such sceptics came in doubt, but they remained silent and departed reverent. Wider and wider grew her circle of devoted friends—wild and desperate men who rarely knew a roof and whose hands stayed at no deed, but who knew with unerring accuracy the value of a real woman.

For each of these rude, silent, awkward range riders, who stammered in all speech except to men or horses, and who stumbled in all locomotion but that of the saddle, Mary Ellen had a kind spot in her soul, never ceasing to wonder as she did at the customs and traditions of their life. Pinky Smith, laid up at the Halfway House with a broken leg (with which he had come in

the saddle for over fifty miles), was blither in bed than he had ever been at table. Ike Wallace, down with a fever at the same place, got reeling into saddle at dawn of a cheerless day, and rode himself and a horse to death that day in stopping a stampede. Pain they knew not, fear they had not, and duty was their only god. They told her, simply as children, of deeds which now caused a shudder, now set tingling the full blood of enthusiasm, and opened up unconsciously to her view a rude field of knight-errantry, whose principles sat strangely close with the best traditions of her own earlier land and time. They were knights-errant, and for all on the Ellisville trail there was but one lady. So hopeless was the case of each that they forbore to argue among themselves.

"No broadhorn there," said Pinky Smith, after he got well, and assumed the envied position of oracle on matters at the Halfway House. "That ain't no range stock, I want to tell you all. What in h——l she doin' out yer I give it up, but you can mark it down she ain't no common sort."

"Oh, she like enough got some beau back in the States," said another, grumblingly.

"Yes, er up to Ellis," said Pinky, sagely. "Thet lawyer feller up there, he come down to the ranch twict when I was there, and I 'low he's shinin' round some."

"Well, I dunno," said the other, argumentatively, as though to classify lawyers and cow-punchers in much the same category.

"But, pshaw!" continued Pinky. "He don't seem to hold no edge neither, fur's I could see. It was him that was a-doin' all the guessin'. She just a-standin' pat all the time, same fer him as fer everybody else. Reckon she ain't got no beau, an' don't want none."

"Beau be d——d!" said his friend. "Who said anything about beau? First thing, feller's got to be fitten. Who's fitten?"

"That's right," said Pinky. "Yet I shore hope she's located yer fer keeps. Feller says, 'They's no place like home,' and it's several mile to another ranch like that'n', er to another gal like her."

"D——n the lawyer!" said the other, after a time of silence, as they rode on together; and Pinky made understanding reply.

"That's what!" said he. "D——n him, anyhow!"

As for Edward Franklin himself, he could not in his moments of wildest egotism assign himself to a place any better than that accorded each member of the clans who rallied about this Southern lady transplanted to the Western plains. Repulsed in his first unskilled, impetuous advance; hurt, stung, cut to the quick as much at his own clumsiness and failure to make himself understood as at the actual rebuff received. Franklin none the less in time recovered sufficient equanimity to seek to avail himself of such advantages as still remained; and he resolved grimly that he would persist until at least he had been accepted as something better than a blundering boor. Under Major Buford's invitation he called now and again at the Halfway Ranch, and the major was gladder each time to see him, for he valued the society of one whose experiences ran somewhat parallel with his own, and whose preferences were kindred to those of his natural class; and, moreover, there was always a strange comradery among those whose problems were the same, the "neighbours" of the sparsely settled West. Mrs. Buford also received Franklin with pleasure, and Mary Ellen certainly always with politeness. Yet, fatal sign, Mary Ellen never ran for her mirror when she knew that Franklin was coming. He was but one of the many who came to the Halfway House; and Franklin, after more than one quiet repulse, began to know that this was an indifference grounded deeper than

the strange haughtiness which came to be assumed by so many women of the almost womanless West, who found themselves in a land where the irreverent law of supply and demand assigned to them a sudden value.

Of lovers Mary Ellen would hear of none, and this was Franklin's sole consolation. Yet all day as he laboured there was present in his subconsciousness the personality of this proud and sweet-faced girl. Her name was spelled large upon the sky, was voiced by all the birds. It was indeed her face that looked up from the printed page. He dared not hope, and yet shrunk from the thought that he must not, knowing what lethargy must else engulf his soul. By day a sweet, compelling image followed him, until he sought relief in sleep. At night she was again the shadowy image of his dreams. Reason as well as instinct framed excuses for him, and he caught himself again arguing with the world that here was destiny, here was fate! Wandering blindly over all the weary intervening miles, weak and in need of strength to shelter her, tender and noble and gentle, worthy of love and needing love and care in these rude conditions for which she was so unfit—surely the stars had straightened out his life for him and told him what to do! He heard so clearly the sweet, imperious summons which is the second command put upon animate nature: First, to prevail, to live; second, to love, to survive! Life and love, the first worthless without the latter, barren, flowerless, shorn of fruitage, branded with the mark of the unattained. As tree whispers unto tree, as flower yearns to flower, so came the mandate to his being in that undying speech that knows no change from the beginning to the end of time.

Against this overwhelming desire of an impetuous love there was raised but one barrier—the enduring resistance of a woman's will, silent, not strenuous, unprotesting, but unchanged. To all his renewed pleadings the girl said simply that she had no heart to give, that her hope of happiness lay buried on the field of Louisburg, in the far-off land that she had known in

younger and less troubled days. Leaving that land, orphaned, penniless, her life crushed down at the very portal of womanhood, her friends scattered, her family broken and destroyed, her whole world overturned, she had left also all hope of a later happiness. There remained to her only the memory of a past, the honour that she prized, the traditions which she must maintain. She was "unreconstructed," as she admitted bitterly. Moreover, so she said, even could it lie in her heart ever to prove unfaithful to her lover who had died upon the field of duty, never could it happen that she would care for one of those who had murdered him, who had murdered her happiness, who had ruined her home, destroyed her people, and banished her in this far wandering from the land that bore her.

"Providence did not bring me here to marry you," she said to Franklin keenly, "but to tell you that I would never marry you—never, not even though I loved you, as I do not. I am still a Southerner, am still a 'rebel.' Moreover, I have learned my lesson. I shall never love again."

CHAPTER XIX

THAT WHICH HE WOULD

Poor medicine as it is, work was ever the best salve known for a hurting heart. Franklin betook him to his daily work, and he saw success attend his labours. Already against the frank barbarity of the cattle days there began to push the hand of the "law-and-order" element, steadily increasing in power. Although all the primitive savage in him answered to the summons of those white-hot days to every virile, daring nature, Franklin none the less felt growing in his heart the stubbornness of the man of property, the landholding man, the man who even unconsciously plans a home, resolved to cling to that which he has taken of the earth's surface for his own. Heredity, civilization, that which we call common sense, won the victory. Though he saw his own face in the primeval mirror here held up to him, Franklin turned away. It was sure to him that he must set his influence against this unorganized day of waste and riotousness. He knew that this perfervid time could not endure, knew that the sweep of American civilization must occupy all this land as it had all the lands from the Alleghenies to the plains. He foresaw in this crude new region the scene of a great material activity, a vast industrial development. The swift action of the early days was to the liking of his robust nature, and the sweep of the cattle trade, sudden and unexpected as it had been, in no wise altered his original intention of remaining as an integer of this community. It needed no great foresight to realize that all this land, now so wild and cheap, could

not long remain wild and cheap, but must follow the history of values as it had been written up to the edge of that time and place.

Of law business of an actual sort there was next to none at Ellisville, all the transactions being in wild lands and wild cattle, but, as did all attorneys of the time, Franklin became broker before he grew to be professional man. Fortunate in securing the handling of the railroad lands, he sold block after block of wild land to the pushing men who came out to the "front" in search of farms and cattle ranches. His own profits he invested again in land. Thus he early found himself making much more than a livelihood, and laying the foundation of later fortune. Long since he had "proved up" his claim and moved into town permanently, having office and residence in the great depot hotel which was the citadel of the forces of law and order, of progress and civilization in that land.

The railroad company which founded Ellisville had within its board of directors a so-called "Land and Improvement Company," which latter company naturally had the first knowledge of the proposed locations of the different towns along the advancing line. When the sale of town lots was thrown open to the public, it was always discovered that the Land and Improvement Company had already secured the best of the property in what was to be the business portion of the town. In the case of Ellisville, this inner corporation knew that there was to be located here a railroad-division point, where ultimately there would be car shops and a long pay roll of employees. Such a town was sure to prosper much more than one depending solely upon agriculture for its support, as was to be the later history of many or most of these far Western towns. Franklin, given a hint by a friendly official, invested as he was able in town property in the village of Ellisville, in which truly it required the eye of faith to see any prospect of great enhancement. Betimes he became owner of a quarter-section of land here and there, in course of commissions on sales. He was careful to take

only such land as he had personally seen and thought fit for farming, and always he secured land as near to the railroad as was possible. Thus he was in the ranks of those foreseeing men who quietly and rapidly were making plans which were later to place them among those high in the control of affairs. All around were others, less shrewd, who were content to meet matters as they should turn up, forgetting that

"The hypocritic days
Bring diadems and fagots in their hands;
To each they offer gifts after his will."

Everywhere was shown the Anglo-Saxon love of land. Each man had his quarter-section or more. Even Nora, the waitress at the hotel, had "filed on a quarter," and once in perhaps a month or so would "reside" there overnight, a few faint furrows in the soil (done by her devoted admirer, Sam) passing as those legal "improvements" which should later give her title to a portion of the earth. The land was passing into severalty, coming into the hands of the people who had subdued it, who had driven out those who once had been its occupants. The Indians were now cleared away, not only about Ellisville but far to the north and west. The skin-hunters had wiped out the last of the great herds of the buffalo. The face of Nature was changing. The tremendous drama of the West was going on in all its giant action. This torrent of rude life, against which the hands of the law were still so weak and unavailing, had set for it in the ways of things a limit for its flood and a time for its receding.

The West was a noble country, and it asked of each man what nobility there was in his soul. Franklin began to grow. Freed from the dwarfing influences of army life, as well as from the repressing monotony of an old and limited community, he found in the broad horizon of his new surroundings a demand that he also should expand. As he looked beyond

the day of cattle and foresaw the time of the plough, so also he gazed far forward into the avenues of his own life, now opening more clearly before him. He rapidly forecast the possibilities of the profession which he had chosen, and with grim self-confidence felt them well within his power. Beyond that, then, he asked himself, in his curious self-questioning manner, what was there to be? What was to be the time of his life when he could fold his hands and say that, no matter whether it was success or failure that he had gained, he had done that which was in his destiny to do? Wherein was he to gain that calmness and that satisfaction which ought to attend each human soul, and entitle it to the words "Well done"? Odd enough were some of these self-searchings which went on betimes in the little office of this plainsman lawyer; and strangest of all to Franklin's mind was the feeling that, as his heart had not yet gained that which was its right, neither had his hand yet fallen upon that which it was to do.

Franklin rebelled from the technical side of the law, not so much by reason of its dry difficulty as through scorn of its admitted weakness, its inability to do more than compromise; through contempt of its pretended beneficences and its frequent inefficiency and harmfulness. In the law he saw plainly the lash of the taskmaster, driving all those yoked together in the horrid compact of society, a master inexorable, stone-faced, cruel. In it he found no comprehension, seeing that it regarded humanity either as a herd of slaves or a pack of wolves, and not as brethren labouring, suffering, performing a common destiny, yielding to a common fate. He saw in the law no actual recognition of the individual, but only the acknowledgment of the social body. Thus, set down in a day miraculously clear, placed among strong characters who had never yet yielded up their souls, witnessing that time which knew the last blaze of the spirit of men absolutely free. Franklin felt his own soul leap into a prayer for the continuance of that day. Seeing then that this might not be, he fell sometimes to the dreaming of how he might some day, if blessed by the pitying and understanding spirit of things,

bring out these types, perpetuate these times, and so at last set them lovingly before a world which might at least wonder, though it did not understand. Such were his vague dreams, unformulated; but, happily, meantime he was not content merely to dream.

CHAPTER XX

THE HALFWAY HOUSE

"Miss Ma'y Ellen," cried Aunt Lucy, thrusting her head in at the door, "oh, Miss Ma'y Ellen, I wish't you'd come out yer right quick. They's two o' them prai' dogs out yer a-chasin' ouah hens agin—nasty, dirty things!"

"Very well, Lucy," called out a voice in answer. Mary Ellen arose from her seat near the window, whence she had been gazing out over the wide, flat prairie lands and at the blue, unwinking sky. Her step was free and strong, but had no hurry of anxiety. It was no new thing for these "prairie dogs," as Aunt Lucy persisted in calling the coyotes, to chase the chickens boldly up to the very door. These marauding wolves had at first terrified her, but in her life on the prairies she had learned to know them better. Gathering each a bit of stick, she and Aunt Lucy drove away the two grinning daylight thieves, as they had done dozens of times before their kin, all eager for a taste of this new feathered game that had come in upon the range. With plenteous words of admonition, the two corralled the excited but terror-stricken speckled hen, which had been the occasion of the trouble, driving her back within the gates of the inclosure they had found a necessity for the preservation of the fowls of their "hen ranch." Once inside the protecting walls, the erring one raised her feathers in great anger and stalked away in high dudgeon, clucking out anathemas against a country

where a law-abiding hen could not venture a quarter of a mile from home, even at the season when bugs were juiciest.

"It's that same Domineck, isn't it, Lucy?" said Mary Ellen, leaning over the fence and gazing at the fowls.

"Yess'm, that same ole hen, blame her fool soul! She's mo' bother'n she's wuf. I 'clare, ever' time I takes them er' chickens out fer a walk that ole Sar' Ann hen, she boun' fer to go off by herse'f somewheres, she's that briggotty; an' first thing I knows, dar she is in trouble again—low down, no 'count thing, I say!"

"Poor old Sarah!" said Mary Ellen. "Why, Aunt Lucy, she's raised more chickens than any hen we've got."

"Thass all right, Miss Ma'y Ellen, thass all right, so she have, but she made twict as much trouble as any hen we got, too. We kin git two dollahs fer her cooked, an' seems like long's she's erlive she boun' fer ter keep me chasin' 'roun' after her. I 'clare, she jest keep the whole lot o' ouah chickens wore down to a frazzle, she traipsin 'roun' all the time, an' them a-follerin' her. Jess like some womenfolks. They gad 'roun' so much they kain't git no flesh ontoe 'em. An', of co'se," she added argumentatively, "we all got to keep up the reppytation o' ouah cookin'. I kain't ask these yer men a dollah a meal—not fer no lean ole hen wif no meat ontoe her bones—no, ma'am."

Aunt Lucy spoke with professional pride and with a certain right to authority. The reputation of the Halfway House ran from the Double Forks of the Brazos north to Abilene, and much of the virtue of the table was dependent upon the resources of this "hen ranch," whose fame was spread abroad throughout the land. Saved by the surpassing grace of pie and "chicken fixings," the halting place chosen for so slight reason by Buford and his family had become a permanent abode, known gratefully to many

travellers and productive of more than a living for those who had established it. It was, after all, the financial genius of Aunt Lucy, accustomed all her life to culinary problems, that had foreseen profit in eggs and chickens when she noted the exalted joy with which the hungry cow-punchers fell upon a meal of this sort after a season of salt pork, tough beef, and Dutch-oven bread.

At first Major Buford rebelled at the thought of innkeeping. His family had kept open house before the war, and he came from a land where the thoughts of hospitality and of price were not to be mentioned in the same day. Yet all about him lay the crude conditions of a raw, new country. At best he could get no product from the land for many months, and then but a problematical one. He was in a region where each man did many things, and first that thing which seemed nearest at hand to be done. It was the common sense of old Aunt Lucy which discovered the truth of the commercial proposition that what a man will pay for a given benefit is what he ought to pay. Had Aunt Lucy asked the cow-punchers even twice her tariff for a pie they would have paid it gladly. Had Mary Ellen asked them for their spurs and saddles, the latter would have been laid down.

From the Halfway House south to the Red River there was nothing edible. And over this Red River there came now swarming uncounted thousands of broad-horned cattle, driven by many bodies of hardy, sunburned, beweaponed, hungry men. At Ellisville, now rapidly becoming an important cattle market, the hotel accommodations were more pretentious than comfortable, and many a cowman who had sat at the board of the Halfway House going up the trail, would mount his horse and ride back daily twenty-five miles for dinner. Such are the attractions of corn bread and chicken when prepared by the hands of a real genius gone astray on this much-miscooked world.

Many other guests were among those "locators," who came out to Ellisville and drove to the south in search of "claims." These usually travelled over the route of Sam, the stage-driver, who carried the mail to Plum Centre during its life, and who never failed to sound the praises of the Halfway House. Thus the little Southern family quickly found itself possessed of a definite, profitable, and growing business. Buford was soon able to employ aid in making his improvements. He constructed a large dugout, after the fashion of the dwelling most common in the country at that time, This manner of dwelling, practically a roofed-over cellar, its side-walls showing but a few feet above the level of the earth, had been discovered to be a very practical and comfortable form of living place by those settlers who found a region practically barren of timber, and as yet unsupplied with brick or boards. In addition to the main dugout there was a rude barn built of sods, and towering high above the squat buildings rose the frame of the first windmill on the cattle trail, a landmark for many miles. Seeing these things growing up about him, at the suggestion and partly through the aid of his widely scattered but kind-hearted neighbours, Major Buford began to take on heart of grace. He foresaw for his people an independence, rude and far below their former plane of life, it was true, yet infinitely better than a proud despair.

It was perhaps the women who suffered most in the transition from older lands to this new, wild region. The barren and monotonous prospect, the high-keyed air and the perpetual winds, thinned and wore out the fragile form of Mrs. Buford. This impetuous, nerve-wearing air was much different from the soft, warm winds of the flower-laden South. At night as she lay down to sleep she did not hear the tinkle of music nor the voice of night-singing birds, which in the scenes of her girlhood had been familiar sounds. The moan of the wind in the short, hard grass was different from its whisper in the peach trees, and the shrilling of the coyotes made but rude substitute

for the trill of the love-bursting mocking bird that sang its myriad song far back in old Virginia.

Aunt Lucy's soliloquizing songs, when she ceased the hymns of her fervid Methodism, turned always to that far-off, gentle land where life had been so free from anxiety or care. Of Dixie, of the Potomac, of old Kentucky, of the "Mississip'," of the land of Tennessee—a score of songs of exile would flow unconscious from her lips, until at last, bethinking to herself, she would fall to weeping, covering her face with her apron and refusing to be comforted by any hand but that of Mary Ellen, the "young Miss Beecham," whose fortunes she had followed to the end of the world.

Sometimes at night Mrs. Buford and her niece sang together the songs of the old South, Mary Ellen furnishing accompaniment with her guitar. They sang together, here beneath the surface of this sweeping sea of land, out over which the red eye of their home looked wonderingly. And sometimes Mary Ellen sang to her guitar alone, too often songs which carried her back to a morbid, mental state, from which not even the high voice of this glad, new land could challenge her. Very far away to her seemed even the graves of Louisburg. Father, mother, brothers, lover, every kin of earth nearest to her, had not death claimed them all? What was there left, what was there to be hoped here, cast away on this sea of land, this country that could never be a land of homes? Sad doctrine, this, for a young woman in her early twenties, five feet five, with the peach on her cheek in spite of the burning wind, and hands that reached out for every little ailing chicken, for every kitten, or puppy that wanted comforting.

But when the morning came and the sun rose, and the blue sky smiled, and all the earth seemed to be vibrant with some high-keyed summoning note—how difficult then it was to be sad! How far away indeed seemed the once-familiar scenes! How hard it was not to hope, here in this land of self-

reliance and belief! It was the horror of Mary Ellen's soul that when this sun shone she could not be sad. This land, this crude, forbidding, fascinating land—what was there about it that swept her along against her will?

CHAPTER XXI

THE ADVICE OF AUNT LUCY

One day Aunt Lucy, missing Quarterly Meeting, and eke bethinking herself of some of those aches and pains of body and forebodings of mind with which the negro is never unprovided, became mournful in her melody, and went to bed sighing and disconsolate. Mary Ellen heard her voice uplifted long and urgently, and suspecting the cause, at length went to her door.

"What is it, Aunt Lucy?" she asked kindly.

"Nothin', mam; I jess rasslin' wit ther throne o' Grace er l'il bit. I don't wan' to 'sturb you-all."

"We don't want to disturb you, either, Aunt Lucy," said Mary Ellen gently.

"Thass hit, Miss Ma'y Ellen, thass *hit*! It ain't fitten fer a ole nigger 'ooman to be prayin' erroun' whah white folks is. You kain't seem to let out good an' free; 'n ef I kain't let out good an' free, 'pears like I don't git no hol' on salvation. We all po' weak sinners, Miss Ma'y Ellen."

"Yes, I know, Lucy."

"An' does you know, Miss Ma'y Ellen, I sorter gits skeered sometimes, out yer, fer fear mer supplercashuns ain't goin' take holt o' heaven jess right. White folks has one way er prayin', but er nigger kain't pray erlone—no, mam, jess kain't pray erlone."

"I thought you were doing pretty well, Lucy."

"Yass'm, pretty well, but not nothin' like hit useter be back in ole Vehginny, when 'bout er hunderd niggers git to prayin' all to onct. Thass whut goin' to fotch the powah on er suffrin' human soul—yes, ma'm!"

"Now, Aunt Lucy," said Mary Ellen sagely, "there isn't anything wrong with your soul at all. You're as good an old thing as ever breathed, I'm sure of that, and the Lord will reward you if he ever does any one, white or black."

"Does you think that, honey?"

"Indeed I do."

"Well, sometimes I thinks the Lord ain' goin' to fergive me fer all ther devilment I done when I was l'il. You know, Miss Ma'y Ellen, hit take a life er prayer to wipe out ouah transgresshuns. Now, how kin I pray, not to say *pray*, out yer, in this yer lan'? They ain't a chu'ch in a hunderd mile o' yer, so fer's I kin tell, an' they shoh'ly ain't no chu'ch fer cullud folks. Law me, Miss Ma'y Ellen, they ain't ary nother nigger out yer nowheres, an' you don' know how lonesome I does git! Seems to me like, ef I c'd jess know er sengle nigger, so'st we c'd meet onct in er while, an' so'st we c'd jess kneel down togetheh an' pray comfer'ble like, same's ef 'twus back in ole Vehginny—why, Miss Ma'y Ellen, I'd be the happiest ole 'ooman ever you did see. Mighty bad sort o' feelin', when a pusson ain't right shore 'bout they soul. An' when I has to pray erlone, I kain't never be right shore!"

Mary Ellen rose and went to her room, returning with her guitar. She seated herself upon the side of the bed near Aunt Lucy—an act which would have been impossible of belief back in old Virginia—and touched a few low chords. "Listen, Aunt Lucy," she said; "I will play and you may sing. That will make you feel better, I think."

It was only from a perfect understanding of the negro character that this proposal could come, and only a perfect dignity could carry it out with grace; yet there, beneath the floor of the wide prairie sea, these strange exercises were carried on, the low throbbing of the strings according with the quavering minors of the old-time hymns, until Aunt Lucy wiped her eyes and smiled.

"Thank yer. Miss Ma'y' Ellen," she said; "thank yer a thousand times. You shoh'ly does know how toe comfort folks mighty well, even a pore ole nigger. Law bless yer, honey, whut c'd I do without yer, me out yer all erlone? Seems like the Lord done gone 'way fur off, 'n I kain't fotch him noways; but when white folks like Miss Ma'y Ellen Beecham come set down right side o' me an' sing wif me, den I know ther Lord, he standin' by listenin'. Yas'm, he shoh'ly goin' to incline his eah!"

Women are women. There is no synonym. Women, white and white, black and black, or, if need be, white and black, have sympathies and understandings and revealings which they never carry to the opposite sex. It is likely that no man ever explored the last intricacy of that sweet and wondrous maze, a woman's heart; yet the woman who marries, and who has with her a husband, sets herself for the time outside the circle of all other husbandless women who may be about her. Thus it was that—without any loss of self-respect upon the one side, or any forgetfulness upon the other of that immovable line between black and white which had been part of the

immemorial creed of both—Mary Ellen and Aunt Lucy, being companionless, sometimes drifted together in the way of things.

On the morning following Aunt Lucy's devotional exercises that good soul seemed to be altogether happy and contented, and without any doubts as to her future welfare. She busied herself with the preparation of the food for the chickens, meantime half unconsciously humming a song in reminiscent minor. "Custard pie—custard pie," she sang, softly, yet unctuously, as she stirred and mingled the materials before her; "custard pie—*custard* pie. Hope ter eat hit twell I die—twell I die."

Mary Ellen was out in the open air, bonnetless and all a-blow. It was a glorious, sunny day, the air charged with some essence of vital stimulus. Tall and shapely, radiant, not yet twenty-three years of age, and mistress of earth's best blessing, perfect health—how could Mary Ellen be sad? All the earth and sky, and the little twittering ground birds, and the bustling fowls, forbade it. The very stir of life was everywhere. She walked, but trod as steps the wild deer, lightly, with confidence, high-headed.

"Chick-chick-chick-chickee!" called Mary Ellen, bending over the fence of the chicken yard, and noting with pleasure the hurrying, clacking throng of fowls that answered and swarmed about her. "Chick, chick, chick!"

"I'll be thah t'reckly wif ther feed, Miss Ma'y Ellen," called out Aunt Lucy from the kitchen. And presently she emerged and joined her mistress at the corral.

"Aunt Lucy," said Mary Ellen, "do you suppose we could ever raise a garden?"

"Whut's dat, chile—raise er gyarden? Kain't raise no gyarden out yer, noways."

"I was just thinking may be we could have a garden, just a little one, next year."

"Hit don' never rain ernuf, chile, in this yer country."

"I know, but couldn't we use the water from the well? The windmill is always pumping it up, and it only runs to waste. I was thinking, if we had a few peas, or beans, or things like that, you know—"

"Uh-huh!"

"And do you suppose a rose bush would grow—a real rose bush, over by the side of the house?"

"Law, no, chile, whut you talkin' 'bout? Nothin' hain't goin' to grow yer, 'less'n hit's a little broom cohn, er some o' that alfalafew, er that soht er things. Few beans might, ef we worterred 'em. My lan!" with a sudden interest, as she grasped the thought, "whut could I git fer right fraish beans, real string beans, I does wondeh! Sakes, ef I c'd hev string beans an' apple pies, I shoh'ly c'd make er foh'tune, right quick. Why, they tellin' me, some folks over ontoe that ther Smoky River, las' fall, they gethered 'bout hate er peck o' sour green crabapples, an' they trade hate o' them ornery things off fer a beef critter—'deed they did. String beans—why, law, chile!"

"We'll have to think about this garden question some day," said Mary Ellen. She leaned against the corral post, looking out over the wide expanse of the prairie round about. "Are those our antelope out there, Lucy?" she asked, pointing out with care the few tiny objects, thin and knifelike, crowned with short black forking tips, which showed up against the sky line on a distant ridge. "I think they must be. I haven't noticed them for quite a while."

"Yass'm," said Aunt Lucy, after a judicial look. "Them blame l'il goats. Thass um. I wish't they all wuzn't so mighty peart an' knowin' all ther time, so'st Majah Buford he c'd git one o' them now an' then fer to eat. Antelope tennerline is shoh'ly mighty fine, briled. Now, ef we jess had a few sweet 'taters. But, law! whut am I sayin'?"

"Yes," said Mary Ellen practically. "We haven't the antelope yet."

"I 'member mighty well how Cap'n Franklin sent us down er quarter o' an'lope," said Aunt Lucy. "Mighty fine meat, hit wuz. An' to think, me a brilin' a piece o' hit fer a low-down white trash cow-driver whut come yer to eat! Him a-sayin' he'd ruther hev chicken, cause he wuz raised on an'lope! Whut kin' o' talk wuz thet? He talk like an'lope mighty common. Takes Cap'n Franklin toe git ole Mr. An'lope, though."

"Er—Miss Ma'y Ellen," began Aunt Lucy presently, and apparently with a certain reservation.

"Yes?"

Aunt Lucy came over and sat down upon a sod heap, resting her chin upon her hand and looking fixedly at the girl, who still stood leaning against the post.

"Er—Miss Ma'y Ellen—" she began again.

"Yes. What is it, Lucy?"

"Does you know—?"

"Do I know what?"

"Does you know who's jess erbout ther fines' and likelies' man whut lives in all these yer pahts erroun' yer?"

Mary Ellen stopped tossing bits of bread to the chickens. "No, Aunt Lucy," she said. "I hadn't thought about that."

"Yes, you has!" cried Aunt Lucy, rising and shaking a bodeful forefinger. "Yes you *has*, an' yes you *does*! An' you don' 'preshuate him, thass whut. Him a wushshippin' you!"

Mary Ellen began tossing bread again. "How do you know that?" she asked.

"How does I know?—law me, jes listen to thet chile! How does I know? Ain' he done tole me, an' yo' an' Lizzie, an' Majah Buford—an' *you*? Ain' he done tole you a dozen times? Don' everybody know hit? Him ez fine er man you goin' toe see right soon, I tell you. Tall ez yo' fatheh wuz, an' strong ez er li'ne. He kin git ole Mr. An'lope. He kin ride ary beastis in this yer onery country. An' him a-wukkin' for ther railroad, an' a lawyeh, an' all that. He's shoh' boun' toe be rich, one o' these yer days. An' he's a gemman, too, mo'oveh; he's a gemman! Reckon I knows quality! Yas, sir, Cap'n Franklin, she shoh'ly am the bestes' man fer a real lady to choosen—bestes' in all this yer lan'. Uh-huh!"

"I never thought of him—not in that way," said Mary Ellen, not quite able to put an end to this conversation.

"Miss Ma'y Ellen," said Aunt Lucy solemnly, "I'se wukked fer you an' yo' fam'ly all my life, an' I hates to say ary woh'd what ain't fitten. But I gotto to tell you, you ain' tellin' the *trufe* to me, toe yo' old black mammy, right now. I tells you, an' I knows it, tha' hain't nary gal on earth ever done look at *no* man, I don't care who he wuz, 'thout thinkin' 'bout him, an' 'cidin' in her

min', one way er otheh whetheh she like fer to mah'y that ther man er not! If er 'ooman say she do different f'om thet, she shoh'ly fergettin' o' the trufe, thass all! Ain' thought o' him! Go 'long!" Aunt Lucy wiped her hand upon her apron violently in the vehemence of her incredulity.

Mary Ellen's face sobered with a trace of the old melancholy.

"Aunt Lucy," she said, "you mean kindly, I am sure, but you must not talk to me of these things. Don't you remember the old days back home? Can you forget Master Henry, Aunt Lucy—can you forget the days—those days —?"

Aunt Lucy rose and went over to Mary Ellen and took her hand between her own great black ones. "No, I doesn't fergit nothin', Miss Ma'y Ellen," she said, wiping the girl's eyes as though she were still a baby. "I doesn't fergit Mas' Henry, Gord bless him! I doesn't fergit him any mo'n you does. How kin I, when I done loved him much ez I did you? Wuzn't I goin' to come 'long an' live wif you two, an' take keer o' you, same's I did to the old place? I was a-lookin' to ther time when you an' Mas' Henry wuz a-goin' ter be mah'ied. But now listen toe yo' ole black mammy, whut knows a heap mo'n you does, an' who is a-talkin' toe you because you ain't got no real mammy o' yer own no mo'. You listen toe me. Now, I done had fo' husban's, me. Two o' them done died, an' one distapeart in the wah, an' one he turn out no 'count. Now, you s'pose I kain't love no otheh man?"

Mary Ellen could not restrain a smile, but it did not impinge upon the earnestness of the other.

"Yas'm, Miss Ma'y Ellen," she continued, again taking the girl's face between her hands. "Gord, he say, it hain't good fer man toe be erlone. An' Gord knows, speshul in er lan' like this yer, hit's a heap mo' fitten fer a man toe be erlone then fer a 'ooman. Some wimmen-folks, they's made fer

grievin', all ther time, fer frettin', an' worr'in', an' er-mopin' 'roun'. Then, agin, some is made fer *lovin'*—I don' say fer lovin' mo'n one man to er time; fer ther ain't no good 'ooman ever did thet. But some is made fer *lovin'*. They sech er heap o' no 'count folks in ther worl', hit do seem like a shame when one o' them sort don' love nobody, an' won't let nobody love them!"

Mary Ellen was silent. She could not quite say the word to stop the old servant's garrulity, and the latter went on.

"Whut I does say, Miss Ma'y Ellen," she resumed, earnestly looking into the girl's face as though to carry conviction with her speech—"whut I does say, an' I says hit fer yo' own good, is this; Mas' Henry, he's daid! He's daid an' buh'ied, an' flowehs growin' oveh his grave, yeahs 'n yeahs. An' you never wuz mahied toe him. An' you *wan't* nothin' but a gal. Chile, you don't know nothin' '*bout* lovin' yit. Now, I says toe you, whut's ther use? Thass hit, Miss Ma'y Ellen, whut's ther use?"

CHAPTER XXII

EN VOYAGE

"I wish, Sam," said Franklin one morning as he stopped at the door of the livery barn—"I wish that you would get me up a good team. I'm thinking of driving over south a little way to-day."

"All right, Cap," said Sam. "I reckon we can fix you up. How far you goin'?"

"Well, about twenty-five or thirty miles, perhaps."

"Which will bring you," said Sam meditatively, "just about to the Halfway House. Seein' it's about there you'll be stopping I reckon I better give you my new buggy. I sort of keep it, you know, for special 'casions."

Franklin was too much absorbed to really comprehend this delicate attention, even when Sam rolled out the carriage of state, lovingly dusting off the spokes and with ostentation spreading out the new lap robe. But finally he became conscious of Sam, standing with one foot on the hub of a wheel, chewing a straw, and with a certain mental perturbation manifest in his countenance.

"Cap," said he, "I know just how you feel."

"What's that?" said Franklin.

"Well, I mean, I allow me and you is pretty much in the same boat."

"Eh?" said Franklin, puzzled.

"Why, both us fellers is fixed about the same."

"I'm afraid I don't quite understand you."

"Well, now, er—that is, you know, we both got a girl, you know—I mean, we each has a girl—"

Franklin's face was not inviting, which fact Sam noticed, hastening with his apology.

"Oh, no offence, Cap," said he hurriedly, "but I was just a-thinkin'. You know that Nory girl over to the hotel. Well, now, I'm gone on that girl, the worst sort o' way. Honest, Cap, I ain't happy. I used ter eat an' sleep 'thout no sort of trouble, but now I'm all used up. I ain't right. An' it's Nory."

"Why don't you marry her?" asked Franklin calmly.

Sam gasped. "I—I—that's it, that's just it! I—can't ast her!" he said, with despair and conviction in his voice. "I've tried, and I can't say a word to her about it, nothin' more than mebbe to ast her to pass me the butter. She don't seem to understand."

"Well, what do you expect? Do you think she is going to ask you about it herself?"

"My God, Cap, I don't know! I ever she did, I know mighty well what I'd say. But she won't, and I can't. And there we are. I lose my nerve every time I try to speak to her. Now, I say this to you, man to man, you know, and no

one the wiser; I can talk to anybody else about this, to anybody but just Nory. Now, you've been goin' down to this here Halfway House a-plenty for a long time, and I don't know as you seem much further along 'an I am. So I allowed maybe you was hooked up a good deal the way I be. You go down there, an' set down and eat, an' you set around like, but can't seem to make no break—you don't dast to say what you want to say. Is that so?"

Franklin flushed, his first impulse being of distinct displeasure; yet he recognised the perfect good faith of the other's remarks and turned away without reply.

"An' what I was goin' to say," continued Sam, following after him, "is like this. Now, you ain't afraid of Nory, an' I ain't afraid of Miss Beecham. Turn about's fair play. I'll speak to Miss Beecham for you, if you'll just sort o' lay this here before Nory for me. You needn't say much, understand! If I ever onct get started, you know, I'll be all right. I could tell her all about it then, easy enough. Now, say, Cap, six of one and half a dozen of the other. Is it a go?"

Franklin could not keep back a smile. "Well, in regard to my half of it," he said, "I can neither affirm nor deny it. But if what you say were true, don't you think you might find it pretty hard to talk to Miss Beauchamp on this matter?"

"Not in a hundred!" said Sam eagerly. "I'd just as soon talk to Miss Beecham as not. I'd ruther. They ain't no feller around here that I think's any whiter than you be. An' Lord knows, that girl down there is handsome as ever looked through a bridle, and kind as she is handsome. I've seen her now, reg'lar, in my trips down there for quite a while, an' I promise you, she's a thoroughbred, an' high strung, but as even gaited as ever stepped. Yes, sir!"

"She is all that, I think, Sam," said Franklin soberly.

"Then it's a go, Cap?"

"Well, I'll tell you, Sam," said Franklin kindly, "maybe we'd better let it run along a little while as it is. You know, girls have odd notions of their own. Perhaps a girl would rather have a man speak for himself about that sort of thing. And then, the asking sometimes is the easiest part of it."

"Then you'll ast Nory for me?"

"Well, if I could say a word, just a hint, you know—"

"You won't!" exclaimed Sam bitterly, and in tones; of conviction. "You won't! There ain't nobody won't! I've tried, an' there won't nobody! There'll be some d——d cow-puncher blow in there some day and marry that Nory girl, an' I never will git to tell her the way I feel."

"Oh, yes, you will," said Franklin. "It'll come to you some time; and when it does, friend," he added gravely, laying a hand upon Sam's shoulder, "I hope she'll not say no to you forever."

"Forever, Cap?"

"Yes, it sometimes happens that way."

"Forever? Well, if Nory ever said no to me onct, that shore would settle it. I know what I'd do: I'd sell out my barn an' I'd hit the trail mighty quick. Do they ever do that way, Cap?"

"Yes," said Franklin, "they tell me that they sometimes do. They're strange creatures, Sam."

"An' that's no lie!" said Sam. "But here, I'm forgettin' of your span."

He disappeared within the barn, whence presently arose sounds of tumult. The "span" emerged with one half of its constituent parts walking on its hind legs and lashing out viciously in front.

"Well, I don't know about that black," said Franklin critically. "He's a bit bronco, isn't he?"

"What, him?" said Sam. "Naw, he's all right. You don't suppose I'd run in any wild stock on you, do you? He's been hitched up sever'l times, an' he's plumb gentle. May rare up a little at first, but he's all right. Of course, you want to have a little style about you, goin' down there."

Franklin got into the buggy, while Sam held the head of the "plumb gentle" horse. When cast loose the latter reared again and came down with his fore feet over the neck yoke. Nimbly recovering, he made a gallant attempt to kick in the dashboard. This stirred up his mate to a thought of former days, and the two went away pawing and plunging. "So long!" cried Sam, waving his hand. "Good luck!"

Franklin was for a time busy in keeping his team upon the trail, but soon they settled down into a steady, shuffling trot, to which they held for mile after mile over the hard prairie road. The day was bright and clear, the air sweet and bracing. An hour's drive from the town, and the traveller seemed in a virgin world. A curious coyote sat on a hill, regarding intently the spectacle of a man travelling with wheels beneath him, instead of the legs of a horse. A band of antelope lined up on the crest of a ridge and stood staring steadfastly. A gray-winged hawk swept wide and easily along the surface of the earth on its morning hunting trip. Near by the trail hundreds of cheerful prairie dogs barked and jerked their ceaseless salutation. An ancient and untroubled scheme of life lay all around him, appealing in its freshness and its charm. Why should a man, a tall and strong man, with

health upon his cheek, sit here with brooding and downcast eye, heedless of the miles slipping behind him like a ribbon spun beneath the wheels?

Franklin was learning how fast bound are all the ways of life to the one old changeless way. This new land, which he and his fellow-men coveted, why was it so desired? Only that over it, as over all the world behind it, there might be builded homes. For, as he reflected, the adventurers of the earth had always been also the home-builders; and there followed for him the bitter personal corollary that all his adventure was come to naught if there could be no home as its ultimate reward. His vague eye swam over the wide, gray sea about him, and to himself he seemed adrift, unanchored and with no chart of life.

CHAPTER XXIII

MARY ELLEN

Lifting and shimmering mysteriously in the midday sun, as though tantalizing any chance traveller of that wide land with a prospect alluring, yet impossible, the buildings of the Halfway station now loomed large and dark, now sank until they seemed a few broken dots and dashes just visible upon the wide gray plain. Yet soon the tall frame of the windmill showed high above the earth, most notable landmark for many a mile, and finally the ragged arms of the corral posts appeared definitely, and then the low peak of the roof of the main building. For miles these seemed to grow no closer, but the steady trot of the little horses ate up the distance, and Franklin found himself again at the spot with which he was already so well acquainted that every detail, every low building and gnarled bit of wood, was tabulated surely in his mind. The creak of the windmill presently came to his ears as a familiar sound, but rasping and irritating on his strong nerves as the croak of the elder Fate.

Franklin drove up to the great dugout which made the main building, in front of which the soil had been worn bare and dusty by many hoofs. The Halfway House was now a business enterprise of assured success. Many signs of prosperity appeared to the eye accustomed to the crude simplicity of the frontier. These immigrants from the far-off South, incongruous and unfitted as they had seemed in this harsh new country, had apparently

blundered into a material success far beyond that of their average neighbour. The first years, the hardest ones of their struggle, were past, and the problem of existence was solved. In those days one did not always concern himself about problems more intricate and more distant.

Buford met him in the yard, and the two together busied themselves in taking care of the team, the former apologizing that he still had no servant for such work, "I did have a nigger here for a while," he said, "but he turned out no account, and the first I knew he went off for a cow-puncher down the trail. I'm mighty glad to see you again, captain, for it looked as though you had forsaken us. It certainly is a comfort to see a gentleman like yourself once in a while. We meet plenty of cowmen and movers, decent folk enough, but they have a lack, sir, they have a lack. I maintain, sir, that no gentleman can flourish without that intelligent social intercourse with his kind which is as much a part of his livin', sir, as the eatin' of his daily bread. Now, as I was sayin' about General Lee, sir—but perhaps we would better go in and join the ladies. They will be glad to see you, and later on we can resume our discussion of the war. I am willing to admit, sir, that the war is over, but I never did admit, and, sir, I contend yet, that Lee was the greatest general that the world ever saw—far greater than Grant, who was in command of resources infinitely superior. Now, then—"

"Oh, uncle, uncle!" cried a voice behind him. "Have you begun the war over again so soon? You might at least let Mr. Franklin get into the house."

Mary Ellen stood at the door of the dugout, just clear of the front, and upon the second step of the stair, and her hand half shading her eyes. The sun fell upon her brown hair, changing its chestnut to a ruddy bronze, vital and warm, with a look as though it breathed a fragrance of its own. A little vagrant lock blew down at the temple, and Franklin yearned, as he always did when he saw this small truant, to stroke it back into its place. The sun

and the open air had kissed pink into the cheek underneath the healthy brown. The curve of the girl's chin was full and firm. Her tall figure had all the grace of a normal being. Her face, sweet and serious, showed the symmetry of perfect and well-balanced faculties. She stood, as natural and as beautiful, as fit and seemly as the antelope upon the hill, as well poised and sure, her head as high and free, her hold upon life apparently as confident. The vision of her standing there caused Franklin to thrill and flush. Unconsciously he drew near to her, too absorbed to notice the one visible token of a possible success; for, as he approached, hat in hand, the girl drew back as though she feared.

There was something not easily to be denied in this tall man, his figure still military in its self-respect of carriage, with the broad shoulders, the compact trunk, the hard jaw, and the straight blue eye of the man of deeds. The loose Western dress, which so illy became any but a manly figure, sat carelessly but well upon him. He looked so fit and manly, so clean of heart, and so direct of purpose as he came on now in this forlorn hope that Mary Ellen felt a shiver of self-distrust. She stepped back, calling on all the familiar spirits of the past. Her heart stopped, resuming at double speed. It seemed as though a thrill of tingling warmth came from somewhere in the air—this time, this day, this hour, this man, so imperative, this new land, this new world into which she had come from that of her earlier years! She was yet so young! Could there be something unknown, some sweetness yet unsounded? Could there be that rest and content which, strive as she might, were still missing from her life? Could there be this—and honour?

Mary Ellen fled, and in her room sat down, staring in a sudden panic. She needed to search out a certain faded picture. It was almost with a sob that she noted the thin shoulders, the unformed jaw, the eye betokening pride rather than vigour, the brow indicative of petulance as much as sternness. Mary Ellen laid the picture to her cheek, saying again and again that she

loved it still. Poor girl, she did not yet know that this was but the maternal love of a woman's heart, pitying, tender and remembering, to be sure, but not that love over which the morning stars sang together at the beginning of the world.

CHAPTER XXIV

THE WAY OF A MAID

The Halfway House was an oasis in the desert. To-day it was an oasis and a battle ground. Franklin watched Mary Ellen as she passed quietly about the long, low room, engaged in household duties which she performed deftly as any servant. He compared these rude necessities with the associations amid which he knew this girl had been nurtured, and the thought gave him nothing but dissatisfaction and rebellion. He longed to give her all the aid of his own strength, and to place her again, as he felt he some day might, in something of the old ease and comfort, if not in the same surroundings. Yet, as he bethought himself of the apparent hopelessness of all this, he set his teeth in a mental protest near akin to anger. He shifted in his seat and choked in his throat a sound that was half a groan. Presently he rose, and excusing himself, went out to join Buford at the corral.

"Come," said the latter, "and I'll show you around over our improvements while we are waitin' for a bite to eat. We are goin' to have a great place here some day. Besides our own land, Miss Beauchamp and our servant have a quarter-section each adjoinin' us on the west. If ever this land comes to be worth anything at all, we ought to grow into something worth while."

"Yes," said Franklin, "it will make you rich," and as they walked about he pointed out with Western enthusiasm the merits of the country round-about.

The "bite to eat" was in time duly announced by a loud, sonorous note that arose swelling upon the air. Aunt Lucy appeared at the kitchen door, her fat cheeks distended, blowing a conch as though this were Tidewater over again.

The long table was spread in the large room of general assembly, this room being, as has been mentioned, excavated from the earth, so that, as they sat at table, their heads were perhaps nearly level with the surface of the ground. The short side walls, topped with a heavy earthen roof made of this sort of abode a domicile rude and clumsy enough, but one not lacking in a certain comfort. In the winter it was naturally warm, and in the summer it was cool, the air, caught at either end by the gable of the roof, passing through and affording freshness to the somewhat cellar-like interior. Cut off from the main room were three smaller rooms, including the kitchen, from which Aunt Lucy passed back and forth with massive tread. The table was no polished mahogany, but was built of rough pine boards, and along it stood long benches instead of chairs. For her "white folks" Aunt Lucy spread a cloth at one end of this long table, placing also in order the few pieces of china and silver that had survived a life of vicissitudes.

"I may be poor," said Buford, commenting grimly on the rude appearance of the board, "and I reckon we always will be poor, but when the time comes that I can't have a silver spoon in my coffee, then I want to die."

"Major!" said Mrs. Buford reprovingly from the head of the table, where she sat in state, "I do not like to hear you speak in that way. We are in the hands of the Lord."

"Quite right," said Buford, "and I beg pardon. But, really, this country does bring some changes, and we ourselves surely change with it. No one seems to think of the past out here."

"Don' you b'lieve I don' never think o' the past!" broke in a deep and uninvited voice, much to Mrs. Buford's disquietude. "This yer sho'hly is a lan' o' Sodom an' Tomorrow. Dey ain't a sengle fiahplace in the hull country roun' yer. When I sells mer lan' fer a hundred dollahs, fust thing I'm a-goin' do is to build me a fiahplace an' git me er nice big settle to putt in front o' hit, so'st I kin set mer bread to raise befo' the fiah, like all bread orter be sot. How kin a pusson cook out yet—not to say, *cook*?"

"That will do, Lucy," said Mrs. Buford.

"We are demoralized," said Mary Ellen hopelessly, "and I resent it. I resent your knowing us or knowing anything about our lives. If you had never heard anything at all about us it mightn't have been so bad. We came out here to get away from every one."

Franklin bit his lip. "Mary Ellen, my child!" cried Mrs. Buford.

"That's hardly fair," said Franklin. "We are all beginners in this land." Yet there was an awkward break in the conversation.

"Providence guides all our ways," said Mrs. Buford, somewhat irrelevantly, and with her customary sigh.

"Amen!" cried a hearty voice from the kitchen. "'Scuse meh!"

"You will oblige me, captain," said Buford as they finally rose from the table, "if you will be so good as to drive Miss Beauchamp over to the claim shanty after a while. I'll just ride along over on horseback. I don't like to put a guest to work, but really I need a little help about that roof. It has fallen in

at one corner, and I presume it ought to be repaired, for the sake of Miss Beauchamp's conscience when she goes to the Land Office to prove up."

Franklin assented to this proposition with such eagerness that he blushed as he saw how evident had been his pleasure at this opportunity for a moment's speech alone with the girl who sat so near but yet so unapproachable. "I'll be delighted," said he.

Mary Ellen said nothing. The pink spot in her cheek was plainly deeper. It did not lessen as she stood watching the struggle the two men had in again hitching to the buggy the wild black horse. Seizing the tug with one hand and the singletree with the other, Franklin fairly swept the obdurate beast off its balance as he forced it to its place at the pole. His strength was apparent.

"Are you afraid to ride behind that horse?" asked he.

"I don't think so," she replied simply, and her uncle helped her in, while Franklin steadied the team. Yet how Franklin hated the wild black horse now! All the way across the prairie during the short drive to the shanty the beast gave him plenty to do to keep it inside the harness, and he had no time for a single word. The girl sat silent at his side, looking straight ahead. Franklin felt her arm brush his at the jolting of the vehicle now and then. Her hand, brown and shapely, lay in her lap. As Franklin gathered the slack of the reins, his own hand approaching hers, it seemed to him that an actual emanation, a subtle warmth, stole from her hand to his, an unspoken appeal from some vital source. A vague, delicious sense of happiness came over him. He too fell quite silent. He guided the horses as though he saw neither them nor aught else between him and some far-off horizon. At the shanty he helped her down. Ignorant, he saw not the tale of a bosom heaving, nor read correctly the story of the pink in the cheek. He believed rather the import of

a face turned away, and of features set in a mask of repose. There had as yet been no word.

The claim shanty was indeed in some need of repair. One corner of the roof had fallen in, carrying with it a portion of the sod wall that made the inclosure, and spilling a quantity of earth in the bed customarily occupied by Aunt Lucy when she "resided" here in company with her mistress in their innocent process of acquiring one hundred and sixty acres of land apiece by means of a double dwelling place. Upon the opposite side, protected by a screen, Franklin caught sight of a corner of the other bed. There were also upon that side of the shack a little table, a chair, and a dainty looking-glass, with a few other such feminine appurtenances. Two wash-stands, with basins, went far toward completing the remaining furniture. It must be admitted that there was dust upon the table and in the basins. The housekeeper in Mary Ellen apologized as she began to clean them. "We don't sleep here very often," she said.

"And aren't you afraid?" said Franklin.

"Not now. We used to be afraid of the coyotes, though, of course, they can't hurt us. Once uncle killed a rattlesnake in the shanty. It had crawled in at the door. I don't think, though, that you could get Lucy to sleep here alone overnight for all the land out of doors."

In order to make the needed repairs to the roof, it was necessary to lay up again a part of the broken wall, then to hoist the fallen rafters into place prior to covering the whole again with a deep layer of earth. Franklin, standing upon a chair, put his shoulders under the sagging beams and lifted them and their load of disarranged earth up to the proper level on the top of the wall, while Buford built under them with sods. It was no small weight that he upheld. As he stood he caught an upturned telltale glance, a look of sheer feminine admiration for strength, but of this he could not be sure, for

it passed fleetly as it came. He saw only the look of unconcern and heard only the conventional word of thanks.

"Now, then, captain," said Buford, "I reckon we can call this shack as good as new again. It ought to last out what little time it will be needed. We might go back to the house now. Mightily obliged to you, sir, for the help."

As Mary Ellen stepped into the buggy for the return home her face had lost its pink. One of the mysterious revulsions of femininity had set in. Suddenly, it seemed to her, she had caught herself upon the brink of disaster. It seemed to her that all her will was going, that in spite of herself she was tottering on toward some fascinating thing which meant her harm. This tall and manly man, she must not yield to this impulse to listen to him! She must not succumb to this wild temptation to put her head upon a broad shoulder and to let it lie there while she wept and rested. To her the temptation meant a personal shame. She resisted it with all her strength. The struggle left her pale and very calm. At last the way of duty was clear. This day should settle it once for all. There must be no renewal of this man's suit. He must go.

It was Mary Ellen's wish to be driven quickly to the house, but she reckoned without the man. With a sudden crunching of the wheels the buggy turned and spun swiftly on, headed directly away from home. "I'll just take you a turn around the hill," said Franklin, "and then we'll go in."

The "hill" was merely a swell of land, broken on its farther side by a series of *coulees* that headed up to the edge of the eminence. These deep wash-cuts dropped off toward the level of the little depression known as the Sinks of the White Woman River, offering a sharp drop, cut up by alternate knifelike ridges and deep gullies.

"It isn't the way home," said Mary Ellen.

"I can't help it," said Franklin. "You are my prisoner. I am going to take you—to the end of the world."

"It's very noble of you to take me this way!" said the girl with scorn. "What will my people think?"

"Let them think!" exclaimed Franklin desperately. "It's my only chance. Let them think I am offering you myself once more—my love—all of me, and that I mean it now a thousand times more than I ever did before. I can't do without you! It's right for us both. You deserve a better life than this. You, a Beauchamp, of the old Virginia Beauchamps—good God! It breaks my heart!"

"You have answered yourself, sir," said Mary Ellen, her voice not steady as she wished.

"You mean—"

"I am a Beauchamp, of the old Virginia Beauchamps. I live out here on the prairies, far from home, but I am a Beauchamp of old Virginia."

"And then?"

"And the Beauchamps kept their promises, women and men—they always kept them. They always will. While there is one of them left alive, man or woman, that one will keep the Beauchamp promise, whatever that has been."

"I know," said Franklin gently, "I would rely on your word forever. I would risk my life and my honour in your hands. I would believe in you all my life. Can't you do as much for me? There is no stain on my name. I will love you till the end of the world. Child—you don't know—"

"I know this, and you have heard me say it before, Mr. Franklin; my promise was given long ago. You tell me that you can never love any one else."

"How could I, having seen you? I will never degrade your memory by loving any one else. You may at least rely on that."

"Would you expect me ever to love any one else if I had promised to love you?"

"You would not. You would keep your promise. I should trust you with my life."

"Ah, then, you have your answer! You expect me to keep my promises to you, but to no one else. Is that the honourable thing? Now, listen to me, Mr. Franklin. I shall keep my promise as a Beauchamp should—as a Beauchamp shall. I have told you long ago what that promise was. I promised to love, to marry him—Mr. Henry Fairfax—years ago. I promised never to love any one else so long as I lived. He—he's keeping his promise now—back there—in old Virginia, now. How would I be keeping mine—how am I keeping mine, now, even listening to you so long? Take me back; take me home. I'm going to—going to keep my promise, sir! I'm going to keep it!"

Franklin's heart stood cold. "You're going to keep your promise," he said slowly and coldly. "You're going to keep a girl's promise, from which death released you years ago—released you honourably. You were too young then to know what you were doing—you didn't know what love could mean—yet you are released from that promise. And now, for the sake of a mere sentiment, you are going to ruin my life for me, and you're going to ruin your own life, throw it away, all alone out here, with nothing about you such as you ought to have. And you call that honour?"

"Well, then, call it choice!" said Mary Ellen, with what she took to be a noble lie upon her lips. "It is ended!"

Franklin sat cold and dumb at this, all the world seeming to him to have gone quite blank. He could not at first grasp this sentence in its full effect, it meant so much to him. He shivered, and a sigh broke from him as from one hurt deep and knowing that his hurt is fatal. Yet, after his fashion, he fought mute, struggling for some time before he dared trust his voice or his emotions.

"Very well," he said. "I'll not crawl—not for any woman on earth! It's over. I'm sorry. Dear little woman, I wanted to be your friend. I wanted to take care of you. I wanted to love you and to see if I couldn't make a future for us both."

"My future is done. Leave me. Find some one else to love."

"Thank you. You do indeed value me very high!" he replied, setting his jaws hard together.

"They tell me men love the nearest woman always. I was the only one—"

"Yes, you were the only one," said Franklin slowly, "and you always will be the only one. Good-bye."

It seemed to him he heard a breath, a whisper, a soft word that said "good-bye." It had a tenderness that set a lump in his throat, but it was followed almost at once with a calmer commonplace.

"We must go back," said Mary Ellen. "It is growing dark."

Franklin wheeled the team sharply about toward the house, which was indeed becoming indistinct in the falling twilight. As the vehicle turned

about, the crunching of the wheels started a great gray prairie owl, which rose almost beneath the horses' noses and flapped slowly off. The apparition set the wild black horse into a sudden simulation of terror, as though he had never before seen an owl upon the prairies. Rearing and plunging, he tore loose the hook of one of the single-trees, and in a flash stood half free, at right angles now to the vehicle instead of at its front, and struggling to break loose from the neck-yoke. At the moment they were crossing just along the head of one of the *coulees*, and the struggles of the horse, which was upon the side next to the gully, rapidly dragged his mate down also. In a flash Franklin saw that he could not get the team back upon the rim, and knew that he was confronted with an ugly accident. He chose the only possible course, but handled the situation in the best possible way. With a sharp cut of the whip he drove the attached horse down upon the one that was half free, and started the two off at a wild race down the steep *coulee*, into what seemed sheer blackness and immediate disaster. The light vehicle bounded up and down and from side to side as the wheels caught the successive inequalities of the rude descent, and at every instant it seemed it must surely be overthrown. Yet the weight of the buggy thrust the pole so strongly forward that it straightened out the free horse by the neck and forced him onward. In some way, stumbling and bounding and lurching, both horses and vehicle kept upright all the way down the steep descent, a thing which to Franklin later seemed fairly miraculous. At the very foot of the pitch the black horse fell, the buggy running full upon him as he lay lashing out. From this confusion, in some way never quite plain to himself, Franklin caught the girl out in his arms, and the next moment was at the head of the struggling horses. And so good had been his training at such matters that it was not without method that he proceeded to quiet the team and to set again in partial order the wreck that had been created in the gear. The end of the damaged singletree he re-enforced with his handkerchief. In time he had the team again in harness, and at the bottom of the *coulee*,

where the ground sloped easily down into the open valley, whence they might emerge at the lower level of the prairie round about. He led the team for a distance down this floor of the *coulee*, until he could see the better going in the improving light which greeted them as they came out from the gully-like defile. Cursing his ill fortune, and wretched at the thought of the danger and discomfort he had brought upon the very one whom he would most gladly have shielded, Franklin said not a word from the beginning of the mad dash down the *coulee* until he got the horses again into harness. He did not like to admit to his companion how great had been the actual danger just incurred, though fortunately escaped. The girl was as silent as himself. She had not uttered a cry during the time of greatest risk, though once she laid a hand upon his arm. Franklin was humiliated and ashamed, as a man always is over an accident.

"Oh, it's no good saying I'm sorry," he broke out at last. "It was my fault, letting you ride behind that brute. Thank God, you're not hurt! And I'm only too glad it wasn't worse. I'm always doing some unfortunate, ignoble thing. I want to take care of you and make you happy, and I would begin by putting your very life in danger."

"It wasn't ignoble," said the girl, and again he felt her hand upon his arm. "It was grand. You went straight, and you brought us through. I'm not hurt. I was frightened, but I am not hurt."

"You've pluck," said Franklin. Then, scorning to urge anything further of his suit at this time of her disadvantage, though feeling a strange new sense of nearness to her, now that they had seen this distress in common, he drove home rapidly as he might through the gathering dusk, anxious now only for her comfort. At the house he lifted her from the buggy, and as he did so kissed her cheek. "Dear little woman," he whispered, "good-bye." Again he

doubted whether he had heard or not the soft whisper of a faint "Good-bye!"

"But you must come in," she said.

"No, I must go. Make my excuses," he said. "Good-bye!" The horses sprang sharply forward. He was gone.

The roll of the wheels and the rhythmic hoof-beats rapidly lessened to the ear as Franklin drove on into the blackening night. In her own little room Mary Ellen sat, her face where it might have been seen in profile had there been a light or had the distant driver looked round to see. Mary Ellen listened—listened until she could hear hoof and wheel no more. Then she cast herself upon the bed, face downward, and lay motionless and silent. Upon the little dresser lay a faded photograph, fallen forward also upon its face, lying unnoticed and apparently forgot.

CHAPTER XXV

BILL WATSON

The sheriff of Ellisville sat in his office oiling the machinery of the law; which is to say, cleaning his revolver. There was not yet any courthouse. The sheriff was the law. Twelve new mounds on the hillside back of the Cottage Hotel showed how faithfully he had executed his duties as judge and jury since he had taken up his office at the beginning of the "cow boom" of Ellisville. His right hand had found somewhat to do, and he had done it with his might.

Ellisville was near the zenith of its bad eminence. The entire country had gone broad-horn. Money being free, whisky was not less so. The bar of the Cottage was lined perpetually. Wild men from the range rode their horses up the steps and into the bar-room, demanding to be served as they sat in the saddle, as gentlemen should. Glass was too tempting to the six-shooters of these enthusiasts, and the barkeeper begged the question by stowing away the fragments of his mirror and keeping most of his bottles out of sight. More than once he was asked to hold up a bottle of whisky so that some cow-puncher might prove his skill by shooting the neck off from the flask. The bartender was taciturn and at times glum, but his face was the only one at the bar that showed any irritation or sadness. This railroad town was a bright, new thing for the horsemen of the trail—a very joyous thing.

No funeral could check their hilarity; no whisky could daunt their throats, long seared with alkali.

It was notorious that after the civil war human life was held very cheap all over America, it having been seen how small a thing is a man, how little missed may be a million men taken bodily from the population. Nowhere was life cheaper than on the frontier, and at no place on that frontier of less value than at this wicked little city. Theft was unknown, nor was murder recognised by that name, always being referred to as a "killing." Of these "killings" there were very many.

The sheriff of Ellisville looked thoughtful as he tested the machinery of the law. He had a warrant for a new bad man who had come up from the Indian nations, and who had celebrated his first day in town by shooting two men who declined to get off the sidewalk, so that he could ride his horse more comfortably there. The sheriff left the warrant on the table, as was his custom, this paper being usually submitted with the corpse at the inquest. The sheriff hummed a tune as he cleaned his revolver. He was the law.

Bill Watson, the sheriff of Ellisville, was a heavily built man, sandy-haired, red-mustached, and solid. His legs were bowed and his carriage awkward. He had thick, clumsy-looking fingers, whose appearance belied their deftness. Bill Watson had gone through the Quantrell raid in his time. It was nothing to him when he was to be killed. Such a man is careful in his shooting, because he is careless of being shot, having therefore a vast advantage over the desperado of two or three victims, who does not yet accept the fact that his own days are numbered. The only trouble in regard to this new bad man from below was that his mental attitude on this point was much the same as that of Sheriff Bill Watson. Therefore the sheriff was extremely careful about the oiling of the cylinder.

The great cattle drive was at its height. Buyers from the territorial ranges of the North and Northwest, now just beginning to open up, bid in market against the men from the markets of the East. Prices advanced rapidly. Men carried thousands of dollars in the pockets of their greasy "chaps." Silver was no longer counted. There were hardware stores which sold guns and harness-shops which sold saddles. There were twoscore saloons which held overflow meetings, accommodating those whom the Cottage bar would not hold. There were three barber-shops, to which went only the very weary. The corral of the Cottage, where the drovers stopped, was large enough to hold two hundred horses, with comfortable space for roping, and the snubbing post was grooved with the wear of many ropes. The central street needed no paving, for it was worn hard as flint. Long rows of cattle chutes lined the railroad yards, whence came continuous din of bellowing, crowding, maddened cattle, handled with ease and a certain exultation by men who had studied nothing but this thing. Horsemen clattered up and down the street day and night—riding, whether drunk or sober, with the incomparable confidence of the greatest horse country the world has ever known. Everywhere was the bustle of a unique commerce, mingled with a colossal joy of life. The smokes from the dugouts and shacks now began to grow still more numerous in the region round about, but there were not many homes, because there were not many women. For this reason men always kill each other very much more gladly and regularly than they do in countries where there are many women, it appearing to them, perhaps, that in a womanless country life is not worth the living. A few "hay ranches," a few fields even of "sod corn," now began to show here and there, index of a time to come, but for the most part this was yet a land of one sex and one occupation. The cattle trade monopolized the scene. The heaps of buffalo bones were now neglected. The long-horned cattle of the white men were coming in to take the place of the curved-horned cattle of the Indians. The curtain of the cattle drama of the West was now rung up full.

The sheriff finished the cleaning of his six-shooter and tossed the oiled rag into the drawer of the table where he kept the warrants. He slipped the heavy weapon into the scabbard at his right leg and saw that the string held the scabbard firmly to his trouser-leg, so that he might draw the gun smoothly and without hindrance from its sheath. He knew that the new bad man wore two guns, each adjusted in a similar manner; but it was always Bill Watson's contention (while he was alive) that a man with one gun was as good as a man with two. Sheriff Watson made no claim to being a two-handed shot. He was a simple, unpretentious man; not a heroic figure as he stood, his weight resting on the sides of his feet, looking out of the window down the long and wind-swept street of Ellisville.

Gradually the gaze of the sheriff focused, becoming occupied with the figure of a horseman whose steady riding seemed to have a purpose other than that of merely showing his joy in living and riding. This rider passed other riders without pausing. He came up the street at a gallop until opposite the office door, where he jerked up his horse sharply and sprang from the saddle. As he came into the room he pulled off his hat and mopped his face as far as he could reach with the corner of his neckerchief.

"Mornin', Bill," he said.

"Mornin', Curly," said the sheriff pleasantly. "Lookin' for a doctor? You're ridin' perty fast."

"Nope," said Curly. "Reckon it's a shade too late fer a doctor."

The sheriff was gravely silent. After a while he said, quietly:

"Any trouble?"

"Yep. Plenty."

"Who?"

"Why, it's Cal Greathouse. You know Cal. This is his second drive. His cows is down on the Rattlesnake bottoms now. He was camped there two weeks, not fur from my place. Last week he goes off west a ways, a-lookin' fer some winter range that won't be so crowded. He goes alone. Now, to-day his horse comes back, draggin' his lariat. We 'lowed we better come tell you. O' course, they ain't no horse gettin' away f'm Cal Greathouse, not if he's alive."

The sheriff was silent for some time, looking at his visitor straight with his oxlike eyes. "Did Cal have much money with him?" he asked, finally.

"Not so awful much, near's the boys can tell. Mebbe a few hundred, fer spendin' money, like."

"Had he had any furse with ary feller down in there lately?"

"Nope, not that any one knows of. He just done went off over the range, an' fanned out, seems like, without no special reason."

The sheriff again fell into thought, slowly chewing at a splinter. "I'll tell you," he said at length, slowly, "I kain't very well git away right now. You go over an' git Cap Franklin. He's a good man. Pick up somebody else you want to go along with you, an' then you start out on Cal's trail, near as you can git at it. You better take along that d——d Greaser o' yourn, that big Juan, fer he kin run trail like a houn'. You stop at all the outfits you come to, fer say fifty miles. Don't do nothin' more'n ask, an' then go on. If you come to a outfit that hain't seen him, an' then another outfit further on that has seen him, you remember the one that hain't. If you don't git no track in fifty mile, swing around to the southeast, an' cut the main drive trail an' see if you hear

of anything that-away. If you don't git no trace by that, you better come on back in an' tell me, an' then we'll see what to do about it further."

"All right, Bill," said Curly, rising and taking a chew of tobacco, in which the sheriff joined him. "All right. You got any papers fer us to take along?"

"Papers?" said the sheriff contemptuously. "Papers? Hell!"

CHAPTER XXVI

IKE ANDERSON

Ike Anderson was drunk—calmly, magnificently, satisfactorily drunk. It had taken time, but it was a fact accomplished. The actual state of affairs was best known to Ike Anderson himself, and not obvious to the passer-by. Ike Andersen's gaze might have been hard, but it was direct. His walk was perfectly decorous and straight, his brain perfectly clear, his hand perfectly steady. Only, somewhere deep down in his mind there burned some little, still, blue flame of devilishness, which left Ike Anderson not a human being, but a skilful, logical, and murderous animal.

"This," said Ike Anderson to himself all the time, "this is little Ike Anderson, a little boy, playing. I can see the green fields, the pleasant meadows, the little brook that crossed them. I remember my mother gave me bread and milk for my supper, always. My sister washed my bare feet, when I was a little, little boy." He paused and leaned one hand against a porch post, thinking. "A little, little boy," he repeated to himself.

"No, it isn't," he thought. "It's Ike Anderson, growing up. He's playing tag. The boy tripped him and laughed at him, and Ike Anderson got out his knife." He cast a red eye about him.

"No, it isn't," he thought. "It's Ike Anderson, with the people chasing him. And the shotgun. Ike's growing up faster, growing right along. They all want him, but they don't get him. One, two, three, five, nine, eight, seven—I could count them all once. Ike Anderson. No mother. No sweetheart. No home. Moving, moving. But they never scared him yet—Ike Anderson. . . . I never took any cattle!"

An impulse to walk seized him, and he did so, quietly, steadily, until he met a stranger, a man whose clothing bespoke his residence in another region.

"Good morning, gentle sir," said Ike.

"Good morning, friend," said the other, smiling.

"Gentle sir," said Ike, "just lemme look at your watch a minute, won't you, please?"

Laughingly the stranger complied, suspecting only that his odd accoster might have tarried too long over his cups. Ike took the watch in his hand, looked at it gravely for a moment, then gave it a jerk that broke the chain, and dropped it into his own pocket.

"I like it," said he simply, and passed on. The stranger followed, about to use violence, but caught sight of a white-faced man, who through a window vehemently beckoned him to pause.

Ike Anderson stepped into a saloon and took a straw from a glass standing on the bar, exercising an exact and critical taste in its selection. "I'm very thirsty," he remarked plaintively. Saying which, he shot a hole in a barrel of whisky, inserted the straw, and drank lingeringly.

"Thank you," he said softly, and shot the glass of straws off the counter. "Thank you. Not after me." The whisky ran out over the floor, out of the door, over the path and into the road, but no one raised a voice in rebuke.

The blue flame burned a trifle higher in Ike Anderson's brain. He was growing very much intoxicated, and therefore very quiet and very sober-looking. He did not yell and flourish his revolvers, but walked along decently, engaged in thought. He was a sandy-complexioned man, not over five feet six inches in height. His long front teeth projected very much, giving him a strange look. His chin was not heavy and square, but pointed, and his jaws were narrow. His eye was said by some to have been hazel when he was sober, though others said it was blue, or gray. No one had ever looked into it carefully enough to tell its colour when Ike Anderson was drunk, as he was to-day.

Ike Anderson passed by the front of the Cottage Hotel. A negro boy, who worked about the place, was sweeping idly at the porch door, shuffling lazily about at his employment. Ike paused and looked amiably at him for some moments.

"Good morning, coloured scion," he said pleasantly.

"Mawnin', boss," said the negro, grinning widely.

"Coloured scion," said Ike, "hereafter—to oblige me—would you mind whoopin' it up with yore broom a leetle faster?"

The negro scowled and muttered, and the next moment sprang sprawling forward with a scream. Ike had shot off the heel of his shoe, in the process not sparing all of the foot. The negro went ashy pale, and believed himself mortally hurt, but was restored by the icy tones of his visitor, who said, evenly and calmly:

"Coloured scion, please go over into that far corner and begin to sweep there, and then come on over the rest of the flo'. Now, sweep!"

The negro swept as he had never swept before. Twice a bullet cut the floor at his feet; and at last the stick of the broom was shattered in his hand. "Coloured scion," said Ike Anderson, as though in surprise, "yore broom is damaged. Kneel down and pray for another." The negro knelt and surely prayed.

On all sides swept the wide and empty streets. It was Ike Anderson's town. A red film seemed to his gaze to come over the face of things. He slipped his revolver back into the scabbard and paused again to think. A quiet footstep sounded on the walk behind him, and he wheeled, still puzzled with the red film and the mental problem.

The sheriff stood quietly facing him, with his thumbs resting lightly in his belt. He had not drawn his own revolver. He was chewing a splinter. "Ike," said he, "throw up your hands!"

The nerves of some men act more quickly than those of others, and such men make the most dangerous pistol shots, when they have good digestion and long practice at the rapid drawing of the revolver, an art at that time much cultivated. Ike Anderson's mind and nerves and muscles were always lightning-like in the instantaneous rapidity of their action. The eye could scarce have followed the movement by which the revolver leaped to a level from his right-hand scabbard. He had forgotten, in his moment of study, that with this six-shooter he had fired once at the whisky barrel, once at the glass of straws, once at the negro's heel, twice at the floor, and once at the broomstick. The click on the empty shell was heard clearly at the hotel bar, distinctly ahead of the double report that followed. For, such was the sharpness of this man's mental and muscular action, he had dropped the

empty revolver from his right hand and drawn the other with his left hand in time to meet the fire of the sheriff.

The left arm of the sheriff dropped. The whole body of Ike Anderson, shot low through the trunk, as was the sheriff's invariable custom, melted down and sank into a sitting posture, leaning against the edge of the stoop. The sheriff with a leap sprang behind the fallen man, not firing again. Ike Anderson, with a black film now come upon his eyes, raised his revolver and fired once, twice, three times, four times, five times, tapping the space in front of him regularly and carefully with his fire. Then he sank back wearily into the sheriff's arms.

"All right, mammy!" remarked Ike Anderson, somewhat irrelevantly.

CHAPTER XXVII

THE BODY OF THE CRIME

Hour after hour, in the heat of the day or the cool of the evening, the giant Mexican strode on by the side of the two horsemen, sometimes trotting like a dog, more often walking with a shambling, wide-reaching step, tireless as any wild animal. His feet, seamed and parched into the semblance rather of horn than of flesh and bone, were quite bare, though now it was a time of year when the nights at least were very cool and when freezing weather might come at any time. He was clad lightly as ever, in torn cotton garb, and carried no bedding save a narrow strip of native woollen fabric, woven of undyed wool and so loose of texture that one might thrust a finger through at any point of its scant extent. He bore no weapon save the huge knife swinging at his belt. Fastened to the same girdle was a hide bag or pouch, half full of parched corn, rudely pounded. Expressionless, mute, untiring, the colossal figure strode along, like some primordial creature in whom a human soul had not yet found home. Yet, with an intelligence and confidence which was more than human, he ran without hesitation the trail of the unshod horse across this wide, hard plain, where even the eye of the cowboy could rarely discern it. Now and then the print of the hoof might show in the soft earth of some prairie-dog burrow; then perhaps for an hour Juan would walk on, his eye fixed apparently upon some far-off point of the horizon as upon the ground, until finally they

would note the same hoof-print again and know again that the instinct of the wild guide had not failed.

The Mexican was running the back trail of the horse of Cal Greathouse, the missing ranchman, and it was very early seen that the horse had not returned over the route taken by Greathouse when he started out. He had gone along the valley of the Smoky River, whereas the course of the loose animal had been along the chord of a wide arc made by the valley of that stream, a course much shorter and easier to traverse, as it evaded a part of that rough country known as the breaks of the Smoky, a series of gullies and "draws" running from the table-land down to the deep little river bed. All along the stream, at ragged intervals, grew scattered clumps of cottonwoods and other trees, so that at a long distance the winding course of the little river could be traced with ease. The afternoon of the first day brought the travellers well within view of this timber line, but the rough country along the stream was not yet reached when they were forced to quit the trail and make their rough bivouac for the night.

There was a curious feeling of certainty in Franklin's mind, as they again took saddle for the journey, that the end of the quest was not far distant, and that its nature was predetermined. Neither he nor Curly expected to find the ranchman alive, though neither could have given letter and line for this belief. As for Juan, his face was expressionless as ever. On the morning of this second day they began to cross the great ribbon-like pathways of the northern cattle trail, these now and then blending with the paths of the vanished buffalo. The interweaving paths of the cattle trail were flat and dusty, whereas the buffalo trails were cut deep into the hard earth. Already the dust was swept and washed out of these old and unused ways, leaving them as they were to stand for many years afterward, deep furrows marking the accustomed journeyings of a now annihilated race.

All the wild animals of the plains know how to find their way to water, and the deep buffalo paths all met and headed for the water that lay ahead, and which was to be approached by the easiest possible descent from the table-land through the breaks. Along one of these old trails the horse had come up from the valley, and hence it was down this same trail that Juan eventually led the two searchers for the horse's owner. The ponies plunged down the rude path which wound among the ridges and cut banks, and at last emerged upon the flat, narrow valley traversed by the turbid stream, in that land dignified by the name of river. Down to the water the thirsty horses broke eagerly, Juan following, and lying at full length along the bank, where he lapped at the water like a hound.

"*Que camina—onde, amigo?*" asked Curly in cowboy *patois*. "Which way?"

The Mexican pointed up the stream with carelessness, and they turned thither as soon as the thirst of all had been appeased. As they resumed the march, now along the level floor of the winding little valley. Franklin was revolving a certain impression in his mind. In the mud at the bank where they had stopped he had seen the imprint of a naked foot—a foot very large and with an upturned toe, widely spreading apart from its fellows, and it seemed to him that this track was not so fresh as the ones he had just seen made before his eyes. Troubled, he said nothing, but gave a start as Curly, without introduction, remarked, as though reading his thoughts:

"Cap, I seen it, too."

"His footprint at the bank?"

"Yep. He's shore been here afore."

Neither man said more, but both grew grave, and both looked unconsciously to their weapons. Their way now led among ragged plum thickets, and occasional tangles of wild grapevines, or such smaller growths as clung close to the water among the larger, ragged cottonwoods that dotted the floor of the valley. The Mexican plunged ahead as confidently as before, and in this tangled going his speed was greater than that of the horses. "*Cuidado!*" (careful) "Juan," cried Curly warningly, and the latter turned back a face inscrutable as ever.

The party moved up the valley a mile above the old buffalo ford, and now at last there appeared a change in the deportment of the guide. His step quickened. He prattled vaguely to himself. It seemed that something was near. There was a solemnity in the air. Overhead an excited crow crossed and recrossed the thin strip of high blue sky. Above the crow a buzzard swung in slow, repeated circles, though not joined by any of its sombre brotherhood. Mystery, expectation, dread, sat upon this scene. The two men rode with hands upon their pistols and leaning forward to see that which they felt must now be near.

They turned an angle of the valley, and came out upon a little flat among the trees. Toward this open space the Mexican sprang with hoarse, excited cries. The horses plunged back, snorting. Yet in the little glade all was silence, solitude. Swiftly Franklin and Curly dismounted and made fast their horses, and then followed up the Mexican, their weapons now both drawn.

This glade, now empty, had once held a man, or men. Here was a trodden place where a horse had been tied to a tree. Here was the broken end of a lariat. Here had been a little bivouac, a bed scraped up of the scanty fallen leaves and bunches of taller grass. Here were broken bushes—broken, how?

There was the fire, now sunken into a heap of ashes, a long, large, white heap, very large for a cowman's camp fire. And there—

And there was it! There was some Thing. There was the reason of this unspoken warning in the air. There lay the object of their search. In a flash the revolvers covered the cowering figure of the giant, who, prone upon his knees, was now raving, gibbering, praying, calling upon long-forgotten saints to save him from this sight, "*O Santa Maria! O Purissima! O Madre de Dios!*" he moaned, wringing his hands and shivering as though stricken with an ague. He writhed among the leaves, his eyes fixed only upon that ghastly shape which lay before him.

There, in the ashes of the dead fire, as though embalmed, as though alive, as though lingering to accuse and to convict, lay the body of Greathouse, the missing man. Not merely a charred, incinerated mass, the figure lay in the full appearance of life, a cast of the actual man, moulded with fineness from the white ashes of the fire! Not a feature, not a limb, not a fragment of clothing was left undestroyed; yet none the less here, stretched across the bed of the burned-out fire, with face upturned, with one arm doubled beneath the head and the other with clinched hand outflung, lay the image, the counterpart, nay, the identity of the man they sought! It was a death mask, wrought by the pity of the destroying flames. These winds, this sky, the air, the rain, all had spared and left it here in accusation most terrible, in evidence unparalleled, incredibly yet irresistibly true!

Franklin felt his heart stop as he looked upon this sight, and Curly's face grew pale beneath its tan. They gazed for a moment quietly, then Curly sighed and stepped back. "Keep him covered, Cap," he said, and, going to his horse, he loosened the long lariat.

"*Arriba*, Juan," he said quietly. "Get up." He kicked at the Mexican with his foot as he lay, and stirred him into action. "Get up, Juan," he repeated,

and the giant obeyed meekly as a child. Curly tied his hands behind his back, took away his knife, and bound him fast to a tree. Juan offered no resistance whatever, but looked at Curly with wondering dumb protest in his eyes, as of an animal unjustly punished. Curly turned again to the fire.

"It's him, all right," said he; "that's Cal." Franklin nodded.

Curly picked up a bit of stick and began to stir among the ashes, but as he did so both he and Franklin uttered an exclamation of surprise. By accident he had touched one of the limbs. The stick passed through it, leaving behind but a crumbled, formless heap of ashes. Curly essayed investigation upon the other side of the fire. A touch, and the whole ghastly figure was gone! There remained no trace of what had lain there. The shallow, incrusting shell of the fickle ash broke in and fell, all the thin exterior covering dropping into the cavern which it had inclosed! Before them lay not charred and dismembered remains, but simply a flat table of ashes, midway along it a slightly higher ridge, at which the wind, hitherto not conspiring, now toyed, flicking away items here and there, carrying them, spreading them, returning them unto the dust. Cal Greathouse had made his charge, and left it with the Frontier to cast the reckoning.

CHAPTER XXVIII

THE TRIAL

"Your Honour," said Franklin to the Court, "I appear to defend this man."

The opening sentence of the young advocate might have been uttered in burlesque. To call this a court of justice might have seemed sheer libel. There was not the first suggestion of the dignity and solemnity of the law.

Ellisville had no hall of justice, and the court sat at one place or another, as convenience dictated. This being an important case, and one in which all the populace was interested, Judge Bristol had selected the largest available assembly room, which happened to be the central hall of Sam Poston's livery barn. The judge sat behind a large upturned box, which supported a few battered books. At his right the red-nosed prosecuting attorney shuffled his papers. Along the sides of the open hall-way, through whose open doors at each end the wind passed freely, sat jury and audience, indiscriminately mingled. The prisoner himself, ignorant of the meaning of all this, sat on an upturned tub, unshackled and unguarded. Back of these figures appeared the heads of a double row of horses. The stamp of an uneasy hoof, the steady crunch of jaws upon the hay, with now and then a moist blowing cough from a stall, made up a minor train of intermittent sound. Back of the seated men others were massed, standing in the doorways. Outside the building stood crowds, now and then increased or lessened by those who

passed in or out of the room where the court was in session. These interested spectators were for the most part dark, sunburned men, wearing wide hats and narrow boots with spurs. They all were armed. Leaning against the sides of the mangers, or resting a hand upon the shoulders of another, they gazed calmly at the bar of justice. The attitude of Ellisville was one of sardonic calm. As a function, as a show, this trial might go on.

The trial did go on, rapidly, without quibbling, indeed without much regard for the formalities of the law. The jury had been selected before Franklin made his appearance, and he was given to understand that this jury was good enough for him, and was the one before which this prisoner should be tried. A formal motion for the discharge of the prisoner was overruled. Without much delay the prosecuting attorney arose to present his charge.

"Yo' Honah," said the attorney for the State, arising and striking an attitude learned in earlier forensic days—"yo Honah, an' gentlemen, I rise to present to you, an' to push to the ultimate penalty of the law, a case of the most serious, the most heinyus crime, committed by the most desperate and dangerous criminal, that has thus far ever disturbed the peaceful course of ouah quiet little community. There he sets befo' you," he cried, suddenly raising his voice and pointing a forefinger at the prisoner, who sat smiling amiably. "There he sets, the hardened and self-confessed criminal, guilty of the foulest crime upon the calendar of ouah law. A murderer, gentlemen, a murderer with red hands an' with the brand of Cain upon his brow! This man, this fiend, killed ouah fellow-citizen Calvin Greathouse—he brutally murdered him. Not content with murder, he attempted to destroy his body with fiah, seekin' thus to wipe out the record of his crime. But the fiah itself would not destroy the remains of that prince of men, ouah missin' friend an' brother! His corpse cried out, accusin' this guilty man, an' then an' there this hardened wretch fell abjeckly onto his knees an' called on all his heathen

saints to save him, to smite him blind, that he might no mo' see, *sleepin'* or wakin', the image of that murdered man—that murdered man, ouah friend an' brother, ouah *citizen* an' friend."

The orator knew his audience. He knew the real jury. The shuffling and whispers were his confirmation.

"Yo' Honah," began the accusing voice again, "I see him now. I see this prisoner, this murderer, the central figger of that wild an' awful scene. He falls upon his knees, he wrings his hands, he supplicates high Heaven—that infinite Powah which gave life to each of us as the one most precious gift—he beseeches Providence to breathe back again into that cold clay the divine spark of which his red hand had robbed it. Useless, useless! The dead can not arise. The murdered man can remain to accuse, but he can not arise again in life, He can not again hear the songs of birds. He can not again hear the prattle of his babes. He can not again take a friend by the hand. He can not come to life. The heavens do not open fo' that benef'cent end!

"*But*, yo' Honah, the heavens will open! They will send down a bolt o' justice. Nay, they would send down upon ouah heads a forked messenger o' wrath it we should fail to administer justice, fail to do that juty intrusted into ouah hands! There sets the man! There he is befo' you! His guilt has been admitted. Answer me, gentlemen, what is ouah juty in this case? Shall we set this incarnate fiend free in the lan' again—shall we let him come clear o' this charge—shall we turn him loose again in ouah midst to murder some other of ouah citizens? Shall we set this man free?" His voice had sunk into a whisper as he spoke the last words, leaning forward and looking into the faces of the jury. Suddenly he straightened up, his clinched hand shaken high above his head.

"No!" he cried. "No! I say to you, ten thousand times no! We are a people quiet an' law-abidin'. We have set ouah hands to the conquest o' this lan'. We

have driven out the savages, an' we have erected heah the vine an' fig tree of a new community. We have brought hither ouah flocks an' herds. We shall not allow crime, *red-handed* an' *on-rebuked*, to stalk through the quiet streets of ouah law-abidin', moral town! This man shall not go free! Justice, yo' Honah, justice, gentlemen, is what this community asks. An' justice is what it is a-goin' to have. Yo' Honah, an' gentlemen, I yiel' to the statement o' the defence."

Franklin rose and looked calmly about him while the buzzing of comment and the outspoken exclamations of applause yet greeted the speech of the prosecutor. He knew that Curly's thoughtless earlier description of the scene of the arrest would in advance be held as much evidence in the trial as any sworn testimony given in the court. Still, the sentiment of pity was strong in his heart. He resolved to use all he knew of the cunning of the law to save this half-witted savage. He determined to defeat, if possible, the ends of a technical justice, in order to secure a higher and a broader justice, the charity of a divine mercy. As the lawyer, the agent of organized society, he purposed to invoke the law in order to defeat the law in this, the first trial, for this, the first hostage ever given to civilization on the old cattle range. He prayed to see triumph an actual justice and not the old blind spirit of revenge. He realized fully how much was there to overcome as he gazed upon the set faces of the real jury, the crowd of grim spectators. Yet in his soul there sprang so clear a conviction of his duty that he felt all fogs clear away, leaving his intelligence calm, clear, dispassionate, with full understanding of the best means to obtain his end. He knew that argument is the best answer to oratory.

"Your Honour, and gentlemen of the jury," he began, "in defending this man I stand for the law. The representative of the State invokes the law.

"What is that law? Is it violence for violence, hatred for unreasoning hate? Is that the law? Or is the love of justice, the love of fair play, at the heart of the law? What do you say? Is it not right for any man to have a fair chance?

"I yield to no man in my desire to see a better day of law and order in this town. We are two years old in time, but a century old in violence. Is it merely your wish that we add one more grave to the long rows on our hillsides? Is that your wish? Do you want a trial, or do you wish merely an execution? Gentlemen, I tell you this is the most important day in the history of this town. Let us here make our stand for the law. The old ways will no longer serve. We are at the turning of the road. Let us follow the law.

"Now, under the law you must, in order to prove the crime of murder, be able to show the body of the victim; you must show that murder has really been done. You must show a motive, a reason. You must show, or be prepared to show, when required, a mental responsibility on the part of the accused. All these things you must show by the best possible testimony, not by what you think, or what you have heard, but by direct testimony, produced here in this court. You can't ask the accused man to testify against himself. You can't ask me, his counsel, to testify against him. Hence there is left but one witness who can testify directly in this case. There is not one item of remains, not one bone, one rag, one shred of clothing, not one iota of evidence introduced before this honourable court to show that the body of Calvin Greathouse was ever identified or found. There is no corpus delicti. How shall you say that this missing man has been murdered? Think this thing over. Remember, if you hang this man, you can never bring him back to life.

"There must be some motive shown for the supposition of such an act as murder. What motive can be shown here? Certainly not that of robbery. The horse of the missing man came back alone, its lariat dragging, as we shall prove. It had not been ridden since the lariat was broken. You all know, as we shall prove, that this man Juan was never known to ride a horse. We shall prove that he walked sixty miles, to the very spot where the horse had been tied, and that he scorned to touch a horse on his whole journey. He wanted no horse. He stole no horse. That was no motive. There has been no motive shown. Would a criminal lead the officers of the law to the very spot where he had committed his crime? Had this been theft, or murder, would this man have taken any one directly and unhesitatingly to that spot? I ask you this.

"To be subject to the law, as you very well know, a man must be morally responsible. He must know right and wrong. Even the savage Indians admit this principle of justice. They say that the man of unsound mind is touched by the hand of the Great Spirit. Shall we be less merciful than they? Look at this smiling giant before you. He has been touched by the hand of the Almighty. God has punished him enough.

"I shall show to you that when this man was a child he was struck a severe blow upon the head, and that since that time he has never been of sound mind, his brain never recovering from that shock, a blow which actually broke in a portion of his skull. Since that time he has had recurrent times of violent insanity, with alternating spells of what seems a semi-idiocy. This man's mind never grew. In some ways his animal senses are keen to a remarkable degree, but of reason he has little or none. He can not tell you why he does a thing, or what will happen provided that he does thus or so. This I shall prove to you.

"I therefore submit to you, your Honour, and to you, gentlemen of the jury, two distinct lines of defence which do not conflict, and which are therefore valid under the law. We deny that any murder has been committed, that any motive for murder has been shown, that any body of the crime has been produced. And alternatively we submit that the prisoner at the bar is a man of unsound mind and known to be such, not responsible for his acts, and not in any wise amenable to the capital features of the law. I ask you, gentlemen of the jury, you who hold this man's life in your hands, are you going to hang a man for murder when it is not shown a murder has been done? And would you hang a man who is more ignorant than a child of right and wrong? Is that fair play? Gentlemen, we are all here together, and one of us is as good as another. Our ambitions are the same. We stand here together for the best interests of this growing country—this country whose first word has always been fair play. Now, is it your already formed wish to punish this man? I say, no. I say, first give him his chance."

As Franklin ceased and seated himself the silence was again broken by a rising buzz of conversation. This was proving really a very interesting show, this trial. It must go on yet a little further.

"By jinks," said one cow-puncher, "that's right. That fellow Juan is *loco*, an' you all done knowed that, always."

"He ain't so d——n *loco* but what he could kill a man, all right," said another,

"Sure. Cal Greathouse was worth sever'l o' this Greaser," remarked another.

"I don't see how you c'n hang him legal," said a judicial voice.

"To h——l with this new-fangled law," growled a rough answer from near the door. "Are we dependin' on this here new way o' takin' care of fellers that kills too many folks? If the Greaser done it, he's guilty, an' that settles it. Hangin's too good for a feller that'll kill a man in camp, an' then try to burn him up."

"That's right!" "Sure!" "That's the talk!" were the many replies greeting this comment.

"Order, order, gentlemen!" called the judge from the bench, pounding on the box before him.

"Call William Haskins," said the prosecuting attorney, standing up, with his hands in his pockets.

"William Haskins, William Haskins, William Haskins! Come into Court!" cried out the clerk from his corner of the store box. No immediate response was made. Some one nudged Curly, who started up.

"Who—me?" he said.

"Is your name William Haskins?" asked the judge.

"Reckon so," said Curly. "My folks used to call me that. I usually go under the road brand o' Curly, though." He took his seat on a stool near the store box, was sworn, with his hat on, and the prosecuting attorney began the examination.

"What is your name?"

"Why, Curly."

"What is your occupation?"

"What?"

"How do you make your living?"

"Punchin' cows. Not that I 'low it's any o' yore d——d business."

"Where do you reside?"

"Where do I live?"

"Yes."

"Well, now, I don't know. My folks lives on the Brazos, an' I've been drivin' two years. Now I taken up a claim on the Smoky, out here. I 'low I'll go North right soon, to Wyoming maybe."

"How old are you?"

"Oh, I don't know; but I 'low about twenty-four or twenty-five, along in there."

"Where were you last Wednesday?"

"What?"

"Were you one of the *posse* sent out to search for Cal Greathouse?"

"Yep; me and Cap Franklin, there."

"Who else?"

"Why, Juan, there, him. He was trailin' the hoss for us."

"Where did you go?"

"About sixty miles southwest, into the breaks of the Smoky."

"What did you find?"

"We found a old camp. Hoss had been tied there, and broke its lariat. Bushes was broke some, but we didn't see no blood, as I know of."

"Never mind what you didn't see."

"Well, now—"

"Answer my question."

"Now, say, friend, you don't want to get too gay."

"Answer the question, Mr. Haskins," said the Court.

"Well, all right, judge; I'll do it to oblige you. The most we saw was where a fire had been. Looked like a right smart fire. They was plenty o' ashes layin' there."

"Did you see anything in the ashes?"

"What business is it o' yourn?"

"Now, now," said the Court, "you must answer the questions, Mr. Haskins."

"All right, judge," said Curly. "Well, I dunno hardly what we did see any mor'n what I tole all the boys when we first brought Juan in. I tole you all."

"Correct the witness, your Honour," said Franklin.

"Answer only the questions, Mr. Haskins," said the Judge.

"Very well," said the prosecutor; "what did you see? Anything like a man's figure?"

"We object!" said Franklin, but Curly answered: "Well, yes, it did look like a feller a-layin' there. But when we touched it—"

"Never mind. Did the prisoner see this figure?"

"Shore."

"What did he do?"

"Well, he acted plumb *loco*. He gets down an' hollers. '*Madre de Dios!*' he hollers. I 'low he wuz plenty scared."

"Did he look scared?"

"I object," cried Franklin.

"S'tained," said the judge.

"Ception," said the prosecuting attorney.

"Well, what did the prisoner say or do?"

"Why, he crawls aroun' an' hollers. So we roped him, then. But say—"

"Never mind."

"Well, I was—"

"Never mind. Did you—"

"Shore! I foun' the end o' the lariat tied to a tree."

"But did you—"

"Yes, I tole you! I foun' it tied. End just fits the broke end o' the lariat onto the saddle, when the hoss come back. Them hide ropes ain't no good."

"Never mind—"

"If ever they onct got rotten—"

"Never mind. Was that Greathouse's rope?"

"Maybe so. Now, them hide ropes—"

"Never mind about the hide ropes. I want to know what the prisoner did."

"Well, when we roped him he didn't make no kick."

"Never mind. He saw the figure in the ashes?"

"What do you know about it?—you wasn't there."

"No, but I'm going to make you tell what was there."

"You are, huh? Well, you crack yer whip. I like to see any feller make me tell anything I don't want to tell."

"That's right, Curly," said some one back in the crowd. "No bluff goes."

"Not in a hundred!" said Curly.

"Now, now, now!" began the judge drowsily. The prosecuting attorney counselled of craftiness, at this juncture, foreseeing trouble if he insisted. "Take the witness," he said abruptly.

"Cross-'xamine, d'fence," said the judge, settling back.

"Now, Curly," said Franklin, as he took up the questioning again, "please tell us what Juan did after he saw this supposed figure in the ashes."

"Why, now, Cap, you know that just as well as I do."

"Yes, but I want you to tell these other folks about it."

"Well, of course, Juan acted plenty *loco*—you know that."

"Very well. Now what, if anything, did you do to this alleged body in the ashes?"

"Bject! Not cross-examination," cried the State's attorney.

"M' answer," said the judge.

"What did I do to it?" said Curly. "Why, I poked it with a stick."

"What happened?"

"Why, it fell plumb to pieces."

"Did it disappear?"

"Shore it did. Wasn't a thing left."

"Did it look like a man's body, then?"

"No, it just looked like a pile o' ashes."

"Bore no trace or resemblance to a man, then?"

"None whatever."

"You wouldn't have taken it for a body, then?"

"Nope. Course not."

"Was any part of a body left?"

"Nary thing."

"Any boot, hat, or bit of clothing?"

"Not a single thing, fur's I c'd see."

"That's all," said Franklin.

"Re-direct, Mr. Prosecutor?" said the Court. This was Greek to the audience, but they were enjoying the entertainment.

"Pass the re-direct," said the State's attorney confidently.

"Do you wish to recall this witness, Mr. Franklin?" asked the Court.

"Yes, if your Honour please. I want to take up some facts in the earlier life of the prisoner, as bearing upon his present mental condition."

"Very well," said the judge, yawning. "You may wait a while, Mr. Haskins."

"Well, then, Curly," said Franklin, again addressing himself to his witness, "please tell us how long you have known this prisoner."

"Ever since we was kids together. He used to be a *mozo* on my pap's ranch, over in San Saba County."

"Did you ever know him to receive any injury, any blow about the head?"

"Well, onct ole Hank Swartzman swatted him over the head with a swingletree. Sort o' laid him out, some."

"'Bject!" cried the State's attorney, but the judge yawned "M' go on."

"Did he act strangely after receiving that blow?"

"Why, yes; I reckon you would yerself. He hit him a good lick. It was fer ridin' Hank's favourite mare, an' from that time to now Juan ain't never been on horseback since. That shows he's *loco*. Any man what walks is *loco*. Part o' the time, Juan, he's *bronco*, but all the time he's *loco*."

"He has spells of violence?"

"Shore. You know that. You seen how he fit that Injun—"

"Oh, keep him to the line," protested the prosecutor.

"We won't take up that just now, Curly," said Franklin.

"Well, this here shorely is the funniest layout I ever did see," said Curly, somewhat injured. "A feller can't say a d——d thing but only jest what you all want him to say. Now, say—"

"Yes, but—" began Franklin, fearing that he might meet trouble with this witness even as the prosecutor had, and seeing the latter smiling behind his hand in recognition of this fact.

"Now, say," insisted Curly, "if you want something they ain't none o' you said a word about yet, I'll tell you something. You see, Juan, he had a sister, and this here Cal Greathouse, he—"

"I object, yo' Honah! I object!" cried the State's attorney, springing to his feet. "This is bringin' the dignity o' the law into ridicule, sah! into ridicule! I

object!"

"Er, ah-h-h!" yawned the judge, suddenly sitting up, "'Journ court, Mr. Clerk! We will set to-morrow mornin' at the same place, at nine o'clock.—Mr. Sheriff, take charge of the prisoner.—Where is the sheriff, Mr. Clerk?"

"Please the Court," said the prosecuting attorney, "Sheriff Watson is not here to-day. He is lyin' sick out to his ranch. He was injured, yo' Honah, in arrestin' Ike Anderson, and he has not yet recovered."

"Well, who is in charge of this prisoner?" said the Court. "There ought to be some one to take care of him."

"I reckon I am, Judge," said Curly. "He is sort o' stayin' with me while Bill's under the weather."

"Well, take him in charge, some one, and have him here in the morning."

"All right, judge," said Curly quietly, "I'll take care of him."

He beckoned to Juan, and the giant rose and followed after him, still smiling and pleased at what to him also was a novel show.

It was three o'clock of the afternoon. The thirst of a district Judge had adjourned the district court. Franklin's heart sank. He dreaded the night. The real court, as he admitted to himself, would continue its session that night at the Cottage bar, and perhaps it might not adjourn until a verdict had been rendered.

CHAPTER XXIX

THE VERDICT

There came over the town of Ellisville that night an ominous quiet. But few men appeared on the streets. Nobody talked, or if any one did there was one subject to which no reference was made. A hush had fallen upon all. The sky, dotted with a million blazing stars, looked icy and apart. A glory of moonlight flooded the streets, yet never was moon more cold.

Franklin finished his dinner and sat down alone for a time in the great barren office of the depot hotel where he made his home. The excitement of the trial, suspended at its height, was now followed by reaction, a despondency which it was hard to shake off. Was this, then, the land of his choice? he thought. And what, then, was this human nature of which men sung and wrote? He shook himself together with difficulty.

He went to his room and buckled on his revolver, smiling grimly as he did so at the thought of how intimately all law is related to violence, and how relative to its environment is all law. He went to Battersleigh's room and knocked, entering at the loud invitation of that friend.

"Shure, Ned, me boy," said Battersleigh, "ye've yer side arms on this evenin'. Ye give up the profission of arms with reluctance. Tell me, Ned, what's the campaign fer the evenin'?"

"Well," said Franklin, "I thought I'd step over and sit awhile with Curly this evening. He may be feeling a little lonesome."

"Quite right ye are, me boy," said Battersleigh cheerfully. "Quite right. An' if ye don't mind I'll just jine ye. It's lonesome I am meself the night."

Battersleigh busied himself about his room, and soon appeared arrayed, as was Franklin himself, with a revolver at his belt.

"Shure, Ned, me boy," he said, "an officer an' a gintleman should nivver appear abroad without his side arms. At laste, methinks, not on a night like this." He looked at Franklin calmly, and the latter rose and grasped the hand of the fearless old soldier without a word. The two strolled out together down the street in the direction of the shanty where Curly was keeping his "prisoner."

At this place they saw a few men sitting outside the door, calmly smoking—among these Sam, the liveryman, a merchant by name of Chapman, and a homesteader who was known as One-eyed Pennyman. Inside the house, playing cards with Curly, were four other men. Franklin noticed that they all were armed. They all appeared, from their story, to have just dropped in to pass a little time with Curly. From time to time others dropped in, most of them remaining outside in the moonlight, sitting on their heels along the porch, talking but little, and then mentioning anything but the one subject which was uppermost in every one's mind. Yet, though nothing was said, it might well be seen that this little body of men were of those who had taken the stand for law and order, and who were resolved upon a new day in the history of the town.

It was a battle of the two hotels and what they represented. Over at the great barroom of the Cottage there was at the same time assembled a much larger gathering, composed chiefly of those transient elements which at that

time really made up the larger portion of the population of the place—wide-hatted men, with narrow boots and broad belts at which swung heavy, blued revolvers with broad wooden butts—a wild-looking, wild-living body of men, savage in some ways, gentle in others, but for the most part just, according to their creed. The long bar was crowded, and outside the door many men were standing along the wide gallery. They, too, were reticent. All drank whisky, and drank it regularly. Up to ten o'clock the whisky had produced no effect. The assembly was still engaged in deliberation, drinking and thinking, calmly, solemnly.

At ten o'clock a big Texan raised his glass high above his head and smashed it upon the bar.

"Law an' order be damned!" said he. "What kind o' law an' order is it to let a murderin' Greaser like that come clear? Which of us'll be the next he'd kill?"

There was no answer. A sigh, a shiver, a little rustling sound passed over the crowd.

"We always used ter run our business good enough," resumed the Texan. "What need we got o' lawyers now? Didn't this Greaser kill Cal? Crazy? He's just crazy enough to be mean. He's crazy so'st he ain't safe, that's what."

The stir was louder. A cowman motioned, and the barkeeper lined the whole bar with glasses, setting out six bottles of conviction.

"Curly means all right," said one voice. "I know that boy, an' he's all right."

"Shore he's all right!" said the first voice, "an' so's Bill Watson all right. But what's the use?"

"*Loco*, of course the Greaser's *loco*," broke in another speaker. "So's a mad dog *loco*. But about the best thing's to kill it, so'st it's safer to be roun'."

Silence fell upon the crowd. The Texan continued. "We always did," he said.

"Yes," said another voice. "That's right. We always did."

"Curly'll never let him go," said one irrelevantly. "Seems to me we better sen' this Greaser off to the States, put him in a 'sylum, er somethin'."

"Yes," said the tall Texan; "and I like to know ef that ain't a blame sight worse'n hangin' a man?"

"That's so," assented several voices. And indeed to these men, born and bred in the free life of the range, the thought of captivity was more repugnant than the thought of death.

"The lawyer feller, he ain't to blame," said one apologetically. "He made things look right plain. He ain't no fool."

"Well, I don't know as he helt no aidge over ole Claib Benson," said another argumentatively. "Claib puts it mighty powerful."

"Yes, but," said the other eagerly, "Claib means fer hangin' by the Co'te."

"Shore," said a voice. "Now, I'm one o' the jury, but I says in my own min', ef we convict this yer man, we got to hang him right away anyway, 'cause we ain't got no jail, an' we kain't afford no guard to watch him all the

time. Now, he'd have to be hung right away, anyhow." This half apologetically.

"What do most o' you fellers on the jury think? Does this here crazy business go with you all?"

"Well, kin savvy," replied the juror judicially. "Some o' the boys think it a leetle tough to hang a feller fer a thing he kain't remember and that he didn't never think was no harm. It don't look like the Greaser'd take any one right to where he would shore be convicted, ef he had of made this here killin'."

"Well," said a conservative soothingly, "let's wait till to-morrer. Let's let the Co'te set another day, anyhow."

"Yes, I reckon that's right; yes, that's so," said others; "we'd better wait till to-morrer."

A brief silence fell upon the gathering, a silence broken only by tinklings or shufflings along the bar. Then, all at once, the sound of an excited voice rose and fell, the cry of some one out upon the gallery in the open air. The silence deepened for one moment, and then there was a surge toward the door.

Far off, over the prairie, there came a little flat, recurrent sound, or series of sounds, as of one patting his fingers softly together. It fell and rose and grew, coming rapidly nearer, until at length there could be distinguished the cracking and popping of the hoofs of running horses. The sound broke into a rattling rumble. There came across the still, keen night a wild, thin, high, shrilling yell, product of many voices.

"It's the Bar O outfit, from the Brazos, coming in," said some one. The crowd pressed out into the air. It opened and melted slightly. The crowd at

Curly's shanty increased slightly, silently. Inside, Curly and his friend still played cards. The giant prisoner lay asleep upon the floor, stretched out on his thin native wool mattress, his huge bulk filling half the floor.

The rattle of many hoofs swept up to the door of the Cottage, where the restive, nervous horses were left standing while the men went in, their leader, a stocky, red-mustached man, bearing with him the rope which he had loosened from his saddle. Having drunk, the leader smote upon the bar with a heavy hand.

"Come along, men," he called out, "The quicker we hang that d——d Greaser the better it will be. We done heard there was some sort o' trial goin' on here in town over this. We cowmen ain't goin' to stand no such foolishness. This Greaser killed Cal Greathouse, an' he's got to hang."

He moved toward the door, followed by many silently, by others with steps that lagged. "Well, you see—" began one man.

"To h——l with all that!" said the newcomer, turning upon him fiercely. "We don't need no cowards!"

"No, that ain't it," resumed the first man, "but we got to respeck the Co'te—fust Co'te ever did set here, you see. The fellers, some of 'em, thinks—some o' the *jury* thinks—that the feller's too crazy fer to hang."

"Crazy be d——d! We're goin' to hang him, an' that settles it. Law an' order kin take care of it afterward."

All the time they were shifting toward the door. Outside the band of cattlemen who had just ridden in, fresh from the trail, and with but a partial knowledge of the arguments that had been advanced in this court, for which they had but small respect at best, settled the immediate question in an

instant. As though by concert they swung into saddle and swept off up the street in a body, above the noise of their riding now breaking a careless laugh, now a shrill yell of sheer joyous excitement. They carried with them many waverers. More than a hundred men drew up in front of the frail shelter over which was spread the doubtful aegis of the law.

Fifty men met them. The lights went out in the house in an instant, and in front of the door there swept a dark and silent cordon. The leader of the invaders paused, but went straight forward.

"We want that man!" he said.

There was no answer. The line in front of the door darkened and thickened. Finally the figure of the young lawyer appeared, and he said calmly, sternly:

"You know very well you can't have him."

"We don't know nothin' o' the sort. We want him, an' we're goin' to have him. We don't want no one else, an' we won't make no trouble, but we're goin' to take the Mexican. Git out the road!"

A second figure stood by the side of Franklin, and this man was recognised by the leader. "Aw, now, Curly, what d——d foolishness is this here? Bring him out."

"You know I won't, Jim," said Curly, simply. "We're tryin' him on the square. You ain't the Co'te. I kain't give him to no one but the Co'te."

"We *are* the Co'te!" came the hot reply. "The Co'te that runs this range fer hoss-thieves an' murderers. Now, see here, Curly, we're all your friends, an' you know it, but that feller has got to hang, an' hang to-night. Git out the way. What's the matter with you?"

"They ain't nothin' the matter with me," said Curly slowly, "'ceptin' I done said I wouldn't give this man up to no man but the Co'te. A lot o' us fellers, here in the settlement, we 'lowed that the law goes here now."

Silence fell for an instant, then from the rear of the party there came pushing and crowding and cries of "Burn the house—drive him out!" There was a rush, but it was met by a silent thickening of the line at the point assailed. Men scuffled with men, swearing and grunting, panting hard. Here and there weapons flashed dully, though as yet no shot was fired. Time and again Franklin raised his voice. "Men, listen to me!" he cried. "We promise you a fair trial—we promise—"

"Shut up!" cried the leader, and cries of "No talking!" came from the crowd. "Give him up, or we'll clean you all out!" cried another voice, angrily. The rushers toward the house grew closer, so that assailants and besiegers were now mingled in a fighting, swearing mass.

"You're no cowman, Curly," cried one voice, bitterly, out of the black shifting sea in front of the house.

"You're a d——d liar!" cried Curly in reply, "whoever says that to me! I'm only a-keepin' of my word. You kain't clean us out. I'll shoot the livin' soul out o' any man that touches that door! This here is the jail, an' I'm the deppity, and, by ——! you'll not have my prisoner!"

"Quite right, me man," said a cool voice at Curly's side, and a hand fell on his shoulder as a tall form loomed up in the crowd. "There's good matayrial in you, me bully. Hould yer position, an' be sure that Batty's with you, at the laste. Fair play's a jule, an' it's fair play we're goin' to have here."

Backed by a crowd of men whose resolution was as firm as their own, these three fell back in front of the door. Franklin felt his heart going fast,

and knew that more was asked of him here than had ever been upon the field of battle; yet he was exultant at the discovery that he had no thought of wavering. He knew then that he had been proved. With equal joy he looked upon the face of Curly, frowning underneath the pushed-back hat, and upon that of Battersleigh, keen-looking, eager, as though about to witness some pleasurable, exciting thing. Yet he knew the men in front were as brave as they, and as desperately resolved. In a moment, he reflected, the firing would begin. He saw Curly's hands lying lightly upon the butts of his revolvers. He saw Battersleigh draw his revolver and push with the side of the barrel against the nearest men as though to thrust them back. He himself crowded to the fore, eager, expectant, prepared. One shot, and a score of lives were done, and dark indeed would be this night in Ellisville.

Suddenly the climax came. The door was thrust irresistibly open, not from without, but from within. Stooping, so that his head might clear its top, the enormous figure of Juan, the Mexican, appeared in the opening. He looked out, ignorant of the real reason of this tumult, yet snuffing conflict as does the bear not yet assailed. His face, dull and impassive, was just beginning to light up with suspicion and slow rage.

A roar of anger and excitement rose as the prisoner was seen standing there before them, though outlined only by the dim light of the sky. Every man in the assailing party sprang toward the building. The cries became savage, beastlike. It was no longer human beings who contended over this poor, half-witted being, but brutes, less reasonable than he.

Juan left the door. He swept Franklin and Curly and Battersleigh aside as though they were but babes. It was his purpose to rush out, to strike, to kill. It was the moment of opportunity for the leader of the assailants. The whistle of a rope cut the air, and the noose tightened about the giant's neck with instant grip. There was a surge back upon the rope, a movement which

would have been fatal for any other man, which would have been fatal to him, had the men got the rope to a horse as they wished, so that they might drag the victim by violence through the crowd.

But with Juan this act was not final. The noose enraged him, but did not frighten or disable him. As the great bear of the foothills, when roped by the horseman, scorns to attempt escape, but pulls man and horse toward him by main force, so the giant savage who was now thus assailed put forth his strength, and by sheer power of arm drew his would-be captors to him, hand over hand. The noose about his own neck he loosened with one hand. Then he raised his hand and let it fall. The caster of the rope, his collar bone broken and his shoulder blade cracked across, fell in a heap at his feet as the swaying crowd made way. Once again there was silence, one moment of confusion, hesitation. Then came the end.

There came, boring into the silence with horrible distinctness, the sound of one merciful, mysterious shot. The giant straightened up once, a vast black body towering above the black mass about him, and then sank gently, slowly down, as though to curl himself in sleep.

There was a groan, a roar, a swift surging of men, thick, black, like swarming bees. Some bent above the two prone figures. Others caught at the rope, grovelling, snarling.

They were saved the last stage of their disgrace. Into the crowd there pressed the figure of a new-comer, a hatless man, whose face was pale, whose feet were unshod, and who bore one arm helpless in a dirty sling which hung about his neck. Haggard and unkempt, barefooted, half-clad as he had stumbled out of bed at his ranch six miles away, Bill Watson, the sheriff, appeared a figure unheroic enough. With his broken arm hanging useless and jostled by the crowd, he raised his right hand above his head and called out, in a voice weak and halting, but determined:

"Men, go—go home! I command you—in the name—of the law!"

BOOK IV

THE DAY OF THE PLOUGH

CHAPTER XXX

THE END OF THE TRAIL

The Cottage Hotel of Ellisville was, singularly enough, in its palmy days conducted by a woman, and a very good woman she was. It was perhaps an error in judgment which led the husband of this woman to undertake the establishment of a hotel at such a place and such a time, but he hastened to repair his fault by amiably dying. The widow, a large woman, of great kindness of heart and a certain skill in the care of gunshot wounds, fell heiress to the business, carried it on and made a success of it. All these wild range men who came roistering up the Trail loved this large and kind old lady, and she called them all her "boys," watching over the wild brood as a hen does over her chickens. She fed them and comforted them, nursed them and buried them, always new ones coming to take the places of those who were gone. Chief mourner at over threescore funerals, nevertheless was Mother Daly's voice always for peace and decorum; and what good she did may one day be discovered when the spurred and booted dead shall rise.

The family of Mother Daly flourished and helped build the north-bound cattle trail, along which all the hoof marks ran to Ellisville. There was talk

of other cow towns, east of Ellisville, west of it, but the clannish conservatism of the drovers held to the town they had chosen and baptized. Thus the family of Mother Daly kept up its numbers, and the Cottage knew no night, even at the time when the wars of the cowmen with the railroad men and the gamblers had somewhat worn away by reason of the advancing of the head of the rails still farther into the Great American Desert.

There was yet no key to the Cottage bar when there came the unbelievable word that there was no longer a buffalo to be found anywhere on the range, and that the Indians were gone, beaten, herded up forever. Far to the north, it was declared, there were men coming in on the cow range who had silver-mounted guns, who wore gold and jewels, and who brought with them saddles without horns! It was said, however, that these new men wanted to buy cows, so cows were taken to them. Many young men of Mother Daly's family went on up the Trail, never to come back to Ellisville, and it was said that they were paid much gold, and that they stole many cows from the men who had silver-mounted guns, and who wore strange, long knives, with which it was difficult to open a tin can.

Mother Daly looked upon this, and it was well. She understood her old boys and loved them. She was glad the world was full of them. It was a busy, happy, active world, full of bold deeds, full of wide plans, full of men. She looked out over the wide wind-swept plains, along the big chutes full of bellowing beeves, at the wide corral with its scores of saddled Nemeses, and she was calm and happy. It was a goodly world.

It was upon one day that Mother Daly looked out upon her world; upon the next day she looked again, and all the world was changed. Far as the eye could reach, the long and dusty roadway of the cows lay silent, with its dust unstirred. Far, very far off, there was approaching a little band of strange, small, bleating, woolly creatures, to whose driver Mother Daly refused bed

and board. The cattle chutes were silent, the corral was empty. At the Cottage bar the keeper had at last found a key to the door. Up and down the Trail, east and west of the Trail, all was quiet, bare, and desolate. At some signal—some signal written on the sky—all the old life of Ellisville had taken up its journey into a farther land, into another day. The cowman, the railroad man, and the gambling man had gone, leaving behind them the wide and well-perforated Cottage, the graveyard with its double street, the cattle chutes with well-worn, hairy walls.

Now there came upon the face of the country faint scars where wheels had cut into the hard soil, these vagrant indices of travel not pointing all one way, and not cut deep, as was the royal highway of the cattle, but crossing, tangling, sometimes blending into main-travelled roads, though more often straying aimlessly off over the prairie to end at the homestead of some farmer. The smokes arose more numerous over the country, and the low houses of the settlers were seen here and there on either hand by those who drove out over the winding wagon ways in search of land. These new houses were dark and low and brown, with the exception that each few miles the traveller might see a small frame house painted white. Sometimes, in the early morning, there might be seen wandering toward these small white houses, no man knew whence, small groups of little beings never before seen upon the range. At nightfall they wandered back again. Sometimes, though rarely, they needed to turn aside from the straight line to go about the corner of a fence. Sometimes within such fences there might be seen others of these dirty, bleating creatures which Mother Daly hated. Here and there over the country were broken rows of little yellow, faded trees struggling up out of the hard earth. The untiring wheels of windmills could be seen everywhere at their work.

Here and there at the trodden, water holes of the broken creeks there lay carcasses of perished cattle, the skin dried and drawn tight over the bones;

but on the hillsides near by grazed living cattle, fatter and more content to feed than the wild creatures that yesterday clacked and crowded up the Trail. Now, it is known of all men that cattle have wide horns, broad as the span of a man's arms; yet there were men here who said they had seen cattle whose horns were no longer than those of the buffalo, and later this thing was proved to be true.

Mother Daly knew, as all persons in the past knew, that by right the face of the plains was of one colour, unbroken; gray-brown in summer, white in winter, green in the spring. Yet now, as though giants would play here some game of draughts, there came a change upon the country, so that in squares it was gray, in squares green. This thing had never been before.

In the town of Ellisville the great heap of buffalo bones was gone from the side of the railroad track. There were many wagons now, but none brought in bones to pile up by the railway; for even the bones of the buffalo were now gone forever.

Mother Daly looked out upon the Cottage corral one day, and saw it sound and strong. Again she looked, and the bars were gone. Yet another day she looked, and there was no corral! Along the street, at the edge of the sidewalks of boards, there stood a long line of hitching rails. Back of these board sidewalks were merchants who lived in houses with green blinds, and they pronounced that word "korrawl!"

The livery barn of Samuel Poston grew a story in stature, and there was such a thing as hay—hay not imported in wired bales. In the little city there were three buildings with bells above them. There was a courthouse of many rooms; for Ellisville had stolen the county records from Strong City, and had held them through Armageddon. There were large chutes now at the railway, not for cattle, but for coal. Strange things appeared. There was a wide, low, round, red house, full of car tracks, and smoke, and hammer

blows, and dirt, and confusion; and from these shops came and went men who did an unheard-of thing. They worked eight hours a day, no more, no less! Now, in the time of Man, men worked twenty-four hours a day, or not at all; and they did no man's bidding.

The streets of Ellisville were many. They doubled and crossed. There was a public square hedged about with trees artificially large. For each vanishing saloon there had come a store with its hitching rack for teams. The Land Office was yet at Ellisville, and the rush of settlers was continuous. The men who came out from the East wore wide hats and carried little guns; but when they found the men of Ellisville wearing small, dark hats and carrying no guns at all, they saw that which was not to be believed, and which was, therefore, not so written in the literary centres which told the world about the Ellisvilles. Strangers asked Ellisville about the days of the cattle drive, and Ellisville raised its eminently respectable eyebrows. There was a faint memory of such a time, but it was long, long ago. Two years ago! All the world had changed since then. There had perhaps been a Cottage Hotel. There was perhaps a Mrs. Daly, who conducted a boarding-house, on a back street. Our best people, however, lived at the Stone Hotel. There were twelve lawyers who resided at this hotel, likewise two ministers and their wives. Six of the lawyers would bring out their wives the following spring. Ministers, of course, usually took their wives with them.

Ellisville had thirty business houses and two thousand inhabitants. It had large railway shops and the division offices of the road. It had two schoolhouses (always the schoolhouse grew quickly on the Western soil), six buildings of two stories, two buildings of three stories and built of brick. Business lots were worth \$1,800 to \$2,500 each. The First National Bank paid \$4,000 for its corner. The Kansas City and New England Loan, Trust, and Investment Company had expended \$30,000 in cash on its lot, building,

and office fixtures. It had loaned three quarters of a million of dollars in and about Ellisville.

Always the land offered something to the settler. The buffalo being gone, and their bones being also gone, some farmers fell to trapping and poisoning the great gray wolves, bringing in large bales of the hides. One farmer bought half a section of land with wolf skins. He had money enough left to buy a few head of cattle and to build a line of fence. This fence cut at right angles a strange, wide, dusty pathway. The farmer did not know what he had done. He had put restraint on that which in its day knew no pause and brooked no hindrance. He had set metes and bounds across the track where once rolled the wheels of destiny. He had set the first fence across the Trail!

The stranger who asked for the old, wild days of Ellisville the Red was told that no such days had ever been. Yet stay: perhaps there were half a dozen men who had lived at Ellisville from the first who could, perhaps, take one to the boarding-house of Mrs. Daly; who could, perhaps, tell something of the forgotten days of the past, the days of two years ago, before the present population of Ellisville came West. There was, perhaps, a graveyard, but the headstones had been so few that one could tell but little of it now. Much of this, no doubt, was exaggeration, this talk of a graveyard, of a doubled street, of murders, of the legal killings which served as arrests, of the lynchings which once passed as justice. There was a crude story of the first court ever held in Ellisville, but of course it was mere libel to say that it was held in the livery barn. Rumour said that the trial was over the case of a negro, or Mexican, or Indian, who had been charged with murder, and who was himself killed in an attempt at lynching, by whose hand it was never known. These things were remembered or talked about by but very few, these the old-timers, the settlers of two years ago. Somewhere to the north of the town, and in the centre of what was

declared by some persons to be the old cattle trail, there was reputed to be visible a granite boulder, or perhaps it was a granite shaft, supposed to have been erected with money contributed by cattlemen at the request of Mrs. Daly, who kept the boarding-house on a back street. Some one had seen this monument, and brought back word that it had cut upon its face a singular inscription, namely:

JUAN THE LOCO,

THE END OF THE TRAIL.

CHAPTER XXXI

THE SUCCESS OF BATTERSLEIGH

One morning when Franklin entered his office he found his friend Battersleigh there before him, in full possession, and apparently at peace with all the world. His tall figure was reclining in an office chair, and his feet were supported by the corner of the table, in an attitude which is called American, but which is really only masculine, and quite rational though unbeautiful. Battersleigh's cloak had a swagger in its very back, and his hat sat at a cocky angle not to be denied. He did not hear Franklin as he approached the door, and the latter stood looking in for a moment, amused at Battersleigh and his attitude and his song. When quite happy Battersleigh always sang, and very often his song was the one he was singing now, done in a low nasal, each verse ending, after the vocal fashion of his race, with a sudden uplift of a sheer octave, as thus:

"I-I-I-'d dance li-i-i-ke a fa-a-a-iree-ee-ee,
For to see ould Dunlear-e-e-e-e-e!
I-I-I-'d think twi-i-i-ice e-e-e-r-r I-I-I-'d lave it,
For to be-e-e-e-e a drag-o-o-n."

Franklin chuckled at the reminiscent music as he stepped in and said good morning. "You seem in fine fettle this morning, friend," said he. "Very fine, for an old man."

Battersleigh squared around and looked at him soberly. "Ned," said he, "ye're a dethractor of innycince. Batty ould! Listen to me, boy! It's fifty years younger I am to-day than when I saw ye last. I'm younger than ye ivver saw me in all your life before."

"And what and where was the fountain?" said Franklin, as he seated himself at his desk.

"The one fountain of all on earth, me boy—Succiss—succiss! The two dearest things of life are Succiss and Revinge. I've found thim both. Shure, pfwhat is that gives one man the lofty air an' the overlookin' eye, where another full his ekil in inches fears to draw the same breath o' life with him? Succiss, succiss, me boy! Some calls it luck, though most lays it to their own shupayrior merit. For Batty, he lays it to nothin' whativver, but takes it like a philosopher an' a gintleman."

"Well, I suppose you don't mind my congratulating you on your success, whatever it may be," said Franklin, as he began to busy himself about his work at the desk. "You're just a trifle mysterious, you know."

"There's none I'd liever have shake me by the hand than yoursilf, Ned," said Battersleigh, "the more especially by this rayson, that ye've nivver believed in ould Batty at all, but thought him a visionary schamer, an' no more. Didn't ye, now, Ned; on your honour?"

"No," said Franklin stoutly. "I've always known you to be the best fellow in the world."

"Tut, tut!" said Battersleigh. "Ye're dodgin' the issue, boy. But pfwhat wud ye say now, Ned, if I should till ye I'd made over tin thousand pounds of good English money since I came to this little town?"

"I should say," said Franklin calmly, as he opened an envelope, "that you had been dreaming again."

"That's it! That's it!" cried Battersleigh. "Shure ye wud, an' I knew it! But come with me to bank this mornin' an' I'll prove it all to ye."

Something in his voice made Franklin wheel around and look at him. "Oh, do be serious, Battersleigh," said he.

"It's sayrious I am, Ned, I till ye. Luk at me, boy. Do ye not see the years droppin' from me? Succiss! Revinge! Cash! Earth holds no more for Batty. I've thim all, an' I'm contint. This night I retire dhrunk, as a gintleman should be. To-morrow I begin on me wardrobe. I'm goin' a longish journey, lad, back to ould England. I'm a long-lost son, an' thank God! I've not been discovered yit, an' hope I'll not be fer a time.

"I'll till ye a secret, which heretofore I've always neglected to mintion to anybody. Here I'm Henry Battersleigh, agent of the British-American Colonization Society. On t'other side I might be Cuthbert Allen Wingate-Galt. An' Etcetera, man; etcetera, to God knows what. Don't mintion it, Ned, till I've gone away, fer I've loved the life here so—I've so enjoyed bein' just Batty, agent, and so forth! Belave me, Ned, it's much comfortabler to be merely a' And-so-forth thin it is to be an' Etcetera. An' I've loved ye so, Ned! Ye're the noblest nobleman I ivver knew or ivver expict to know."

Franklin sat gazing at him without speech, and presently Battersleigh went on.

"It's a bit of a story, lad," said he kindly. "Ye see, I've been a poor man all me life, ye may say, though the nephew of one of the richest women in the United Kingdom—an' the stingiest. Instid of doin' her obvayus juty an' supportin' her nephew in becomin' station, she marries a poor little lordlet

boy, an' forsakes me entirely. Wasn't it hijjus of her? There may have been raysons satisfyin' to her own mind, but she nivver convinced me that it was Christian conduct on her part. So I wint with the Rile Irish, and fought fer the Widdy. So what with likin' the stir an' at the same time the safety an' comfort o' the wars, an' what with now an' thin a flirtashun in wan colour or another o' the human rainbow, with a bit of sport an' ridin' enough to kape me waist, I've been in the Rile Irish ivver since—whin not somewhere ilse; though mostly, Ned, me boy, stone broke, an' ownin' no more than me bed an' me arms. Ye know this, Ned."

"Yes," said Franklin, "I know, Battersleigh. You've been a proud one,"

"Tut, tut, me boy; nivver mind. Ye'll know I came out here to make me fortune, there bein' no more fightin' daycint enough to engage the attention of a gintleman annywhere upon the globe. I came to make me fortune. An' I've made it. An' I confiss to ye with contrition, Ned, me dear boy, I'm Cubberd Allen Wiggitt-Galt, Etcetera !"

After his fashion Franklin sat silent, waiting for the other's speech.

"Ned," said Battersleigh at length, "till me, who's the people of the intire worrld that has the most serane belief in their own shupayriority?"

"New-Yorkers," said Franklin calmly.

"Wrong. Ye mustn't joke, me boy. No. It's the English. Shure, they're the consatedest people in the whole worrld. An' now, thin, who's the wisest people in the worrld?"

"The Americans," said Franklin promptly again.

"Wrong agin. It's thim same d——d domineerin' idjits, the yally-headed subjects o' the Widdy. An' pfwy are they wise?"

"You'll have to tell," said Franklin.

"Then I'll till ye. It's because they have a *sacra fames* fer all the land on earth."

"They're no worse than we," said Franklin. "Look at our Land-Office records here for the past year."

"Yis, the Yankee is a land-lover, but he wants land so that he may live on it, an' he wants to see it before he gives his money for it. Now, ye go to an Englishman, an' till him ye've a bit of land in the cintre of a lost island in the middle of the Pacific say, an' pfwhat does he do? He'll first thry to stale ut, thin thry to bully ye out of ut; but he'll ind by buyin' ut, at anny price ye've conscience to ask, an' he'll thrust to Providence to be able to find the island some day. That's wisdom. I've seen the worrld, me boy, from Injy to the Great American Desert. The Rooshan an' the Frinchman want land, as much land as ye'll cover with a kerchief, but once they get it they're contint. The Haybrew cares for nothin' beyond the edge of his counter. Now, me Angly-Saxon, he's the prettiest fightin' man on earth, an' he's fightin' fer land, er buyin' land, er stalin' land, the livin' day an' cintury on ind. He'll own the earth!"

"No foreign Anglo-Saxon will ever own America," said Franklin grimly.

"Well, I'm tellin' ye he'll be ownin' some o' this land around here."

"I infer, Battersleigh," said Franklin, "that you have made a sale."

"Well, yis. A small matter."

"A quarter-section or so?"

"A quarter-township or so wud be much nearer," said Battersleigh dryly.

"You don't mean it?"

"Shure I do. It's a fool for luck; allowin' Batty's a fool, as ye've always thought, though I've denied it. Now ye know the railroad's crazy for poppylation, an' it can't wait. It fairly offers land free to thim that'll come live on it. It asks the suffrin' pore o' Yurup to come an' honour us with their prisince. The railroad offers Batty the Fool fifteen hundred acres o' land at three dollars the acre, if Batty the Fool'll bring settlers to it. So I sinds over to me ould Aunt's country—not, ye may suppose, over the signayture o' Cubberd Allen Wiggitt-Galt, but as Henry Battersleigh, agent o' the British American Colonization Society—an' I says to the proper party there, says I, 'I've fifteen hundred acres o' the loveliest land that ivver lay out of dures, an' ye may have it for the trifle o' fifty dollars the acre. Offer it to the Leddy Wiggitt,' says I to him; 'she's a philanthropist, an' is fer Bettherin' the Pore' ('savin' pore nephews,' says I to mesilf). 'The Lady Wiggitt,' says I, 'I'll be sendin' a ship load o' pore tinnints over here,' says I, 'an' she'll buy this land. Offer it to her,' says I. So he did. So she did. She tuk it. I'll be away before thim pisints o' hers comes over to settle here, glory be! Now, wasn't it aisy? There's no fools like the English over land, me boy. An' 'twas a simple judgment on me revered Aunt, the Leddy Wiggitt."

"But, Battersleigh, look here," said Franklin, "you talk of fifty dollars an acre. That's all nonsense—why, that's robbery. Land is dear here at five dollars an acre."

"Shure it is, Ned," said Battersleigh calmly. "But it's chape in England at fifty dollars."

"Well, but—"

"An' that's not all. I wrote to thim to send me a mere matter of tin dollars an acre, as ivvidence a' good faith. They did so, an' it was most convaynient

for settlin' the little bill o' three dollars an acre which the railroad had against me, Batty the Fool."

"It's robbery!" reiterated Franklin.

"It wud 'av' been robbery," said Battersleigh, "had they sint no more than that, for I'd 'av' been defrauded of me just jues. But whut do you think? The murdherin' ould fool, me revered Aunt, the Leddy Wiggitt, she grows 'feard there is some intint to rob her of her bargain, so what does she do but sind the entire amount at wance—not knowin', bless me heart an' soul, that she's thus doin' a distinguished kindness to the missin' relative she's long ago forgot! Man, would ye call that robbery? It's Divine Providence, no less! It's justice. I know of no one more deservin' o' such fortune than Battersleigh, late of the Rile Irish, an' now a Citizen o' the World. Gad, but I've a'most a mind to buy a bit of land me own silf, an' marry the Maid o' the Mill, fer the sake o' roundin' out the play. Man, man, it's happy I am to-day!"

"It looks a good deal like taking advantage of another's ignorance," said Franklin argumentatively.

"Sir," said Battersleigh, "it's takin' advantage o' their Wisdom. The land's worth it, as you'll see yoursilf in time. The price is naught. The great fact is that they who own the land own the earth and its people. 'Tis out of the land an' the sea an' the air that all the wilth must come. Thus saith Batty the Fool. Annyhow, the money's in the bank, an' it's proper dhrunk'll be Batty the Fool this night, an' likewise the Hon. Cubberd Allen Wiggitt-Galt, Etcetera. There's two of me now, an' it's twice the amount I must be dhrinkin'. I swear, I feel a thirst risin' that minds me o' Ingy in the hills, an' the mess o' the Rile Irish wance again."

"You'll be going away," said Franklin, sadly, as he rose and took Battersleigh by the hand. "You'll be going away and leaving me here alone

—awfully alone."

"Ned," said the tall Irishman, rising and laying, a hand upon his shoulder, "don't ye belave I'll be lavin' ye. I've seen the worrld, an' I must see it again, but wance in a while I'll be comin' around here to see the best man's country on the globe, an' to meet agin the best man I ivver knew. I'll not till why I belave it, for that I can not do, but shure I do belave it, this is the land for you. There'll be workin' an' thinkin' here afther you an' Batty are gone, an' maybe they'll work out the joy an' sorrow of ut here. Don't be restless, but abide, an' take ye root here. For Batty, it's no odds. He's seen the worrld."

Battersleigh's words caused Franklin's face to grow still more grave, and his friend saw and suspected the real cause. "Tut, tut! me boy," he said, "I well know how your wishes lie. It's a noble gyurl ye've chosen, as a noble man should do. She may change her thought to-morrow. It's change is the wan thing shure about a woman."

Franklin shook his head mutely, but Battersleigh showed only impatience with him. "Go on with your plans, man," said he, "an' pay no attintion to the gyurl! Make ready the house and prepare the bridal gyarments. Talk with her raysonable, an' thin thry unraysonable, and if she won't love ye peaceful, thin thry force; an' she'll folly ye thin, to the ind of the earth, an' love ye like a lamb. It's Batty has studied the sex. Now, wance there was a gyurl—but no; I'll not yet thrust mesilf to spake o' that. God rist her asy ivermore!"

"Yes," said Franklin sadly, "that is it. That is what my own answer has been. She tells me that there was once another, who no longer lives—that no one else—"

Battersleigh's face grew grave in turn. "There's no style of assault more difficult than that same," said he. "Yet she's young; she must have been very

young. With all respect, it's the nature o' the race o' women to yield to the livin', breathin' man above the dead an' honoured."

"I had my hopes," said Franklin, "but they're gone. They've been doing well at the Halfway House, and I've been doing well here. I've made more money than I ever thought I should, and I presume I may make still more. I presume that's all there is—just to make money, and then more, if you can. Let it go that way. I'll not wear my heart on my sleeve—not for any woman in the world."

Franklin's jaws set in fashion still more stern than their usual cast, yet there had come, as Battersleigh did not fail to notice, an older droop to the corners of his mouth, and a loss of the old brilliance of the eye.

"Spoken like a man," said Battersleigh, "an' if ye'll stick to that ye're the more like to win. Nivver chance follyin' too close in a campaign ag'inst a woman. Parallel an' mine, but don't uncover your forces. If ye advance, do so by rushes, an' not feelin' o' the way. But tin to wan, if ye lie still under cover, she'll be sendin' out skirmishers to see where ye are an' what ye are doin'. Now, ye love the gyurl, I know, an' so do I, an' so does ivery man that ivver saw her, for she's the sort min can't help adorin'. But, mind me, kape away. Don't write to her. Don't make poetry about her—God forbid! Don't do the act o' serryadin' in anny way whativver. Make no complaint—if ye do she'll hate ye, like as not; for when a gyurl has wronged a man she hates him for it. Merely kape still. Ye've met your first reverse, an' ye've had your outposts cut up a bit, an' ye think the ind o' the worrld has come. Now, mind me, ould Batty, who's seen the lands; only do ye attind to dhrill an' sinthry-go an' commissariat, till in time ye find your forces in thrim again. By thin luk out fer heads stickin' up over the hills on the side o' the inimy, who'll be wonderin' what's goin' on. 'Go 'way,' she says to you, an' you go. 'Come

back,' she whispers to herself, an' you don't hear it. Yet all the time she's wonderin' pfwhy you don't!"

Franklin smiled in spite of himself. "Battersleigh's Tactics and Manual of Strategy," he murmured. "All right, old man. I thank you just the same. I presume I'll live, at the worst. And there's a bit in life besides what we want for ourselves, you know."

"There's naught in life but what we're ready to take for oursilves!" cried Battersleigh. "I'll talk no fable of other fishes in the say for ye. Take what ye want, if ye'll have it. An' hearken; there's more to Ned Franklin than bein' a land agent and a petty lawyer. It's not for ye yersilf to sit an' mope, neyther to spind your life diggin' in a musty desk. Ye're to grow, man; ye're to grow! Do ye not feel the day an' hour? Man, did ye nivver think o' Destiny?"

"I've never been able not to believe in it," said Franklin. "To some men all things come easily, while others get on only by the hardest knocks; and some go always close to success, but die just short of the parapet. I haven't myself classified, just yet."

"Ye have your dreams, boy?"

"Yes; I have my dreams."

"All colours are alike," said Battersleigh. "Now, whut is my young Injun savage doin', when he goes out alone, on top of some high hill, an' builds him a little fire, an' talks with his familiar spirits, which he calls here his 'drame'? Isn't he searchin' an' feelin' o' himsilf, same as the haythin in far-away Ingy? Git your nose up, Ned, or you'll be unwittin' classifyin' yersilf with the great slave class which we lift behind not long ago, but which is follyin' us hard and far. Git your nose up, fer it's Batty has been thinkin' ye've Destiny inside your skin. Listen to Batty the Fool, and search your

sowl. I'll tell ye this: I've the feelin' that I'll be hearin' of ye, in all the marrches o' the worrld. Don't disappoint me, Ned, for the ould man has belaved in ye—more than ye've belaved in yersilf. As to the gyurl—bah!—go marry her some day, av ye've nothin' more importhant on yer hands.

"But, me dear boy, spakin' o' importhant things, I ralely must be goin' now. I've certain importhant preparations that are essintial before I get dhrunk this avenin'—"

"O Battersleigh, do be sensible," said Franklin, "and do give up this talk of getting drunk. Come over here this evening and talk with me. It's much better than getting drunk."

Battersleigh's hand was on the door knob. "The consate o' you!" he said. "Thru, ye're a fine boy, Ned, an' I know of no conversayshun more entertainin' than yer own, but I tale that if I didn't get dhrunk like a gintleman this avenin', I'd be violatin' me juty to me own conscience, as well as settin' at naught the thraditions o' the Rile Irish. An' so, if ye'll just excuse me, I'll say good-bye till, say, to-morrow noon."

CHAPTER XXXII

THE CALLING

And now there still fared on the swift, sane empire of the West. The rapid changes, the strivings, the accomplishments, the pretensions and the failures of the new town blended in the product of human progress. Each man fell into his place in the community as though appointed thereto, and the eyes of all were set forward. There was no retrospection, there were no imaginings, no fears, no disbeliefs. The people were as ants, busy building their hill, underletting it with galleries, furnishing it with chambers, storing it with riches, providing it with defences; yet no individual ant looked beyond his own antennae, or dreamed that there might be significance in the tiny footprints which he left. There were no philosophers to tell these busy actors that they were puppets in a great game, ants in a giant hill. They lived, loved, and multiplied; which, after all, is Life.

To Franklin the days and months and years went by unpunctuated, his life settling gradually into the routine of an unhappy calm. He neglected too much the social side of life, and rather held to his old friends than busied himself with the search for new. Battersleigh was gone, swiftly and mysteriously gone, though with the promise to return and with the reiteration of his advice and his well wishes. Curly was gone—gone up the Trail into a far and mysterious country, though he, too, promised to remember Ellisville, and had given hostage for his promise. His friends of

the Halfway House were gone, for though he heard of them and knew them to be prosperous, he felt himself, by reason of Mary Ellen's decision, in propriety practically withdrawn from their personal acquaintance. Of the kaleidoscope of the oncoming civilization his eye caught but little. There had again fallen upon his life a season of blight, or self-distrust, of dull dissatisfaction with the world and with living. As in earlier years he had felt unrest and known the lack of settled purpose, so now, after having seen all things apparently set in order before him for progressive accomplishment, he had fallen back once more into that state of disbelief, of that hopeless and desperate awakening properly reserved only for old age, when the individual realizes that what he does is of itself of no consequence, and that what he is or is not stops no single star an atom in its flight, no blade of grass an iota in its growing.

Paralysis of the energies too often follows upon such self-revelations; and indeed it seemed to Franklin that he had suffered some deep and deadly benumbing of his faculties. He could not welcome the new days. His memory was set rather on the old days, so recent and in some way so dear. He loved the forgotten thunder of the buffalo, but in his heart there rose no exultation at the rumble of the wheels. Still conscientious, he plodded, nor did he cease to aspire even in his own restricted avocations. Because of his level common sense, which is the main ingredient in the success-portion, he went easily into the first councils of the community. Joylessly painstaking and exact, he still prospered in what simple practice of the law there offered, acting as counsel for the railway, defending a rare criminal case, collecting accounts, carrying on title contests and "adverse" suits in the many cases before the Register of the Land Office, and performing all the simple humdrum of the busy country lawyer. He made more and more money, since at that time one of his position and opportunities could hardly avoid doing so. His place in the business world was assured. He had no occasion for concern.

For most men this would have been prosperity sufficient; yet never did Edward Franklin lie down with the long breath of the man content; and ever in his dreams there came the vague beckoning of a hand still half unseen. Once this disturbing summons to his life was merely disquieting and unformulated, but gradually now it assumed a shape more urgent and more definite. Haunting him with the sense of the unfulfilled, the face of Mary Ellen was ever in the shadow; of Mary Ellen, who had sent him away forever; of Mary Ellen, who was wasting her life on a prairie ranch, with naught to inspire and none to witness the flowering of her soul. That this rare plant should thus fail and wither seemed to him a crime quite outside his own personal concern. This unreal Mary Ellen, this daily phantom, which hung faces on bare walls and put words between the lines of law books, seemed to have some message for him. Yet had he not had his final message from the actual Mary Ellen? And, after all, did anything really matter any more?

So much for the half-morbid frame of mind due for the most part to the reflex of a body made sick by an irregular and irrational life. This much, too, Franklin could have established of his own philosophy. Yet this was not all, nor was the total so easily to be explained away.

Steadily, and with an insistence somewhat horrible, there came to Franklin's mind a feeling that this career which he saw before him would not always serve to satisfy him. Losing no touch of the democratic loyalty to his fellow-men, he none the less clearly saw himself in certain ways becoming inexorably separated from his average fellow-man. The executive instinct was still as strong within him, but he felt it more creative, and he longed for finer material than the seamy side of man's petty strifes with man, made possible under those artificial laws which marked man's compromise with Nature. He found no solace and no science in the study of the great or the small crimes of an artificial system which did not touch

individual humanity, and which was careless of humanity's joys or sorrowings. Longing for the satisfying, for the noble things, he found himself irresistibly facing toward the past, and irresistibly convinced that in that past, as in the swiftly marching present, there might be some lesson, not ignoble and not uncomfortable. Horrified that he could not rest in the way that he had chosen, distracted at these intangible desires, he doubted at times his perfect sanity; for though it seemed there was within him the impulse to teach and to create, he could not say to himself what or how was to be the form, whether mental or material, of the thing created, the thing typified, the thing which he would teach.

Of such travail, of such mould, have come great architects, great engineers, great writers, musicians, painters, indeed great men of affairs, beings who stand by the head and shoulders above other men as leaders. The nature of such men is not always at the first assured, the imprimitive seal not always surely set on, so that of one thus tormented of his inner self it may be mere accident which shall determine whether it is to be great artist or great artisan that is to be born again.

To Franklin, dreaming as he woke or slept, there sometimes waved a hand, there sometimes sounded a Voice, as that which of old summoned the prophet in the watches of the night. Neither in his waking nor his sleeping hours could he call this spirit into materialization, however much he longed to wrestle with it finally. It remained only to haunt him vaguely, to join with the shade of Mary Ellen the Cruel to set misery on a life which he had thought happily assured.

CHAPTER XXXIII

THE GREAT COLD

The land lay trusting and defenceless under a cynical sky, which was unthreatening but mocking. Dotted a stretch of country thirty miles on either side of the railway, and extending as far to the east and west along its line, there were scattered hundreds of homes, though often these were separated one from the other by many miles of open prairie. Fences and fields appeared, and low stacks of hay and straw here and there stood up above the vast gray surface of the old buffalo and cattle range. Some of these houses were board "shacks," while others were of sods, and yet others, these among the earliest established on the plains, the useful dugout, half above and half beneath the ground. Yet each building, squat or tall, small or less small, was none the less a home. Most of them contained families. Men had brought hither their wives and children—little children, sometimes babes, tender, needful of warmth and care. For these stood guardian the gaunt coal chutes of the town, with the demands of a population of twenty-five hundred, to say nothing of the settlers round about, a hundred tons for a thousand families, scattered, dwelling out along breaks and *coulees*, and on worn hillsides, and at the ends of long, faint, wandering trails, which the first whirl of snow would softly and cruelly wipe away.

Yet there was no snow. There had been none the winter before. The trappers and skin-hunters said that the winter was rarely severe. The railroad men had ranged west all the winter, throats exposed and coats left at the wagons. It was a mild country, a gentle, tender country. In this laughing sky who could see any cynicism? The wind was cold, and the wild fowl flew clamouring south from the sheeted pools, but the great hares did not change their colour, and the grouse stayed brown, and the prairie dogs barked joyously. No harm could come to any one. The women and children were safe. Besides, was there not coal at the town? Quite outside of this, might not one burn coarse grass if necessary, or stalks of corn, or even ears of corn? No tree showed in scores of miles, and often from smoke to tiny smoke it was farther than one could see, even in the clear blue mocking morn; yet the little houses were low and warm, and each had its makeshift for fuel, and in each the husband ate, and the wife sewed, and the babes wept and prattled as they have in generations past; and none looked on the sky to call it treacherous.

One morning the sun rose with a swift bound into a cloudless field. The air was mild, dead, absolutely silent and motionless. The wires along the railway alone sang loudly, as though in warning—a warning unfounded and without apparent cause. Yet the sighing in the short grass was gone. In the still air the smokes of the town rose directly upright; and answering to them faint, thin spires rose here and there far out over the prairies, all straight, unswerving, ominous, terrible. There was a great hush, a calm, a pause upon all things. The sky was blue and cloudless, but at last it could not conceal the mockery it bore upon its face, so that when men looked at it and listened to the singing of the wires they stopped, and without conscious plan hurried on, silent, to the nearest company.

Somewhere, high up in the air, unheralded, invisible, there were passing some thin inarticulate sounds, far above the tops of the tallest smoke spires,

as though some Titan blew a far jest across the continent to another near the sea, who answered with a gusty laugh, sardonic, grim, foreknowing. Every horse free on the range came into the *coulees* that morning, and those which were fenced in ran up and down excitedly. Men ate and smoked, and women darned, and babes played. In a thousand homes there was content with this new land, so wild at one time, but now so quickly tamed, so calm, so gentle, so thoroughly subdued.

The sun came on, valiantly stripped bare, knowing what was to be. Still louder rose the requiem of the wire. The sky smiled on. There was no token to strike with alarm these human beings, their faculties dulled by a thousand years of differentiation. "Peace and goodwill," said men; for now it was coming on to Christmastide. But the wire was seeking to betray the secret of the sky, which was resolved to carry war, to sweep these beings from the old range that once was tenantless!

To the north there appeared a long, black cloud, hanging low as the trail of some far-off locomotive, new upon the land. Even the old hunters might have called it but the loom of the line of the distant sand hills upon the stream. But all at once the cloud sprang up, unfurling tattered battle flags, and hurrying to meet the sun upon the zenith battle ground. Then the old hunters and trappers saw what was betokened. A man came running, laughing, showing his breath white on the air. The agent at the depot called sharply to the cub to shut the door. Then he arose and looked out, and hurried to his sender to wire east along the road for coal, train loads of coal, all the coal that could be hurried on! This man knew the freight of the country, in and out, and he had once trapped for a living along these same hills and plains. He knew what was the meaning of the cloud, and the tall pointed spires of smoke, and the hurrying naked sun.

The cloud swept up and onward, and all persons closed their doors, and said that Christmas would be cold. In a quarter of an hour they saw their chronology late by a day. In half an hour they noted a gray mist drive across the sky. There was a faint wavering and spreading and deflection at the top of the tallest spire of smoke. Somewhere, high above, there passed a swarm of vast humming bees.

Out in the country, miles away from town, a baby played in the clear air, resting its plump knees in the shallow layer of chips where once a pile of wood had been. It turned its face up toward the sky, and something soft and white and cool dropped down upon its cheek.

In mid-sky met the sun and the cloud, and the sun was vanquished, and all the world went gray. Then, with a shriek and a whirl of a raw and icy air which dropped, dropped down, colder and colder and still more cold, all the world went white. This snow came not down from the sky, but slantwise across the land, parallel with the earth, coming from the open side of the coldest nether hell hidden in the mysterious North. Over it sang the air spirits. Above, somewhere, there was perhaps a sky grieving at its perfidy. Across the world the Titans laughed and howled. All the elements were over-ridden by a voice which said, "I shall have back my own!" For presently the old Plains were back again, and over them rushed the wild winds in their favourite ancient game.

Once the winds pelted the slant snow through the interstices of the grasses upon the furry back of the cowering coyote. Now they found a new sport in driving the icy powder through the cracks of the loose board shanty, upon the stripped back of the mother huddling her sobbing children against the empty, impotent stove, perhaps wrapping her young in the worn and whitened robe of the buffalo taken years ago. For it was only the buffalo, though now departed, which held the frontier for America in this

unprepared season, the Christmas of the Great Cold. The robes saved many of the children, and now and then a mother also.

The men who had no fuel did as their natures bid, some dying at the ice-bound stove, and others in the open on their way for fuel; for this great storm, known sometimes as the Double Norther, had this deadly aspect, that at the end of the first day it cleared, the sky offering treacherous flag of truce, afterward to slay those who came forth and were entrapped. In that vast, seething sea of slantwise icy nodules not the oldest plainsman could hold notion of the compass. Many men died far away from home, some with their horses, and others far apart from where the horses stood, the latter also in many cases frozen stiff. Mishap passed by but few of the remoter homes found unprepared with fuel, and Christmas day, deceitfully fair, dawned on many homes that were to be fatherless, motherless, or robbed of a first-born. Thus it was that from this, the hardest and most self-reliant population ever known on earth, there rose the heartbroken cry for comfort and for help, the frontier for the first time begging aid to hold the skirmish line. Indeed, back from this skirmish line there came many broken groups, men who had no families, or families that had no longer any men. It was because of this new game the winds had found upon the plains, and because of the deceitful double storm.

Men came into Ellisville white with the ice driven into their buffalo coats and hair and beards, their mouths mumbling, their feet stumbling and heavy. They begged for coal, and the agent gave to each, while he could, what one might carry in a cloth, men standing over the supply with rifles to see that fairness was enforced. After obtaining such pitiful store, men started back home again, often besought or ordered not to leave the town, but eager to die so much the closer to their families.

After the storm had broken, little relief parties started out, provided with section maps and lists of names from the Land Office. These sometimes were but counting parties. The wolves had new feed that winter, and for years remembered it, coming closer about the settlements, sometimes following the children as they went to school. The babe that touched with laughter the cool, soft thing that fell upon its cheek lay finally white and silent beneath a coverlid of white, and upon the floor lay others also shrouded; and up to the flapping door led tracks which the rescuing parties saw.

Sam Poston, the driver of the regular mail stage to the south, knew more of the condition of the settlers in that part of the country than any other man in Ellisville, and he gave an estimate which was alarming. There was no regular supply of fuel, he stated, and it was certain that the storm had found scores of families utterly unprepared. Of what that signifies, those who have lived only in the routine of old communities can have no idea whatever. For the most of us, when we experience cold, the remedy is to turn a valve, to press a knob, to ask forthwith for fuel. But if fuel be twenty miles away, in a sea of shifting ice and bitter cold, if it be somewhere where no man may reach it alive—what then? First, we burn the fence, if we can find it. Then we burn all loose things. We burn the chairs, the table, the bed, the doors—Then we rebel; and then we dream.

Sam Poston came into the office where Franklin sat on Christmas eve, listening to the clinking rattle of the hard snow on the pane. Sam was white from head to foot. His face was anxious, his habitual uncertainty and diffidence were gone.

"Cap," said he, with no prelude, "the whole country below'll be froze out. This blizzard's awful."

"I know it," said Franklin. "We must get out with help soon as we can. How far down do you think the danger line begins?"

"Well, up to three or four miles out it's thicker settled, an' most o' the folks could git into town. As fur out as thirty mile to the south, they might git a little timber yet, over on the Smoky. The worst strip is fifteen to twenty-five mile below. Folks in there is sort o' betwixt an' between, an' if they're short o' fuel to-day they'll have to burn anything they can, that's all, fer a feller wouldn't last out in this storm very long if he got lost. It's the worst I ever see in the West."

Franklin felt a tightening at his heart. "About fifteen to twenty-five miles?" he said. Sam nodded. Both were silent.

"Look here, Cap," said the driver presently, "you've allus told me not to say nothin' 'bout the folks down to the Halfway House, an' I hain't said a thing. I 'low you got jarred down there some. I know how that is. All the same, I reckon maybe you sorter have a leanin' that way still. You may be worried some—"

"I am!" cried Franklin. "Tell me, how were they prepared—would they have enough to last them through?"

"None too much," said Sam. "The old man was tellin' me not long back that he'd have to come in 'fore long to lay him in his coal for the winter. O' course, they had the corrals, an' some boards, an' stuff like that layin' 'round. They had the steps to the dugout, an' some little wood about the win'mill, though they couldn't hardly git at the tank—"

Franklin groaned as he listened to this calm inventory of resources in a case so desperate. He sank into a chair, his face between his hands. Then he sprang up. "We must go!" he cried.

"I know it," said Sam simply.

"Get ready," exclaimed Franklin, reaching for his coat.

"What do you mean, Cap—now?"

"Yes, to-night—at once."

"You d——d fool!" said Sam.

"You coward!" cried Franklin. "What! Are you afraid to go out when people are freezing—when—"

Sam rose to his feet, his slow features working. "That ain't right, Cap," said he. "I know I'm scared to do some things, but I—I don't believe I'm no coward. I ain't afraid to go down there, but I won't go to-night, ner let you go, fer it's the same as death to start now. We couldn't maybe make it in the daytime, but I'm willin' to try it then. Don't you call no coward to me. It ain't right."

Franklin again cast himself into his chair, his hand and arm smiting on the table. "I beg your pardon, Sam," said he presently. "I know you're not a coward. We'll start together in the morning. But it's killing me to wait. Good God! they may be freezing now, while we're here, warm and safe!"

"That's so," said Sam sententiously. "We can't help it. We all got to go some day." His words drove Franklin again to his feet, and he walked up and down, his face gone pinched and old.

"I 'low we won't sleep much to-night, Cap," said Sam quietly. "Come on; let's go git some coffee, an' see if anybody here in town is needin' help. We'll pull out soon as we kin see in the mornin'."

They went out into the cold, staggering as the icy sheet drove full against them. Ellisville was blotted out. There was no street, but only a howling lane of white. Not half a dozen lights were visible. The tank at the railway, the big hotel, the station-house, were gone—wiped quite away. The Plains were back again!

"Don't git off the main street," gasped Sam as they turned their faces down wind to catch their breath. "Touch the houses all along. Lord! ain't it cold!"

Ellisville was safe, or all of it that they could stumblingly discover. The town did not sleep. People sat up, greeting joyously any who came to them, eating, drinking, shivering in a cold whose edge could not be turned. It was an age till morning—until that morning of deceit.

At dawn the wind lulled. The clouds swept by and the sun shone for an hour over a vast landscape buried under white. Sam was ready to start, having worked half the night making runners for a sled at which his wild team snorted in the terror of unacquaintedness. The sled box was piled full of robes and coal and food and liquor—all things that seemed needful and which could hurriedly be secured. The breath of the horses was white steam, and ice hung on the faces of the men before they had cleared the town and swung out into the reaches of the open prairies which lay cold and empty all about them. They counted the smokes—Peterson, Johnson, Clark, McGill, Townsend, one after another; and where they saw smoke they rejoiced, and where they saw none they stopped. Often it was but to nail fast the door.

With perfect horsemanship Sam drove his team rapidly on to the south, five miles, ten miles, fifteen, the horses now warming up, but still restless and nervous, even on the way so familiar to them from their frequent journeyings. The steam of their breath enveloped the travellers in a wide,

white cloud. The rude runners crushed into and over the packed drifts, or along the sandy grime where the wind had swept the earth bare of snow. In less than an hour they would see the Halfway House. They would know whether or not there was smoke.

But in less than two hours on that morning of deceit the sun was lost again. The winds piped up, the cold continued, and again there came the blinding snow, wrapping all things in its dancing, dizzy mist.

In spite of the falling of the storm, Franklin and his companion pushed on, trusting to the instinct of the plains horses, which should lead them over a trail that they had travelled so often before. Soon the robes and coats were driven full of snow; the horses were anxious, restless, and excited. But always the runners creaked on, and always the two felt sure they were nearing the place they sought. Exposed so long in this bitter air, they were cut through with the chill, in spite of all the clothing they could wear, for the norther of the plains has quality of its own to make its victims helpless. The presence of the storm was awful, colossal, terrifying. Sometimes they were confused, seeing dark, looming bulks in the vague air, though a moment later they noted it to be but the packing of the drift in the atmosphere. Sometimes they were gloomy, not hoping for escape, though still the horses went gallantly on, driven for the most part down a wind which they never would have faced.

"The wind's just on my right cheek," said Sam, putting up a mitten.
"But where's it gone?"

"You're frozen, man!" cried Franklin. "Pull up, and let me rub your face."

"No, no, we can't stop," said Sam, catching up some snow and rubbing his white cheek as he drove.

"Keep the wind on your right cheek—we're over the Sand Run now, I think, and on the long ridge, back of the White Woman. It can't be over two mile more.—Git along, boys. Whoa! What's the matter there?"

The horses had stopped, plunging at something which they could not pass. "Good God!" cried Franklin, "whose fence is that? Are we at Buford's?"

"No," said Sam, "this must be at old man Hancock's. He fenced across the old road, and we had to make a jog around his d——d broom-corn field. It's only a couple o' miles now to Buford's."

"Shall I tear down the fence?" asked Franklin.

"No, it's no use; it'd only let us in his field, an' maybe we couldn't hit the trail on the fur side. We got to follow the fence a way. May God everlastingly damn any man that'll fence up the free range!—Whoa, Jack! Whoa, Bill! Git out o' here! Git up!"

They tried to parallel the fence, but the horses edged away from the wind continually, so that it was difficult to keep eye upon the infrequent posts of the meagre, straggling fence that this man had put upon the "public lands."

"Hold on, Sam!" cried Franklin. "Let me out."

"That's right, Cap," said Sam. "Git out an' go on ahead a way, then holler to me, so'st I kin come up to you. When we git around the corner we'll be all right."

But when they got around the corner they were not all right. At such times the mind of man is thrown off its balance, so that it does strange and irregular things. Both these men had agreed a moment ago that the wind should be on the right; now they disagreed, one thinking that Hancock's

house was to the left, the other to the right, their ideas as to the direction of the Buford ranch being equally at variance. The horses decided it, breaking once again down wind, and striking a low-headed, sullen trot, as though they would out-march the storm. And so the two argued, and so they rode, until at last there was a lurch and a crash, and they found themselves in rough going, the sled half overturned, with no fence, no house, no landmark of any sort visible, and the snow drifting thicker than before. They sprang out and righted the sled, but the horses doggedly pulled on, plunging down and down; and they followed, clinging to reins and sled as best they might.

Either accident or the instinct of the animals had in some way taken them into rough, broken country, where they would find some shelter from the bitter level blast. They were soon at the bottom of a flat and narrow valley, and above them the wind roared and drove ever on a white blanket that sought to cover them in and under.

"We've lost the trail, but we done the best we could," said Sam doggedly, going to the heads of the horses, which looked questioningly back at him, their heads drooping, their breath freezing upon their coats in spiculae of white.

"Wait!" cried Franklin. "I know this hole! I've been here before. The team's come here for shelter—"

"Oh, it's the White Woman breaks—why, sure!" cried Sam in return.

"Yes, that's where it is. We're less than half a mile from the house. Wait, now, and let me think. I've got to figure this out a while."

"It's off there," said Sam, pointing across the *coulee*; "but we can't get there."

"Yes, we can, old man; yes, we can!" insisted Franklin. "I'll tell you. Let me think. Good God! why can't I think? Yes—see here, you go down the bottom of this gully to the mouth of the *coulee*, and then we turn to the left—no, it's to the right—and you bear up along the side of the draw till you get to the ridge, and then the house is right in front of you. Listen, now! The wind's north-west, and the house is west of the head of the *coulee*; so the mouth is east of us, and that brings the wind on the left cheek at the mouth of the *coulee*, and it comes more and more on the right cheek as we turn up the ridge; and it's on the front half of the right cheek when we face the house, I'm sure that's right—wait, I'll mark it out here in the snow. God! how cold it is! It must be right. Come on; come! We must try it, anyway."

"We may hit the house, Cap," said Sam calmly, "but if we miss it we'll go God knows where! Anyhow, I'm with you, an' if we don't turn up, we can't help it, an' we done our best."

"Come," cried Franklin once more. "Let's get to the mouth of the *coulee*. I know this place perfectly."

And so, advancing and calling, and waiting while Sam fought the stubborn horses with lash and rein out of the shelter which they coveted. Franklin led out of the flat *coulee*, into the wider draw, and edged up and up to the right, agonizedly repeating to himself, over and over again, the instructions he had laid down, and which the dizzy whirl of the snow mingled ever confusedly in his mind. At last they had the full gale again in their faces as they reached the level of the prairies, and cast loose for what they thought was west, fearfully, tremblingly, the voyage a quarter of a mile, the danger infinitely great; for beyond lay only the cruel plains and the bitter storm—this double norther of a woeful Christmastide.

Once again Providence aided them, by agency of brute instinct. One of the horses threw up its head and neighed, and then both pressed forward

eagerly. The low moan of penned cattle came down the wind. They crashed into a fence of lath. They passed its end—a broken, rattling end, that trailed and swept back and forth in the wind.

"It's the chicken corral," cried Sam, "an' it's down! They've been burnin'—"

"Go on! go on—hurry!" shouted Franklin, bending down his head so that the gale might not quite rob him of his breath, and Sam urged on the now willing horses.

They came to the sod barn, and here they left the team that had saved them, not pausing to take them from the harness. They crept to the low and white-banked wall in which showed two windows, glazed with frost. They could not see the chimney plainly, but it carried no smell of smoke. The stairway leading down to the door of the dugout was missing, the excavation which held it was drifted full of snow, and the snow bore no track of human foot. All was white and silent. It might have been a vault far in the frozen northern sea.

Franklin burst open the door, and they both went in, half pausing. There was that which might well give them pause. The icy breath of the outer air was also here. Heaps and tongues of snow lay across the floor. White ashes lay at the doors of both the stoves. The table was gone, the chairs were gone. The interior was nearly denuded, so that the abode lay like an abandoned house, drifted half full of dry, fine powdered snow. And even this snow upon the floors had no tracks upon its surface. There was no sign of life.

Awed, appalled, the two men stood, white and huge, in the middle of the abandoned room, listening for that which they scarce expected to hear. Yet from one of the side rooms they caught a moan, a call, a supplication. Then

from a door came a tall and white-faced figure with staring eyes, which held out its arms to the taller of the snow-shrouded forms and said: "Uncle, is it you? Have you come back? We were so afraid!" From the room behind this figure came a voice sobbing, shouting, blessing the name of the Lord. So they knew that two were saved, and one was missing.

They pushed into the remaining room. "Auntie went away," said the tall and white-faced figure, shuddering and shivering. "She went away into her room. We could not find the fence any more. Uncle, is it you? Come!" So they came to the bedside and saw Mrs. Buford lying covered with all her own clothing and much of that of Mary Ellen and Aunt Lucy, but with no robe; for the buffalo robes had all gone with the wagon, as was right, though unavailing. Under this covering, heaped up, though insufficient, lay Mrs. Buford, her face white and still and marble-cold. They found her with the picture of her husband clasped upon her breast.

"She went away!" sobbed Mary Ellen, leaning her head upon Franklin's shoulder and still under the hallucination of the fright and strain and suffering. She seemed scarce to understand that which lay before them, but continued to wander, babbling, shivering, as her arms lay on Franklin's shoulder. "We could not keep her warm," she said. "It has been very, very cold!"

CHAPTER XXXIV

THE ARTFULNESS OF SAM

In the early days of Ellisville society was alike in costume and custom, and as unsuspicious as it would have been intolerant of any idea of rank or class. A "beef" was a beef, and worth eight dollars. A man was a man, worth as much as his neighbour, and no more. Each man mended his own saddle. Thus society remained until there ensued that natural division which has been earlier mentioned, by which there became established two groups or classes—the dwellers in the Cottage and the dwellers in the Stone Hotel. This was at first a matter of choice, and carried no idea of rank or class distinction,

For a brief time there might have been found support for that ideally inaccurate statement of our Constitution which holds that all men are born free and equal, entitled to life, liberty, and the pursuit of happiness. With all our might we belie this clause, though in the time of Ellisville it might have had some footing. That day has long since passed.

The men of the Cottage Hotel continued big, brown, bespurred and behatted, yet it might have been observed that the tenantry of the Stone Hotel became gradually less sunburned and more immaculate. Mustaches swept not so sunburned, blonde and wide, but became in the average darker and more trim. At the door of the dining-room there were hat racks, and in

time they held "hard hats." The stamping of the social die had begun its work. Indeed, after a time there came to be in the great dining-room of the Stone Hotel little groups bounded by unseen but impassable lines. The bankers and the loan agents sat at the head of the hall, and to them drifted naturally the ministers, ever in search of pillars. Lawyers and doctors sat adjacent thereunto, and merchants not far away. There was yet no shrug at the artisan, yet the invisible hand gradually swept him apart. Across the great gulfs, on whose shores sat the dining-room tables, men and women looked and talked, but trod not as they came in to meat, each person knowing well his place. The day of the commercial traveller was not yet, and for these there was no special table, they being for the most part assigned to the Red Belt; there being a certain portion of the hall where the tablecloths were checkered red and white. It was not good to be in the Red Belt.

Sam, the owner of the livery barn, had one table in the corner, where he invariably sat. His mode of entering the dining-room varied not with the passing of the years. Appearing at the door, he cast a frightened look at the occupants who had preceded him, and in whose faces he could imagine nothing but critical censure of his own person. Becoming aware of his hat, he made a dive and hung it up. Then he trod timidly through the door, with a certain side-draught in his step, yet withal an acceleration of speed which presently brought him almost at a run to his corner of refuge, where he dropped, red and with a gulp. Often he mopped his brow with the unwonted napkin, but discovery in this act by the stern eye of Nora, the head waitress, caused him much agony and a sudden search for a handkerchief. When Nora stood at his chair, and repeated to him frostily the menu of the day, all the world went round to Sam, and he gained no idea of what was offered him. With much effort at nonchalance, he would again wipe his face, take up his fork for twiddling, and say always the same thing.

"Oh, I ain't very hungry; jes' bring me a little pie an' beef an' coffee." And Nora, scornfully ignoring all this, then departed and brought him many things, setting them in array about his plate, and enabling him to eat as really he wished. Whether Sam knew that Nora would do this is a question which must remain unanswered, but it is certain that he never changed the form of his own "order."

Sam was a citizen. He had grown up with the town. He was, so to speak, one of the charter members of Ellisville, and thereby entitled to consideration. Moreover, his business was one of the most lucrative in the community, and he was beyond the clutching shallows and upon the easy flood of prosperity. No man could say that Sam owed him a dollar, nor could any man charge against him any act of perfidy, except such as might now and then be connected with the letting of a "right gentle" horse. There was no reason why Sam might not look any man in the face, or any woman. But this latter Sam had never done. His admiration for Nora bade fair to remain a secret known of all but the one most interested. Daily Sam sat at the table and listened to Nora's icy tones. He caught his breath if the glitter of her glasses faced him, and went in a fever as he saw her sail across the floor. Daily he arose with the stern resolve that before the sun had set he would have told this woman of that which so oppressed him; yet each day, after he had dined, he stole furtively away to the hat rack and slouched across the street to his barn, gazing down at his feet with abasement on his soul. "I ain't afeard o' any hoss that ever stood up," said he to himself, "but I can't say a word to that Nory girl, no matter how I try!"

It was one of Sam's theories that some day he would go in late to dinner, when there was no one else left in the great hall. He would ask Nora to come to serve him. Then he would grasp her hand, there as she stood by him, and he would pour forth to her the story of his long unuttered love. And then—but beyond this Sam could not think. And never yet had he

dared go into the dining hall and sit alone, though it was openly rumoured that such had been the ruse of Curly with the "littlest waiter girl," before Curly had gone north on the Wyoming trail.

Accident sometimes accomplishes that which design fails to compass. One day Sam was detained with a customer much later than his usual dinner hour. Indeed, Sam had not been to dinner at the hotel for many days, a fact which the district physician at the railway might have explained. "Of course," said Sam, "I done the drivin', an' maybe that was why I got froze some more than Cap Franklin did, when we went down south that day." Frozen he had been, so that two of his fingers were now gone at the second joint, a part of his right ear was trimmed of unnecessary tissue, and his right cheek remained red and seared with the blister of the cold endured on that drive over the desolated land. It was a crippled and still more timid Sam who, unwittingly very late, halted that day at the door of the dining-room and gazed within. At the door there came over him a wave of recollection. It seemed to him all at once that he was, by reason of his afflictions, set still further without the pale of any possible regard. He dodged to his table and sat down without a look at any of his neighbours. To him it seemed that Nora regarded him with yet more visible scornfulness. Could he have sunk beneath the board he would have done so. Naught but hunger made him bold, for he had lived long at his barn on sardines, cheese, and crackers.

One by one the guests at the tables rose and left the room, and one by one the waiter girls followed them. The dining hour was nearly over. The girls would go upstairs for a brief season of rest before changing their checked gingham mid-day uniform for the black gown and white apron which constituted the regalia for the evening meal, known, of course, as "supper." Sam, absorbed in his own misery and his own hunger, awoke with a start to find the great hall apparently quite deserted.

It is the curious faculty of some men (whereby scientists refer us to the ape) that they are able at will to work back and forth the scalp upon the skull. Yet other and perhaps fewer men retain the ability to work either or both ears, moving them back and forth voluntarily. It was Sam's solitary accomplishment that he could thus move his ears. Only by this was he set apart and superior to other beings. You shall find of very many men but few able to do this thing. Moreover, if you be curious in philosophy, it shall come to be fixed in your memory that woman is disposed to love not one who is like to many, but to choose rather one who is distinct, superior, or more fit than his fellow-men; it being ever the intent of Nature that the most excellent shall attract, and thus survive.

As Sam sat alone at the table, his spoon rattling loud upon his plate in evidence of his mental disturbance, he absent-mindedly began to work back and forth his ears, perhaps solicitous to learn if his accomplishment had been impaired by the mishap which had caused him other loss. As he did this, he was intensely startled to hear behind him a burst of laughter, albeit laughter quickly smothered. He turned to see Nora, his idol, his adored, standing back of him, where she had slipped in with professional quiet and stood with professional etiquette, waiting for his departure, so that she might hale forth the dishes he had used. At this apparition, at this awful thought—for never in the history of man had Nora, the head waitress, been known to smile—the heart of Sam stopped forthwith in his bosom.

"I-I-I b-b-beg your—I-I d-didn't know you was there," he stammered in abject perturbation.

Nora sniffed. "I should think you might of knowed it," said she.

"I d-d-don't b-b-blame you fer laughin', M-M-Miss M-M-M-Markley," said
Sam miserably.

"What at?" demanded Nora fiercely.

"At m-m-my air. I know it's funny, cut off, that way. But I c-c-can't help it. It's gone."

"I didn't," exclaimed Nora hotly, her face flushing. "Your ears is all right. I was laughin' at seein' you move 'em. I beg your pardon. I didn't know anybody could, that way, you know. I'm—I'm sorry."

A great light broke over Sam. A vast dam crashed free. His soul rushed forth in one mad wave.

"M-M-Miss M-M-Markley—Miss—Nory!" he exclaimed, whirling about and facing her, "d-d-d-do y-y-you l-l-like to s-s-see me work my airs?"

"Yes, it's funny," admitted Nora, on the point of another outbreak in spite of herself.

This amiability was an undreamed thing, yet Sam saw his advantage. He squared himself about, and, looking solemnly and earnestly in Nora's face, he pulled first his right and then his left ear forward until the members stood nearly at right angles to his head.

After all, the ludicrous is but the unexpected. Many laugh who see an old woman fall upon the slippery pavement. This new spectacle was the absolutely undreamed-of to Nora, who was no scientist. Her laughter was irrepressible. In a trice the precedents of years were gone. Nora felt the empire of her dignity slipping away, but none the less could not repress her mirth. And more than this; as she gazed into the honest, blue-eyed face before her she felt a lessening of her desire to retain her icy pedestal, and she struggled the less against her laughter. Indeed, with a sudden fright, she

found her laughter growing nervous. She, the head waitress, was perturbed, alarmed!

Sam followed up his advantage royally. "I can work 'em both to onct!" he exclaimed triumphantly. And did so. "There! They was a boy in our school onct that could work his airs one at a time, but I never did see no one else but me that could work 'em both to onct. Look a-here!" He wagged his ears ecstatically. The reserve of Nora oozed, waned, vanished.

Even, the sternest fibre must at length succumb under prolonged Herculean endeavour. No man may long continuously wag his ears, even alternately; therefore Sam perforce paused in time. Yet by that time—in what manner it occurred no one may know—Nora was seated on the chair next to him at the table. They were alone. Silence fell. Nora's hand moved nervously among the spoons. Upon it dropped the mutilated one of Sam.

"Nory," said he, "I'd—I'd work 'em all my life—fer you!" And to Nora, who turned away her head now, not for the purpose of hiding a smile, this seemed always a perfectly fit and proper declaration of this man's regard.

"I know I'm no good," murmured Sam. "I'm a awful coward. I-I-I've l-l-loved you ever sence the fust time that I seen you, but I was such a coward, I—I couldn't—couldn't—"

"You're not!" cried Nora imperiously.

"Oh, yes, I am," said Sam.

"Look at them," said Nora, almost touching his crippled fingers.
"Don't I know?"

"Oh, that," said Sam, hiding the hand under the droop of the tablecloth.
"Why, that? I got froze some, a-drivin'."

"Yes, and," said Nora accusingly, "how did you get froze? A-drivin' 'way down there, in the storm, after folks. No one else'd go."

"Why, yes. Cap Franklin, he went," said Sam. "That wasn't nothin'. Why, o' course we'd go."

"No one else wouldn't, though."

Sam wondered. "I was always too much a coward to say a word to you," he began. And then an awful doubt sat on his soul.

"Nory," he resumed solemnly, "did ever any feller say anything to you about my—I-I-I—well, my lovin' you?"

"I should say not!" said Nora. "I'd a' slapped his face, mighty quick! What business—"

"Not never a single one?" said Sam, his face brightening.

"No, 'ndeed. Why, I'd like to know? Did you ever ask any one to!"

"I should say not!" said Sam, with the only lie he ever told, and one most admirable. "I should say not!" he repeated with emphasis, and in tones which carried conviction even to himself.

"You'd better not!" said Nora. "I wouldn't of had you if they had!"

Sam started. "What's that, Nory?" he said. "Say that ag'in! Did you say you wouldn't of *had* me—you wouldn't *of*?" His hand found hers again.

"Yes," faltered Nora, seeing herself entrapped by her own speech.

"Then, Nory," said Sam firmly, casting a big arm about her waist, "if you wouldn't *of* had me then, I reckon now you *do*." And neither from this

subtlety nor from the sturdy arm did Nora seek evasion, though she tugged faintly at the fingers which held fast her waist.

"I don't care," she murmured vaguely. "There ain't no coward would of done it!" Whereat Sam, seeing himself a hero, wisely accepted fate and ceased to argue. The big arm tightened manfully, and into his blue eyes came the look of triumph.

"Nory," whispered he loyally, "I'll never work my airs ag'in for any woman in the world but you!"

CHAPTER XXXV

THE HILL OF DREAMS

Franklin found himself swept along with a tide of affairs other than of his own choosing. His grasp on the possibilities of the earliest days of this new civilization had been so full and shrewd that he needed now but to let others build the house whose foundation he had laid. This in effect has been the history of most men who have become wealthy, the sum of one man's efforts being in no great disparity actually superior to those of his fellow-man.

Yet Franklin cared little for mere riches, his ambition ceasing at that point where he might have independence, where he might be himself, and where he might work out unfettered the problems of his own individuality. Pursued by a prosperity which would not be denied, his properties growing up about him, his lands trebling in value within a year and his town property rising steadily in value, he sometimes smiled in very grimness as he thought of what this had once and so recently been, and how far beyond his own care the progress of his fortunes had run. At times he reflected upon this almost with regret, realizing strongly the temptation to plunge irrevocably into the battle of material things. This, he knew, meant a loosing, a letting go, a surrender of his inner and honourable dreams, an evasion of that beckoning hand and a forgetting of that summoning voice which bade him to labour agonizingly yet awhile toward other aims. The

inner man, still exigent, now exhorted, now demanded, and always rebelled. Franklin's face grew older. Not all who looked upon him understood, for to be *hors concours* is to be accursed.

Something was left to be desired in the vigour and energy of Franklin's daily life, once a daily joy in virile effort and exertion. Still too much a man to pity himself, none the less he brooded. His hopes and dreams, he reflected, had once flowered so beautifully, had shown so fair for one brief summer day, and lay now so dead and shrivelled and undone! There was no comfort in these later days.

And then he thought yearningly of the forceful drama of the wild life which had shrunk so rapidly into the humdrum of the uneventful. At times he felt a wild yearning to follow this frontier—to follow till the West sunk into the sea, and even then to follow, until he came to some Fortunate Islands where such glorious days should die no more. He recalled the wild animals and the wild men he had known, and saw again the mocking face of the old wide plains, shifting and evading, even as the spirit of his own life evaded him, answering no questions directly, always beckoning, yet always with finger upon lip, forbidding speech. Almost with exultation he joined in the savage resentment of this land laid under tribute, he joined in the pitiless scorn of the savage winter, he almost justified in his own soul the frosted pane and the hearth made cold, and the settlers' homes forever desolated.

Yet ever a chill struck Franklin's soul as he thought of the lost battle at the Halfway House. There was now grass grown upon the dusty trail that once led up to the low-eaved house. The green and gray of Nature were shrouding busily the two lonely graves of those who had fought the, frontier and been vanquished in that night of terror, when the old West claimed its own. The Halfway House of old was but a memory. It had served its purpose, had fulfilled its mission, and those who once ruled it now were

gone. The wild herds and the wild men came there no longer, and there were neither hosts nor those needing hospitality. And Mary Ellen, the stately visitant of his sleeping or his waking dreams, no longer might be seen in person at the Halfway House. Recreant, defeated, but still refusing aid, she had gone back to her land of flowers. It was Franklin's one comfort that she had never known into whose hands had passed—at a price far beyond their actual worth—the lands of the Halfway House, which had so rapidly built up for her a competency, which had cleared her of poverty, only to re-enforce her in her pride.

Under all the fantastic grimness, all the mysticism, all the discredited and riotous vagaries of his insubordinate soul, Franklin possessed a saving common sense; yet it was mere freakishness which led him to accept a vagrant impulse as the controlling motive at the crucial moment of his life. His nature was not more imaginative than comprehensive.

To a very few men Edward Franklin has admitted that he once dreamed of a hill topped by a little fire, whose smoke dipped and waved and caught him in its fold. In brief, he got into saddle, and journeyed to the Hill of Dreams.

The Hill of Dreams dominated the wide and level landscape over which it had looked out through hundreds of slow, unnoted years. From it once rose the signal smokes of the red men, and here it was that many a sentinel had stood in times long before a white face was ever seen upon the Plains. Here often was erected the praying lodge of the young aspirant for wisdom, who stood there and lifted up his hands, saying: "O sun! O air! O earth! O spirits, hear me pray! Give me aid, give me wisdom, so that I may know!"

Here on the Hill of Dreams, whence the eye might sweep to the fringed sand hills on the south, east to the river many miles away, and north and west almost to the swell of the cold steppes that lead up to the Rocky

Range, the red men had sometimes come to lay their leaders when their day of hunting and of war was over. Thus the place came to have extraordinary and mysterious qualities ascribed to it, on which account, in times gone by, men who were restless, troubled, disturbed, dissatisfied, came thither to fast and pray. Here they builded their little fires, and here, night and day, they besought the sky, the sun, the firmament to send to them each his "dream," his unseen counsellor, which should speak to him out of its more than earthly wisdom.

When the young man was troubled and knew not which course he should pursue, he went up to this hill alone, and so laid hold upon Fate that it fain communed with him. He held up his hands at night to the stars, very far above him, and asked that they should witness him and be merciful, for that he was small and weak, and knew not why things should be as they were. He called upon the spirits of the great dead about him to witness the sincerity of his prayer. He placed offerings to the Dream People. He prayed to the sun as it rose, and besought it of its strength to strengthen him.

Sometimes when a young man had gone up alone from the village to this hill to pray, there were seen at night more forms than one walking upon the summit of the hill, and sometimes voices were heard. Then it was known that the young man had seen his "dream," and that they had held a council.

Very many men had thus prayed upon the summit of the Hill of Dreams in the days gone by. Its top was strewn with offerings. It was a sacred place. Sometimes the stone cairns did not withstand the wolves, but none the less the place was consecrate. Hither they bore the great dead. It was upon the Hill of Dreams that his people buried White Calf, the last great leader of the Plains tribes, who fell in the combat with the not less savage giant who came with the white men to hunt in the country near the Hill of Dreams. Since that time the power of the Plains tribes had waned, and they had

scattered and passed away. The swarming white men—Visigoths, Vandals—had found out this spot for centuries held mysteriously dear to the first peoples of that country. They tore open the graves, scattered the childlike emblems, picked to pieces the little packages of furs and claws, jibing at the "medicine" which in its time had meant so much to the man who had left it there.

The Visigoths and Vandals laughed and smote upon their thighs as they thus destroyed the feeble records of a faith gone by. Yet with what more enduring and with how dissimilar a faith did they replace that at which they mocked? White but parallels red. Our ways depart not widely from the ways of those whom we supplanted, our religion is little more than theirs, our tokens of faith but little different from theirs. We still wonder, we still beseech, we still grope, and continually we implore. On the eminences of our lives the solitary still keep vigil. In the air about us there still are Voices as of old, there still are visions wistfully besought. Now, as then, dwarfed, blighted, wandering humanity prays, lifting up its hands to something above its narrow, circumscribing world. Now, as then, the answer is sometimes given to a few for all. Now, as then, the solemn front of the Hill of Dreams still rises, dominating calmly the wide land, keeping watch always out over the plains for those who are to come, for that which is to be. Warden of destiny, it well might smile at any temples we may build, at any fetiches that we may offer up!

Toward the Hill of Dreams Franklin journeyed, because it had been written. As he travelled over the long miles he scarcely noted the fields, the fences, the flocks and herds now clinging along the path of the iron rails. He crossed the trails of the departed buffalo and of the vanishing cattle, but his mind looked only forward, and he saw these records of the past but dimly. There, on the Hill of Dreams, he knew, there was answer for him if

he sufficiently besought; that answer not yet learned in all the varying days. It seemed sure to him that he should have a sign.[*]

Franklin looked out over a deserted and solitary land as he rode up to the foot of the hill. There were no longer banners of dust where the wild game swept by, nor did the eye catch any line of distant horsemen. It was another day. Yet, as did the candidate of old, he left his horse at the foot of the hill and went up quite alone.

It was afternoon as he sat down. The silence and solitude folded him about, and the sun sank so fitly slow that he hardly knew, and the solemn night swept softly on. . . . Then he built a little fire. . . . In the night, after many hours, he arose and lifted up his hands. . . . At the foot of the hill the pony stopped cropping grass, tossed his head, and looked up intently at the summit.

It was morning. The sun rose calm and strong. The solitary figure upon the hill sat motionless, looking out. There might have passed before him a perspective of the past, the Plains peopled with their former life; the oncoming of the white men from below; the remnant of the passing Latin race, typified in the unguided giant who, savage with savage, fought here near by, one brutal force meeting another and both passing before one higher and yet more strong. To this watcher it seemed that he looked out from the halfway point of the nation, from the halfway house of a nation's irresistible development.

Franklin had taken with him a small canteen of water, but bethinking himself that as of old the young man beseeching his dream neither ate nor drank until he had his desire, he poured out the water at his side as he sat in the dark. The place was covered with small objects, bits of strewn shells

and beads and torn "medicine bundles"—pieces of things once held dear in earlier minds. He felt his hand fall by accident upon some small object which had been wetted by the wasted water. Later, in the crude light of the tiny flame which he had kindled, this lump of earth assumed, to his exalted fancy, the grim features of an Indian chieftain, wide-jawed, be-tufted, with low brow, great mouth, and lock of life's price hanging down the neck. All the fearlessness, the mournfulness, the mysticism of the Indian face was there. Franklin always said that he had worked at this unconsciously, kneading the lump between his fingers, and giving it no thought other than that it felt cooling to his hand and restful to his mind. Yet here, born ultimately of the travail of a higher mind, was a man from another time, in whose gaze sat the prescience of a coming day. The past and the future thus were bridged, as may be done only by Art, the enduring, the uncalendared, the imperishable.

Shall we say that this could not have been? Shall we say that Art may not be born in a land so young? Shall we say that Art may not deal with things uncatalogued, and dare not treat of unaccepted things? Nay, rather let us say that Art, being thought, has this divine right of elective birth. For out of tortures Art had here won the deep *imprimatur*.

Edward Franklin, a light-hearted man, rode homeward happily. The past lay correlated, and for the future there were no longer any wonderings. His dream, devoutly sought, had given peace.

[*]Before his twenty-ninth year Edward Franklin's hair had always been a dark reddish brown. When he returned from a certain journey it was noticed that upon his temple there was a lock of snowy whiteness. Shon-to, a Cheyenne Indian, once noticed this and said to Franklin: "You have slept upon the Dreaming Hill, and a finger has touched you! Among my people there was a man who had a spot of white in his hair, and his father had this

spot, and his son after him. These men were thought to have been touched by the finger of a dream many years ago. These men could see in the dark." The Indian said this confidently.

CHAPTER XXXVI

AT THE GATEWAY

In a certain old Southern city there stands, as there has stood for many generations, and will no doubt endure for many more, a lofty mansion whose architecture dates back to a distant day. Wide and spacious, with lofty stories, with deep wings and many narrow windows, it rests far back among the ancient oaks, a stately memorial of a day when gentlemen demanded privacy and could afford it. From the iron pillars of the great gateway the white front of the house may barely be seen through avenues made by the trunks of the primeval grove. The tall white columns, reaching from gallery floor to roof without pause for the second lofty floor, give dignity to this old-time abode, which comports well with the untrimmed patriarchal oaks. Under these trees there lies, even today, a deep blue-grass turf which never, from the time of Boone till now, has known the touch of ploughshare or the tool of any cultivation.

It was the boast of this old family that it could afford to own a portion of the earth and own it as it came from the hand of Nature. Uncaught by the whirl of things, undisturbed essentially even by the tide of the civil war, this branch of an old Southern family had lived on in station unaffected, though with fortune perhaps impaired as had been those of many Southern families, including all the Beauchamp line.

To this strong haven of refuge had come Mary Ellen Beauchamp from the far-off Western plains, after the death of her other relatives in that venture so ill-starred. The white-haired old widow who now represented the head of the Clayton family—her kin somewhat removed, but none the less her "cousins," after the comprehensive Southern fashion—had taken Mary Ellen to her bosom, upbraiding her for ever dreaming of going into the barbarian West, and listening but little to the plea of the girl that poverty had driven her to the company of those who, like herself, were poor. Now, such had been the turn of the wheel, the girl was nearly as rich in money as her older relative, and able to assume what little of social position there remained in her ambition.

Mary Ellen was now well past twenty-seven, a tall, matured, and somewhat sad-faced woman, upon her brow written something of the sorrows and uncertainties of the homeless woman, as well as the record of a growing self-reliance. If Mary Ellen were happy or not none might say, yet surely she was dutiful and kind; and gradually, with something of the leadership she had learned in her recent life, she slipped into practical domestic command of this quiet but punctilious *menage*. By reason of an equal executive fitness Aunt Lucy rose in the kitchen also into full command. The Widow Clayton found her cousin Mary Ellen a stay and comfort, useful and practical to a degree unknown in the education of the Southern young lady of the time.

Of her life in the West Mary Ellen spoke but little, though never with harshness, and at times almost with wistfulness. Her history had seemed too full of change to be reality. For the future she made no plans. It seemed to her to be her fate ever to be an alien, a looker-on. The roses drooped across her lattice, and the blue grass stood cool and soft and deep beyond her window, and the kind air carried the croon of the wooing mocking bird; yet there persisted in her brain the picture of a wide, gray land, with the sound

of an urgent wind singing in the short, tufted grasses, and the breath of a summons ever on the air. Out there upon the Plains it had been ever morning. Here life seemed ever sinking toward its evening-tide.

This old family and the family house were accepted unquestioningly by the quiet Southern community now, as they had ever been, as a part of the aristocracy of the land, and as appurtenances there-to. The way of life had little change. The same grooms led out the horses from the stables, the same slow figures cut the grass upon the lawn. Yet no longer were the doors thrown open upon a sea of light and colour. The horses were groomed and broken, but they brought no great carriage of state sweeping up the drive between the lion-headed pillars of the gateway. When Mrs. Clayton feebly sought to propose brighter ways of life for the young woman, the latter told her gently that for her, too, life was planned and done, the struggle over, and that she asked only that she might rest, and not take up again any questions for readjustment.

"You will change after a while, honey," said her protectress; but Mary Ellen only smiled. It was enough to rest here in this haven, safe from the surging seas of doubt and hope and fear, of love and self-distrust. Let it be settled. Let it be ended. Let these tall white columns mark the grave of her heart. Let this wide sea of green mirror that which should one day lie above her bosom in this land of finished things. Let the great lion gates guard off all intrusion, all curiosity, even all well-intended courtesy. For her no cavalier should ever come riding up the gravelled way, nor should lights ever set dancing again the shadows in the great dining hall over the heads of guests assembled in her honour. It was done—finished. And Mary Ellen was not yet twenty-eight.

One morning the little street car stood, as was its wont, at the terminus of the track, near the front of the wide grounds of the old mansion house. This

was far out upon the edge of the little city, and few were the patrons that might be expected; but it was held but mere courtesy to offer the services of the street-car line to this family, so long recognised as one of the unimpeachably best of this Southern city. This modern innovation of the street car was not readily taken up by the conservative community, and though it had been established for some years, it might be questioned whether its shares had ever paid much interest upon their face value. Now and then a negress with a laundry bundle, a schoolgirl with her books, a clerk hurrying to his counter, might stop the lazy mules and confer the benefit of an infrequent coin.

At this terminus of the line at the outskirts of the town there was each morning enacted the same little scene. The driver slowly unhitched his mules and turned them about to the other end of the car, in readiness for the return journey. Matters having progressed this far, the mules fell at once into a deep state of dejection and somnolence, their ears lopping down, their bodies drooping and motionless, save as now and then a faint swish of tail or wag of a weary ear bespoke the knowledge of some bold, marauding fly. The driver, perched upon his seat, his feet upon the rail, his knees pushed toward his chin, sat with his broad hat drawn down upon his forehead, his hands clasped between his legs, and all his attitude indicative of rest. Slow clouds of dust passed along the road near by, and the glare of the sun grew warm; but no motion came to either team or driver, undisturbed by any care and bound by no inconvenient schedule. From the big oaks came now and then the jangle of a jay, or there might be seen flitting the scarlet flame of the cardinal. These things were unnoted, and the hour droned on.

Presently from a side street, faced by a large brick dwelling, there came with regular and unhurried tread a tall and dignified figure, crowned with a soft Panama, and tapping with official cane. As it approached the car the driver straightened a trifle on the seat.

"Good mawnin', Judge Wilson," he said.

"Uh-ah, good mawnin', James," replied the judge. "Uh-ah, Doctah Gregg li'l late this mawnin', eh?"

"Yessah, seems like," said the driver, his head again falling.

In perhaps five or ten minutes, perhaps half an hour, there would be heard the tapping of another cane, and Dr. Gregg, also tall, not quite so portly, and wearing a white beaver instead of a soft Panama, would appear from the opening of yet another side street tributary to the car.

"Good mawnin', James," said the doctor as he passed; and the driver answered respectfully.

"Good mornin', Doctah. You li'l late this mornin', seems like."

"Well, yessah, I may be a leetle late, just a leetle.—Good mawnin', Judge; how are you this mawnin', sah?"

"Very well, Doctah, sah, thank you, sah. Step in an' seddown. Right wahm, this mawnin'. Uh-ah!"

So the judge and the doctor sat down in the car, and conversed, easily and in no haste, perhaps for five or ten minutes, perhaps for half an hour. Now and then the driver cast a glance out of the side of his eye over toward the lion-headed gates, but no one was uneasy or anxious. The mules were to apparent view very sad and still, yet really very happy within their souls.

"Young lady li'l late this mawnin', seems like," remarked the Judge.

"Oh, yes, but she'll be 'long direckly, I reckon," replied the doctor. "You know how 'bout these young folks. They don't always realize the

importance o' pressin' business mattehs. But we must fo'give heh. Judge, we must fo'give heh, foh she suhtinly is well wo'th waitin' foh; yes indeed."

"Uh-ah! quite right, Doctah, quite right! Fine young lady, fine young lady. Old stock, yes indeed! Beechams o' Fehginny. Too bad Cousin Sarann Clayton keeps heh so close like. She fitten to be received, sah, to be received!"

"Yes, indeed," assented the doctor. "Yes, sah. Now, ain't that the young lady a-comin' down the walk?"

Judge and doctor and driver now turned their gaze beyond the lion-headed gateway to the winding walk that passed among the trees up to the old mansion house. Far off, through the great columns of the trees, there might indeed this morning now be seen the flutter of a gown of white. The faint sound of voices might be heard. Mary Ellen, conscientious marketer, was discussing joints and salads with her aunt. And then Mary Ellen, deliberately tying the strings of her bonnet under her chin, turned, answering her aunt's summons for replevin of a forgotten fan. Then, slowly, calmly, the gown of white became more distinct as she came nearer, her tall figure composing well with the setting of this scene. For her patiently waited the judge and the doctor and the driver.

"Good mawnin', Miss Beecham," said the driver as she passed, touching his hat and infusing more stiffness to his spine.

"Good morning, sir," she replied pleasantly.

"Uh-ah, good mawnin', Miss Beecham, good mawnin'," said Judge Wilson; and "Good mawnin'," said Dr. Gregg.

"Good morning, Judge Wilson," replied Mary Ellen, as she entered the car.—"Good morning, Dr. Gregg." The gentlemen made way for her upon the shady side of the car, and lifted their hats ceremoniously.

"L'il late this mawnin', Miss Beecham, seems like," said the judge, with no trace of resentment in his tones.

Dr. Gregg upon this morning began his customary reproach also, but it halted upon his tongue. "Miss Beecham," he said, "pardon me, allow me—are you ill?"

For Mary Ellen, settling herself for her regular morning ride with her regular companions, all at once went pale as she gazed out the window. She scarcely heard the kind remark. She was looking at a man—a tall man with a brown face, with broad shoulders, with a long, swinging, steady stride. This man was coming up the side of the street, along the path between the fence and the burdocks that lined the ditch. His shoes were white with the limestone dust, but he seemed to care nothing for his way of locomotion, but reached on, his head up, his eye searching eagerly.

Not with equipage, not mounted as a Southern cavalier, not announced, but in the most direct and swiftest way in his power had Edward Franklin come. Strong, eager, masterful, scorning the blazing sun, his reckless waste of energy marked him as a stranger in that place. He stopped at the gateway for one moment, looking up the path, and then turned swiftly toward the car as though called audibly.

As with a flash his face lighted, and he strode straight on toward a woman whose heart was throbbing in a sudden tumultuous terror. She saw him stoop at the car door, even as once before she had seen him enter at another lowly door, in another and far-off land. She felt again the fear

which then she half admitted. But in a moment Mary Ellen knew that all fear and all resistance were too late.

The eyes of Franklin, direct, assured, almost sad, asked her no question, but only said, "Here am I!" And Mary Ellen knew that she could no longer make denial or delay. Her thoughts came rapid and confused; her eyes swam; her heart beat fast. Afar she heard the singing of a mocker in the oaks, throbbing, thrilling high and sweet as though his heart would break, with what he had to say.

Judge Wilson and Dr. Gregg politely removed their hats as Franklin entered the car and addressed Mary Ellen. Confused by the abruptness of it all, it was a moment before she recognised local requirements, and presented Franklin to the gentlemen. For an instant she planned flight, escape. She would have begged Franklin to return with her. Fate in the form of the driver had its way. "Git ep, mewel!" sounded from the front of the car. There was a double groan. A little bell tinkled lazily. The rusty wheels began slowly to revolve.

"It's an awful hour to call," admitted Franklin under the rumble of the wheels. "I couldn't get a carriage, and I hadn't any horse. There wasn't any car. Forgive me."

Part of this was open conversation, and Franklin made still further polite concessions to the company. Yes, he himself was a member of the bar—a very unworthy one. He had a relative who was a physician. A lovely city, this, which they had. Beautiful old places, these along the way. A rare and beautiful life, that of these old Southern families. Delightful, the South. He had always loved it in so far as he had ever known it, and he felt the better acquainted, having known Miss Beauchamp so well in her former home in the West. And the Judge said, "Uh-ah!" and the doctor bowed, looking the while with professional admiration at the chest and flank of this brown, powerful man, whose eye smote like a ray from some motor full of compressed energy.

Beyond this it is only to be said that both Judge and doctor were gentlemen, and loyal to beauty in distress. They both earned Mary Ellen's

love, for they got off eight blocks sooner than they should have done, and walked more than half a mile in the sun before they found a place of rest.

"Oh, well, yessah, Judge," said Dr. Gregg, half sighing, "we were young once, eh, Judge?—young once ouhselves."

"Lucky dog!" said the judge; "lucky dog! But he seems a gentleman, and if he has propah fam'ly an' propah resources, it may be, yessah, it may be she's lucky, too. Oh, Northehn, yessah, I admit it. But what would you expeck, sah, in these times? I'm told theh are some vehy fine people in the No'th."

"Deep through," said the doctor, communing with himself. "Carries his trunk gran'ly. Splendid creatuah—splendid! Have him? O' co'se she'll have him! What woman wouldn't? What a cadaver! What a subjeck—"

"Good God! my dear sir!" said the judge. "Really!"

Meantime the dingy little car was trundling down the wide, sleepy street, both driver and mules now fallen half asleep again. Here and there a negro sat propped up in the sun, motionless and content. A clerk stretched an awning over some perishable goods. A child or two wandered along the walk. The town clock pointed to half past eleven. The warm spring sun blazed down. A big fly buzzed upon the window pane. No more passengers came to the car, and it trundled slowly and contentedly on its course toward the other end of its route.

Franklin and Mary Ellen sat looking out before them, silent. At last he turned and placed his hand over the two that lay knit loosely in her lap. Mary Ellen stirred, her throat moved, but she could not speak. Franklin leaned forward and looked into her face.

"I knew it must be so," he whispered quietly.

"What—what must you think ?" broke out Mary Ellen, angry that she could not resist.

"There, there, dearest!" he said, "don't trouble. I knew it was to be. I came straight to you." He tightened his grip upon her hands. Mary Ellen straightened and looked him in the face.

"I'll admit it," she said. "I knew that you were coming. I must have dreamed it."

There in the street car, upon the public highway, Franklin cast his arm about her waist and drew her strongly to him. "Dear girl," he said, "it was to be! We must work out our lives together. Will you be happy—out there—with me?"

Again Mary Ellen turned and looked at him with a new frankness and unreserve.

"That's the oddest of it," said she. "Out on the prairies I called the South 'back home.' Now it's the other way."

They fell again into silence, but already, lover-like, began to read each the other's thoughts and to find less need of speech.

"You and I, dearest," said Franklin finally, "you and I together, forever and ever. We'll live at the Halfway House. Don't shiver, child; I've built a fine new house there—"

"You've built a house?"

"Yes, yes. Well, I'll confess it—I bought the place myself."

"Then it was your money?"

"And it is your money."

"I've a notion," began Mary Ellen, edging away, biting her lip.

"And so have I," said Franklin, stooping and kissing her fingers with scandalous publicity. "I've a notion that you shall not speak of that. It is ours. We've more than a thousand acres of land there, and plenty of cattle. Curly shall be foreman—he's married the little waiter girl, and has come back to Ellisville; they live next door to Sam and Nora. Aunt Lucy shall be our cook. We shall have roses, and green grass, and flowers. And you and I—you and I—shall live and shall do that which has been sent to us to do. Mary Ellen—dear Mary Ellen—"

Again the girl threw up her head, but her pride was going fast.

"Then—then you think—you think it is no sin? Is there no lapse in this for me? You think I shall not be—"

Franklin drew her closer to him. "That which is before us now is Life," he said. "Dearest, how sweet—how very sweet!"

A caged mocking bird at a little near-by house burst out into a shrill paeon, fellow to that of the wild bird of the oaks. Mary Ellen felt her senses melting into a mysterious, bewildering joy. Unconsciously she swayed slightly against the shoulder of her lover. In her heart the music of the bird thrilled on, even when the tinkle of the little bell ceased, even when Franklin, stepping from the car, held up his hands to her and whispered, "Come."

*** END OF THE PROJECT GUTENBERG EBOOK THE GIRL AT THE
HALFWAY HOUSE ***

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